APPENDIX B
INITIAL STUDY

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San Francisco Planning

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INITIAL STUDY
3400 LAGUNA STREET

Date:	August 28, 2024
Case No.:	2022-009819ENV
Project Address:	3400 Laguna Street
Zoning:	RM-1 (Residential – Mixed, Low Density) Use District
Height/Bulk:	40-X District
Block/Lot:	0471/003
Lot Size:	68,090 square feet
Neighborhood:	Marina
Project Sponsor:	Mary Linde, CEO, Heritage on the Marina – (415) 202-0343, MLinde@heritagesf.org
Staff Contact:	Megan Calpin – (628) 652-7508, CPC.3400LagunaEIR@sfgov.org

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ACRONYMS AND ABBREVIATIONS

ABAG	Association of Bay Area Governments
ADA	Americans with Disabilities Act
ADRP	Archeological Data Recovery Plan
air basin	San Francisco Bay Area Air Basin
air district	Bay Area Air Quality Management District
AMP	Archeological Monitoring Plan
ARPP	archeological resource preservation plan
ARR	Archeological Resources Report
BWDP	Batch Wastewater Discharge Permit
CALGreen	California Green Buildings Standards Code
California air board	California Air Resources Board
California Register	California Register of Historical Resources
Caltrans	California Department of Transportation
CAP	climate action plan
CDFW	California Department of Fish and Wildlife
CEQA	California Environmental Quality Act
CNDDB	California Natural Diversity Database
CO	carbon monoxide
CRPIP	Cultural Resources Public Interpretation Plan
dBA	A-weighted decibels
DPM	diesel particulate matter
EIR	environmental impact report
ERO	Environmental Review Officer
ESLs	environmental screening levels
FAR	floor area ratio
FTA	Federal Transit Administration
FUDS	Formerly Used Defense Site
GHG	greenhouse gas
health department	San Francisco Department of Public Health

HEPA	High Efficiency Particulate Air Filter
HRR	Historic Resources Response
in/sec	inches per second
L_{dn}	day-night average noise level
LEED	Leadership in Energy and Environmental Design
L_{eq}	equivalent continuous sound level
LUST	leaking underground storage tank
MBTA	Migratory Bird Treaty Act
Medical Examiner	Office of the Chief Medical Examiner of the City and County of San Francisco
mgd	million gallons per day
MLD	Most Likely Descendant
NAHC	Native American Heritage Commission
NO_2	nitrogen dioxide
NOP	Notice of Preparation
NO_X	oxides of nitrogen
NPDES	National Pollutant Discharge Elimination System
NWIC	Northwest Information Center
PCE	tetrachloroethene
PG&E	Pacific Gas & Electric
PM	particulate matter
PM_{10}	particular matter less than 10 microns in diameter
$PM_{2.5}$	particulate matter less than 2.5 microns in diameter
PPV	peak particle velocity
QACL	Qualified Archeological Consultants List
RM-1	Residential-Mixed, Low Density
ROG	reactive organic gases
SF Guidelines	San Francisco Transportation Impact Analysis Guidelines for Environmental Review
SFMTA	San Francisco Municipal Transportation Agency
SFPUC	San Francisco Public Utilities Commission
SO_2	sulfur dioxide
TACs	toxic air contaminants

TCE	trichloroethene
TCRPP	tribal cultural resource preservation plan
TDM	Transportation Demand Management
TIA	Federal Transit Administration
TNCs	transportation network companies
USGS	United States Geological Survey
UST	underground storage tank
UWMP	Urban Water Management Plan
VMT	vehicle miles traveled
VOC	volatile organic compounds

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A. PROJECT DESCRIPTION

The 3400 Laguna Project (proposed project) is described in Chapter 2, Project Description, of the environmental impact report (EIR), to which this initial study is attached.

B. PROJECT SETTING

The existing setting and land use characteristics are described in EIR Chapter 2, Project Description. The cumulative setting is provided in EIR Chapter 3, Environmental Settings and Impacts, Section 3.A.

The only reasonably foreseeable cumulative project within approximately one-quarter mile of the project site is the Marina Improvement and Remediation Project, described in EIR Chapter 3, Environmental Setting, Section 3.A.5.

C. COMPATIBILITY WITH EXISTING ZONING AND PLANS

	Applicable	Not Applicable
Discuss any variances, special authorizations, or changes proposed to the planning code or zoning map, if applicable.	☒	☐
Discuss any conflicts with any adopted plans and goals of the City or region, if applicable.	☐	☒
Discuss any approvals and/or permits from City departments other than the planning department or the Department of Building Inspection, or from regional, state, or federal agencies.	☒	☐

This section discusses potential inconsistencies of the proposed project with applicable local and regional plans and policies. Inconsistencies with existing plans and policies do not, in and of themselves, indicate a significant physical environmental effect. To the extent that adverse physical environmental impacts may result from such inconsistencies, these impacts are analyzed in this initial study under the specific environmental topic sections below in Section E, Evaluation of Environmental Effects, or in the draft EIR, as appropriate.

The proposed project would demolish existing buildings, construct new buildings, and renovate existing buildings on an urban infill site and would continue to operate as a residential care facility.

Comments received in response to the Notice of Preparation (NOP) regarding the proposed project's compatibility with zoning and plans included concerns regarding the project's consistency with City policies related to preservation of affordable housing, concerns that the project does not contribute to the City's equitable housing stock and therefore does not support the City housing goals and policies, maintenance of the character of the Marina neighborhood, and inconsistency with the current allowable land use. These comments also raised concerns that the project would violate the currently approved conditional use permit due to the increased density of residential units. A number of permits and approvals from City departments are required as identified in Chapter 2, Project Description of the EIR. To the extent that there are conflicts between the proposed project and applicable plans, policies, and regulations, those conflicts would be

considered by City decision-makers when they decide whether to approve, modify, or disapprove the proposed project.

San Francisco Planning Code and Zoning Maps

The San Francisco Planning Code, which incorporates by reference the City's zoning maps, governs permitted uses, densities, and the configuration of buildings within San Francisco.[1] Permits to construct new buildings (or to alter or demolish existing ones) may not be issued unless: (1) the proposed project complies with the planning code, (2) an allowable exception or variance is granted, or (3) legislative amendments to the planning code are included and adopted as part of the proposed project.

Land Use

The project site is currently occupied by the approximately 83,200-gross-square-foot Heritage on the Marina residential care facility, which has been operating at the site since 1925. The project site is located within the RM-1 (Residential-Mixed, Low Density) zoning district. As stated in planning code section 209.2, RM (Residential, Mixed) Districts, the RM-1 zoning districts have a low overall density of units, buildings are moderately scaled and segmented, and units or groups of units have separate entrances. Residential care facilities are defined by the planning code as an institutional health care use providing lodging, board and care for persons in need of specialized aid by personnel licensed by the State of California and are a permitted institutional use within the RM-1 district. The facility currently operates under a Conditional Use Permit and Planned Unit Development approved in 1986, when the facility was last expanded.

The proposed expansion and modernization of the existing residential care facility to provide an additional 23 residential care suites through demolition of two existing buildings and construction of two new buildings would be consistent with the intent of the RM-1 district. The proposed project includes a request for a conditional use authorization from the planning commission pursuant to planning code sections 209.2 and 303, Conditional Uses as well as approval of Planned Unit Development, including an exception to the rear yard requirement pursuant to planning code section 304, Planned Unit Developments.

Height and Bulk

The project site is located within the 40-X height and bulk district. The 40-X height and bulk district permits a maximum building height of 40 feet, with an additional 16 feet for mechanical equipment and rooftop appurtenances such as elevator penthouses (a total of 56 feet). Pursuant to planning code section 270(a), Bulk Limits: Measurement, there are no bulk controls in an "X" district. The proposed project would not include new construction or exterior alterations that would increase the building height on the site beyond the 40 foot height limit and all rooftop equipment and appurtenances would be below 56 feet; therefore, the proposed project complies with the height and bulk limits specified in the planning code for the project site.[2]

Floor Area Ratio

Floor area ratio (FAR) is a measure of building intensity based on the ratio between the total floor area to be built on a site and the size of that site. In the RM-1 district, a basic 1.8:1 FAR is allowed. Given that the site is on a corner lot, the FAR premium allowing a 25 percent increase applies pursuant to planning code section 125, Floor Area Premiums. The proposed project, which would increase the total building size on the site to

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1 San Francisco Planning Code, available at https://codelibrary.amlegal.com/codes/san_francisco/latest/sf_planning/0-0-0-17747, accessed May 16, 2024.

2 The existing Perry Building is 40.5 feet tall (rounded to 41 feet tall) and no changes to this building's height are proposed. The new Bay and Francisco building heights would not exceed 40 feet.

141,580 square feet, would have a FAR of 2.08:1 and would comply with the maximum FAR requirement of 2.25:1 for the project site.

Setbacks and Yards

Pursuant to planning code section 209.2, the proposed project is required to provide a rear yard of 30 percent of the lot depth, but in no case less than 15 feet shall be provided, whichever is greater. The proposed project would not provide a compliant rear yard and therefore would require a planned unit development exception under planning code section 304. No side yards are required and no changes would be made to the front setback.

Parking and Loading

Pursuant to planning code section 151, Schedule of Required Off-Street Parking Spaces, no off-street parking is required for a residential care facility in the RM-1 district and the maximum number of parking spaces would be 49 spaces, or one space per 2,000 square feet of Occupied Floor Area.[3] The basement-level garage would include 31 vehicular parking spaces for use by staff and residents, including one car-share space. Five surface off-street parking spaces would also be provided on the site. In total, the project would add 19 off-street parking spaces to the project site, for a total of 36 spaces, which is less than the maximum allowed. A new two-directional, 20-foot-wide driveway on Bay Street would provide access to the new basement-level garage, east of the existing entrance. Vehicles would be restricted to right-only turns into and out of the driveway. The new driveway would necessitate the removal of the 17 existing off-street surface parking spaces and approximately 15 feet of on-street parking along the project's Bay Street frontage, resulting in the loss of one on-street parking space on Bay Street. The existing driveway will remain as an ingress only, one-directional access to the covered porte cochère and the five surface off-street parking spaces. The project would also provide one off-street freight loading space, accessible via Bay Street. Pursuant to planning code section 152, Schedule of Required Off-Street Freight Loading Spaces, one off-street freight loading space is required.

The basement garage would include 18 Class 1 bicycle parking spaces, none are required pursuant to planning code section 155.2, Bicycle Parking: Applicability and Requirements for Specific Uses. For residential care facilities, planning code section 155.2 requires two Class 2 bicycle spaces for every 50 units or beds; the proposed project would include 109 residential care units and thus require 6 Class 2 bicycle parking spaces. The project would provide 12 Class 2 bicycle parking spaces in the public right-of-way (three located on Bay Street and nine located on Francisco Street) and three Class 2 bicycle parking spaces on the surface parking lot.

Trees

The public right-of-way adjacent to the project site contains 14 existing street trees, with five street trees present along the Bay Street frontage and nine trees present along the Francisco Street frontage. The proposed project would remove one street tree along the Bay Street Frontage. The proposed project would replace the tree along the Bay Street frontage and add six street trees along the project site's Laguna Street frontage in accordance with section 806 of the public works code. The proposed project would result in a net increase of six street trees. The project site contains one significant tree, as defined in section 810A of the public works code, that would not be removed.

[3] The occupied floor area of the proposed project, as defined by planning code section 102, would be 98,424 square feet.

Plans and Policies

San Francisco General Plan

The general plan establishes objectives and policies to guide land use decisions related to the physical development of San Francisco. It is comprised of 10 elements, each of which addresses a particular topic that applies citywide: air quality; arts; commerce and industry; community facilities; community safety; environmental protection; housing; recreation and open space; transportation; and urban design. Any conflicts between the proposed project and policies that relate to physical environmental issues are discussed in Section E, Evaluation of Environmental Effects or in the draft EIR. The compatibility of the proposed project with general plan policies that do not relate to physical environmental issues will be considered by decisionmakers as part of their decision whether to approve or disapprove the proposed project. The proposed project would result in the expansion and renovation of an existing residential care facility through the demolition of two existing buildings and construction of two new buildings, as well as renovation of the Julia Morgan Building and Perry Building. It would not introduce incompatible land uses to the neighborhood. The project would not otherwise conflict with any general plan policies or objectives. Thus, the project would not be inconsistent with the San Francisco General Plan.

Proposition M – The Accountable Planning Initiative

In November 1986, the voters of San Francisco approved Proposition M, the Accountable Planning Initiative, which added section 101.1, General Plan Consistency and Implementation, to the planning code and established eight priority policies. These policies, and the topics in Section E, Evaluation of Environmental Effects or in the draft EIR, that address the environmental issues associated with these policies are: (1) preservation and enhancement of neighborhood-serving retail uses; (2) protection of neighborhood character; (3) preservation and enhancement of affordable housing; (4) discouragement of commuter automobiles; (5) protection of industrial and service land uses from commercial office development and enhancement of resident employment and business ownership; (6) maximization of earthquake preparedness (Sections E.16(a) through E.16(d), Geology and Soils); (7) preservation of landmark and historic buildings (Section 3.B, Historic Resources, of the draft EIR); and (8) protection of open space (Section E.10, Wind; Section E.11, Shadow; Section E.12(a), Recreation; and Section E.14, Public Services). Prior to issuing a permit for any project that requires an initial study under the California Environmental Quality Act (CEQA), and prior to issuing a permit for any demolition, conversion, or change of use, and prior to taking any action that requires a finding of consistency with the general plan, the City is required to find that the proposed project would be consistent with the priority policies.

As noted above, the compatibility of the proposed project with general plan objectives and policies that do not relate to physical environmental issues will be considered by decision-makers as part of their decision whether to approve or disapprove the proposed project. Any potential conflicts identified as part of that process would not alter the physical environmental effects of the proposed project.

Regional Plans and Policies

The four principal regional planning agencies and their overarching policies and plans (noted in parentheses) that guide planning in the nine-county Bay Area include the Bay Area Air Quality Management District (2017 Bay Area Clean Air Plan), the Metropolitan Transportation Commission (Plan Bay Area 2050), the San Francisco Regional Water Quality Control Board (San Francisco Basin Plan), and the San Francisco Bay Conservation and Development Commission (San Francisco Bay Plan). Due to the location, size, and

nature of the proposed project, the proposed project is not anticipated to be inconsistent with regional plans and policies.

D. SUMMARY OF ENVIRONMENTAL EFFECTS

The project could potentially result in significant adverse physical effects on the environmental resource topics checked below. Where those impacts are significant or potentially significant, CEQA requires identification of mitigation measures to reduce the severity of the impacts to a less-than-significant level to the extent feasible. This initial study presents a more-detailed checklist and discussion of each environmental resource, unless otherwise noted below.

- ☐ Land Use and Planning
- ☐ Aesthetics
- ☐ Population and Housing
- ☒ Cultural Resources
- ☒ Tribal Cultural Resources
- ☐ Transportation and Circulation
- ☒ Noise
- ☒ Air Quality
- ☐ Greenhouse Gas Emissions
- ☐ Wind
- ☐ Shadow
- ☐ Recreation
- ☐ Utilities and Service Systems
- ☐ Public Services
- ☒ Biological Resources
- ☐ Geology and Soils
- ☐ Hydrology and Water Quality
- ☐ Hazards and Hazardous Materials
- ☐ Mineral Resources
- ☐ Energy
- ☐ Agriculture and Forestry Resources
- ☐ Wildfire
- ☒ Mandatory Findings of Significance

Approach to Analysis

This initial study examines the proposed project to identify potential effects on the environment. For each item on the initial study checklist, the evaluation has considered the impacts of the proposed project both individually and cumulatively. All items on the initial study checklist that have been checked "less-than-significant impact with mitigation incorporated," "less-than-significant impact," "no impact," or "not applicable" indicate that, upon evaluation, the planning department has determined that the proposed project could not have a significant adverse environmental effect relating to that topic. A discussion is included for those topics checked "less than significant with mitigation incorporated" and "less-than-significant impact," and for most items checked with "no impact" or "not applicable." For all of the items checked "no impact" or "not applicable" without discussion, the conclusions regarding potential significant adverse environmental effects are based upon field observation, staff experience and expertise on similar projects, and/or standard reference material available within the planning department, such as the California Department of Conservation's Farmland Mapping and Monitoring Program. Impacts identified as "potentially significant" are analyzed in the EIR or were evaluated in this initial study and found to be significant, but mitigation measures identified in this initial study and agreed to by the project sponsor would reduce those impacts to less-than-significant levels. The "potentially significant" designation used to identify topics that are addressed in detail in the EIR does not reflect a determination that the proposed project would in fact result in a significant impact related to the particular topic. Such topics are included in the EIR because the City determined that additional analysis was needed to determine the potential effect with respect to that environmental topic.

Effects Found to Be Potentially Significant

On the basis of this initial study, topics for which there are project-specific effects that have been determined potentially significant are:

- Cultural resources (historic architectural and cumulative historic architectural resources)
- Air quality (construction criteria air pollutant emissions, health risks to receptors, and cumulative health risks)

These environmental topics are evaluated in the EIR prepared for the proposed project.

Effects Found Not to Be Significant or Not Significant with Identified Mitigation Measures

The following potential individual and cumulative environmental effects would be less than significant or reduced to a less-than-significant level through implementation of identified mitigation measures included in this initial study and agreed to by the project sponsor:

- Land use and planning
- Population and housing
- Cultural resources (archeological resources and human remains)
- Tribal cultural resources
- Transportation and circulation
- Noise
- Air quality (clean air plan consistency, operational criteria air pollutant emissions, and odors)
- Greenhouse gas emissions
- Wind
- Shadow
- Recreation
- Utilities and service systems
- Public services
- Biological resources
- Geology and soils
- Hydrology and water quality
- Hazards and hazardous materials
- Mineral resources
- Energy
- Agriculture and forestry resources
- Wildfire

These items, along with appropriate mitigation measures, are discussed in Section E, Evaluation of Environmental Effects, of this initial study and therefore require no further environmental analysis in the EIR.

E. EVALUATION OF ENVIRONMENTAL EFFECTS

E.1 No Impact or Not Applicable Environmental Topics

The proposed project would have no impact on the following environmental topics: aesthetics and parking; agriculture and forestry resources; mineral resources; and wildfire. As a result, this initial study does not discuss these topics further, except that this section briefly describes why the proposed project would have no impact on these topics or why they are not applicable to the proposed project.

Aesthetics and Parking

CEQA section 21099 (d) states: "Aesthetic and parking impacts of a residential, mixed-use residential, or employment center project on an infill site located within a transit priority area shall not be considered significant impacts on the environment."[4] Accordingly, aesthetics and parking are not to be considered in determining if a project has the potential to result in significant environmental effects for projects that meet all of the following three criteria:

- The project is residential, mixed-use residential, or an employment center.
- The project is on an infill site.
- The project is in a transit priority area.

The planning code classifies the existing and proposed use as an institutional use. However, the proposed project is also considered a residential project within the definition of CEQA section 21099(d) in that it would increase the number of residential care units on the site by 23 from 86 to 109 units in total. The proposed project also meets the definition of an employment center. Per CEQA Guidelines section 21099(a)(1), "Employment center project" means a project located on property zoned for commercial uses with a floor area ratio of no less than 0.75 and that is located within a transit priority area. For the RM-1 zoning district in which the project site is located, the San Francisco Planning Code table 209.2, Zoning Control Table for RM Districts allows for limited commercial uses and as discussed above, the project would have floor area ratio of 2.08.[5]

The proposed project is also on an infill site because it is on a lot located within an urban area that has been previously developed[6] and the project is in a transit priority area because it is within one-half mile of a major transit stop.[7]

Thus, pursuant to CEQA section 20199, aesthetic and parking impacts of the proposed project would not be significant.

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[4] See CEQA Section 21099(d)(1). While under the San Francisco Planning Code the project is defined as institutional use, the project would add senior residences and improvements for residents; thus, the project complies with the definition of a residential infill project per CEQA Section 21099(d)(1).

[5] The planning code defines commercial use as "A land use with the sole or chief emphasis on making financial gain, including but not limited to Agricultural Uses, Industrial Uses, Sales and Service Uses, Retail Entertainment Uses, and Auto Uses." Also, a broader definition of "commercial use" from Law Insider is "activities carried out on property developed for industry, commerce, trade, recreation, or business or being developed to be occupied for such purposes, for profit or nonprofit." The proposed expansion of the residential care facility would also meet these definitions of a commercial use. City of San Francisco. Planning Code Section 102. Available at https://codelibrary.amlegal.com/codes/san_francisco/latest/sf_planning/0-0-0-17783. Accessed April 12, 2024.

[6] CEQA section 20199(a)(4).

[7] San Francisco Planning Department, 2022, San Francisco Transportation Information Map. Available online at: https://sfplanninggis.org/TIM/. Accessed April 12, 2024.

However, as part of the NOP process, comments were received regarding potential aesthetic impacts related to visual character and light and glare. While these concerns are not considered significant impacts on the environment pursuant to CEQA Guidelines section 20199, draft EIR Chapter 2, Project Description includes Figures 2-11 and 2-12 showing existing and proposed project views to the project site and demonstrating that the project would not substantially block any scenic views or vistas from these public vantage points. In addition, the project would comply with City regulations as they pertain to building materials, glass and window finishes that are aimed at minimizing any new potential glare. Comments received on the NOP also expressed concerns that the new buildings would reduce views of the Julia Morgan Building. The Historic Resources Response (HRR), prepared by the City, found that overall, the proposed massing of the new construction would not block public views of the Julia Morgan Building, as the proposed setbacks would not obstruct public views of the existing historic structures, would not compete with the primacy of the Julia Morgan Building, and would not impact the existing setback of the lawn. Section 3.B, Historic Resources, of the draft EIR provides an in depth discussion of the proposed project's potential to impact the eligibility of the Julia Morgan Building for listing in an historic register.

Mineral Resources

The project site is not located in an area with known mineral resources and would not extract mineral resources. Therefore, this topic is not applicable to the proposed project and the project would have no impact, either individually or cumulatively, on mineral resources.

Agriculture and Forestry Resources

The project site is within an urbanized area in the City and County of San Francisco that does not contain any prime farmland, unique farmland, or farmland of statewide importance; forest land; or land under Williamson Act contract. The area is not zoned for any agricultural uses. Therefore, this topic is not applicable to the proposed project and the project would have no impact, either individually or cumulatively, on agriculture or forestry resources.

Wildfire

The project site is not located in or near state responsibility lands for fire management or lands classified as very high fire hazard severity zones. Therefore, this topic is not applicable to the proposed project and the project would have no impact, either individually or cumulatively, related to wildfire.

Topics:	Potentially Significant Impact	Less than Significant with Mitigation Incorporated	Less than Significant Impact	No Impact	Not Applicable
E.2. LAND USE AND PLANNING. Would the project:					
a) Physically divide an established community?	☐	☐	☒	☐	☐
b) Cause a significant physical environmental impact due to a conflict with any land use plan, policy, or regulation adopted for the purpose of avoiding or mitigating an environmental effect?	☐	☐	☐	☒	☐

Impact LU-1: The proposed project would not physically divide an established community. ***(Less than Significant)***

The division of an established community typically involves the construction of a physical barrier to neighborhood access, such as a new freeway, or the removal of a means of access, such as a bridge or roadway. Implementation of the proposed project would not result in the construction of a physical barrier to neighborhood access or the removal of an existing means of access; it would result in the expansion and renovation of an existing residential care facility through the demolition of two existing buildings and construction of two new buildings, as well as renovation of the Julia Morgan Building and the Perry Building within established lot boundaries. Although the proposed project would include modifications to existing loading zones and street parking, the proposed project would not alter the established street grid or permanently close any streets or sidewalks. Although portions of the sidewalks adjacent to the project site could be closed for periods of time during project construction, these closures would be temporary, only occurring during construction, and pedestrian travel would be accommodated via a covered walkway or sidewalks on adjacent streets, if necessary. Therefore, the proposed project would not physically divide an established community and this impact would be less than significant. No mitigation measures are required.

Impact LU-2: The proposed project would not cause a significant physical environmental impact due to a conflict with any applicable land use plan, policy, or regulation adopted for the purpose of avoiding or mitigating an environmental effect. ***(No Impact)***

Land use impacts could be considered significant if the proposed project would conflict with a land use plan, policy, or regulation adopted for the purpose of avoiding or mitigating an environmental effect. The determination as to whether a conflict with a land use plan, policy, or regulation is significant under CEQA is based on whether that conflict would result in a significant physical environmental impact. Applicable land use plans that regulate development on the project site include the San Francisco General Plan and San Francisco Planning Code. The proposed project would result in the expansion and renovation of an existing residential care facility through the demolition of two existing buildings and construction of two new buildings, as well as renovation of the Perry Building and the Julia Morgan Building and would conform with the allowable uses under the RM-1 zoning district. The proposed project would not include any new buildings that would be greater than 40 feet in height, which is the maximum height allowed in the 40-X height and bulk district, plus allowed rooftop equipment and appurtenances up to 16 feet in height. Therefore, the proposed project would be consistent with the zoning designation, which implements the general plan, and height and bulk district for the project site, and would not substantially conflict with any land use plan, policy, or regulation adopted for the purpose of avoiding or mitigating an environmental effect.

The project's consistency with other applicable plans and policies is further discussed above in Section C, Compatibility with Existing Zoning and Plans. That discussion concludes that the proposed project would not be inconsistent with any applicable regional plans. For these reasons, the project would have no impact with respect to any conflict with land use plans, policies, and regulations adopted for the purpose of mitigating an environmental effect. No mitigation measures are required.

Impact C-LU-1: The proposed project, in combination with cumulative projects, would not result in a significant cumulative impact related to land use and planning. ***(No Impact)***

The cumulative context for land use effects is typically localized, within the immediate vicinity of the project site, or at the neighborhood level. Cumulative development within the project vicinity (within a 0.25-mile radius of the project site) includes the Marina Improvement and Remediation Project. This cumulative project includes potential future improvements to the marina and open space areas along the north waterfront. It is currently unknown if this project would occur at the same time as the proposed project. In addition, improvements would be limited to the waterfront and open space areas and land uses would not change. Accordingly, the proposed project in combination with the cumulative project would not result in a significant cumulative impact related to a conflict with a land use plan, policy, or regulation adopted for the purpose of mitigating an environmental impact.

Upon completion of the proposed project, the project would not physically divide an established community and sidewalk closures during construction would be temporary. Furthermore, even if the proposed Marina Improvement and Remediation Project were to be under construction at the same time as the proposed project, at approximately 830 feet from the project site, the proposed project would not have the potential to combine with the Marina Improvement Project to result in a significant physical environmental impact related to dividing an established community. Therefore, there would be no impact related to cumulative land use and planning impacts and no mitigation would be required.

Topics:	Potentially Significant Impact	Less than Significant with Mitigation Incorporated	Less than Significant Impact	No Impact	Not Applicable
E.3. POPULATION AND HOUSING. Would the project:					
a) Induce substantial unplanned population growth in an area, either directly (for example, by proposing new homes and businesses) or indirectly (for example, through extension of roads or other infrastructure)?	☐	☐	☒	☐	☐
b) Displace substantial numbers of existing people or housing units, necessitating the construction of replacement housing?	☐	☐	☒	☐	☐

Impact PH-1: The proposed project would not induce substantial unplanned population growth, either directly or indirectly. ***(Less than Significant)***

In general, a project would be considered growth-inducing if its implementation would result in substantial unplanned population increases, either through the development of new homes and businesses or through the construction of infrastructure, such as the extension of roads, that could lead to substantial new development.

Construction of the proposed project is anticipated to occur over approximately 29 months. The number of temporary construction workers would vary throughout the construction duration depending on the specific construction phase. Construction of the proposed project would not cause substantial population growth or a substantial increase in housing demand for workers in the region. It is anticipated that construction employees who are not already living in San Francisco would likely commute from their residences elsewhere in or outside the Bay Area rather than permanently relocate to San Francisco, as is typical for employees in the construction field. Therefore, construction of the proposed project would not cause a substantial increase in the population of the City or region.

The proposed project would increase the number of residential care suites on the project site from 86 to 109, for an increase of 23 suites. Of the total 109 suites, approximately 10 may have double occupancy; therefore, a total residential population of 119 is anticipated, or an increase of up to 33 residents compared to 86 residents under existing conditions. At project completion, a total of 75 staff members are expected to be employed at the site, which would be an increase of 22 staff members as compared to existing conditions.

The Association of Bay Area Governments (ABAG) prepares projections of employment and housing growth for the Bay Area. The latest projections were prepared as part of Plan Bay Area 2050, adopted by ABAG and the Metropolitan Transportation Commission in 2021. ABAG's growth projections anticipate that by 2050 San Francisco will have 578,000 households (or a population of approximately 1,364,080 persons) and 918,000 employees.[8, 9]

The proposed project is intended to serve the existing demand for residential care services within the community. Current and future elderly individuals who are served by the residential care facility would likely come from within San Francisco and surrounding communities, as would employees, who would continue to commute from current and future housing in San Francisco and surrounding communities. The project would also be located in a developed urban area with available access to necessary infrastructure and services (transportation, utilities, schools, parks, hospitals, etc.). Since the project site is located in an established urban neighborhood and is not an infrastructure project, it would not indirectly induce substantial population growth. This impact is less than significant, and no mitigation measures are required.

Impact PH-2: **The proposed project would not displace substantial numbers of existing people or housing units, necessitating the construction of replacement housing.** ***(Less than Significant)***

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[8] Metropolitan Transportation Commission and Association of Bay Area Government, Plan Bay Area 2050: The Final Blueprint: Growth Pattern: Projected Household and Job Growth, By County: San Francisco. Updated January 21, 2021. Available online at: https://www.planbayarea.org/sites/default/files/FinalBlueprintRelease_December2020_GrowthPattern_Jan2021Update.pdf. Accessed April 12, 2024.

[9] Population is estimated based the total number of households projected as part of the Plan Bay Area 2050 multiplied by the citywide average persons per household from the U.S. Census for San Francisco County, currently 2.36 persons per household. Available online at: https://www.census.gov/quickfacts/sanfranciscocountycalifornia. Accessed April 12, 2024.

A total of six occupied suites are within the two buildings that would be demolished. Residents in these suites would be relocated to vacant suites elsewhere within the facility while demolition takes place. During later stages of construction, existing residents may be moved to new suites created or to other more recently vacated suites as their suites are renovated. At project completion, the residential care facility would provide space for up to 33 additional residents in the 23 new care suites. Therefore, the proposed project would not permanently displace or relocate any of the current residents of the existing residential care facility off-site and would not permanently displace a substantial number of people such that replacement housing would need to be constructed elsewhere. This impact is less than significant, and no mitigation measures are required.

Impact C-PH-1: The proposed project, in combination with cumulative projects, would not result in a significant cumulative impact related to population and housing. ***(Less than Significant)***

The cumulative context for the population and housing topic is the City and County of San Francisco. As discussed above, ABAG projects that by 2050 San Francisco will have 578,000 households (or a population of approximately 1,364,080 persons) and 918,000 employees.[10] According to census information (based on 2020 data) San Francisco's population is 873,965 with 684,969 employees. As of the third quarter of 2023, approximately 73,934 net new housing units are in the development pipeline, i.e., are either under construction, have building permits approved or filed, or applications filed, including remaining phases of major multi-phased projects.[11] Conservatively assuming that every housing unit in the pipeline is developed and at 100 percent occupancy (no vacancies), the pipeline (which includes the proposed project) would accommodate an additional 73,934 households, or an increased population of approximately 174,484 people.[12] As shown in **Table E.3-1, Citywide Development Pipeline Projections as Compared to ABAG Projections to 2050**, cumulative household (1,048,449 residents) growth based on the development pipeline is below the ABAG projections (1,364,080 residents) for planned growth in San Francisco. Therefore, the proposed project in combination with citywide development would not result in significant cumulative environmental effects associated with inducing unplanned population growth or displacing substantial numbers of people or housing units, necessitating the construction of replacement housing elsewhere and cumulative population and housing impacts would be less than significant. No mitigation measures are required.

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[10] MTC/ABAG. Forecasting and Modeling Report. October 2021. Available online at: https://planbayarea.org/sites/default/files/documents/Plan_Bay_Area_2050_Forecasting_Modeling_Report_October_2021.pdf. Accessed June 6, 2024.

[11] San Francisco Planning Department, 2023 Q3 Development Pipeline, available at https://sfplanning.org/project/pipeline-report#current dashboard, accessed April 12, 2024.

[12] Population is estimated based the total number of households projected as part of the Plan Bay Area 2050 multiplied by the citywide average persons per household from the U.S. Census for San Francisco County, currently 2.36 persons per household. Available online at: https://www.census.gov/quickfacts/sanfranciscocountycalifornia. Accessed April 12, 2024.

Table E.3-1 Citywide Development Pipeline Projections as Compared to ABAG Projections to 2050

Data Source	Households/Units	Population/Residents (assumes 2.36 persons/ household per Census Data)
2023 Q3 Development Pipeline	73,934 units	174,484
2020 Census	N/A	873,965
Cumulative Total Population/Jobs	N/A	1,048,449
ABAG 2050 Projections	N/A	1,364,080
Pipeline Development within ABAG 2050 Projection?	N/A	Yes. Cumulative development is within planned growth

Note: References to information presented in this table are included in the text above.
N/A = not applicable

Topics:	Potentially Significant Impact	Less than Significant with Mitigation Incorporated	Less than Significant Impact	No Impact	Not Applicable
E.4. CULTURAL RESOURCES. Would the project:					
a) Cause a substantial adverse change in the significance of a historical resource pursuant to §15064.5, including those resources listed in article 10 or article 11 of the San Francisco Planning Code?	☒	☐	☐	☐	☐
b) Cause a substantial adverse change in the significance of an archeological resource pursuant to §15064.5?	☐	☒	☐	☐	☐
c) Disturb any human remains, including those interred outside of formal cemeteries?	☐	☒	☐	☐	☐

Historical resources are those properties that meet the definitions in section 21084.1 of the CEQA statute and section 15064.5 of the CEQA Guidelines. Historical resources include properties listed in, or formally determined eligible for listing in, the California Register of Historical Resources (California Register) or in an adopted local register. Historical resources also include resources identified as significant in a historical resource survey that meet certain criteria. Additionally, properties that are not listed but are otherwise determined to be historically significant, based on substantial evidence, would also be considered historical resources. The significance of a historical resource is materially impaired when a "project demolishes or

materially alters, in an adverse manner, those physical characteristics of a historical resource that convey its historical significance." In evaluating whether the proposed project would cause a substantial adverse change in the significance of a historical resource, the lead agency must first determine whether the existing buildings on the project site are historical resources.

A property may be considered a historical resource if it meets any of the California Register criteria related to: (1) events; (2) persons; (3) architecture; or (4) information potential, that make it eligible for listing in the California Register, or if it is considered a contributor to a potential historic district. Additionally, CEQA requires lead agencies to consider whether projects will impact "unique archeological resources." Public Resources Code section 21083.2, subdivision (g), states that 'unique archeological resource' means an archeological artifact, object, or site about which it can be clearly demonstrated that, without merely adding to the current body of knowledge, there is a high probability that it meets any of the following criteria: (1) contains information needed to answer important scientific research questions and that there is a demonstrable public interest in that information; (2) has a special and particular quality such as being the oldest of its type or the best available example of its type; and (3) is directly associated with a scientifically recognized important prehistoric or historic event or person. An archeological site may be considered an historical resource if it is significant in the architectural, engineering, scientific, economic, agricultural, educational, social, political, military or cultural annals of California (Public Resources Code section 5020.1(j)) or if it meets the criteria for listing on the California Register (14 California Code of Regulations section 4850).

Comments received on the NOP related to cultural resources included concerns about the scale of the new buildings and their relationship to the Julia Morgan Building. Commenters stated that the new buildings would reduce the views of the Julia Morgan Building due to their height and their lack of continuity with the architectural style of the Julia Morgan Building and would detract from the historic nature of the building. Additionally, commenters expressed concern that the new buildings would diminish the green space in front of the Julia Morgan Building by their sheer size. Comments received in response to the NOP that concern the proposed project's impact on historic architectural resources are summarized in Section 3.B, Historic Resources, of the draft EIR. Comments received on the NOP related to archeological resources include concerns about the potential for the project to harm archeological and tribal cultural resources; these concerns are addressed below.

Impact CR-1: **The proposed project may cause a substantial adverse change in the significance of a historical resource pursuant to CEQA Guidelines §15064.5, including those resources listed in article 10 or article 11 of the San Francisco Planning Code.** ***(Potentially Significant)***

Potential impacts to historic architectural resources are evaluated in the EIR under Impact CR-1 and are not further discussed in this section.

Impact CR-2: **The proposed project could cause a substantial adverse change in the significance of an archeological resource.** ***(Less than Significant with Mitigation)***

In addition to assessing impacts to archeological resources that would meet the requirements for listing as a historical resource, impacts to unique archeological resources are also considered under CEQA, as described in section 15064.5 of the CEQA Guidelines, and CEQA section 21083.2. If an archeological site does not meet the criteria for inclusion in the California Register but does meet the definition of a unique archeological resource as outlined in CEQA section 21083.2, it is entitled to special protection under CEQA. A unique archeological resource implies an archeological artifact, object, or site about which it can be clearly demonstrated that – without merely adding to the current body of knowledge – there is a high probability that it meets one of the following criteria:

- The archeological artifact, object, or site contains information needed to answer important scientific questions, and there is a demonstrable public interest in that information;
- The archeological artifact, object, or site has a special and particular quality, such as being the oldest of its type or the best available example of its type; or
- The archeological artifact, object, or site is directly associated with a scientifically recognized important prehistoric or historic event or person.

A non-unique archeological resource indicates an archeological artifact, object, or site that does not meet the above criteria. Impacts to non-unique archeological resources and resources that do not qualify for listing in the California Register of Historical Resources receive no further consideration under CEQA. It should also be noted that a disturbed or secondarily deposited Native American midden is presumed to be significant for its information potential under CEQA, and it is legally significant unless or until it is demonstrated to the contrary.

A *preliminary archeological review* was completed by the planning department for the proposed project.[13] Although there is previous disturbance to the project site, the project site is underlain by fill and dune sand, which is considered to have high sensitivity for Native American archeological resources. The fill may have isolated historic era materials, but significant historic era archeological resources are not anticipated in the fill or dune sand based on the parcel's late date of development. There are four Native American archeological sites recorded within ¼ mile of the project site, which includes a Native American resource located nearby to the north. The presence of a Native American archeological site to north of the project suggests that there could be similar resources present in the project parcel. Like the proposed project site, the previously identified area was also a sand dune at about 60–80 feet above low mean sea level in 1857 and about 30–40 feet of the dune was graded during the late 19th century. This may indicate that the existing nearby site was redeposited during the grading activities or that it was *in situ* (in the original place) and deeply buried below the sand dune. Therefore, even though the project site was disturbed, the fill and underlaying dune sand is considered to have high sensitivity for Native American archeological resources. With an excavation depth to approximately 15 feet below ground surface for the new basement level, the proposed project would have the potential to adversely affect Native American archeological resources. Therefore, the project soil disturbance could impact potential Native American archeological resources.

As such, if archeological resources or Native American archeological resources were disturbed at the project site, such an impact would be considered significant. To reduce impacts to significant archeological resources, **Mitigation Measure M-CR-2, Archeological Monitoring**, has been identified. Mitigation Measure M-CR-2 would require development of an archeological monitoring plan, archeological training and cultural sensitivity training of construction crews, monitoring during demolition activities and monitoring during

[13] San Francisco Planning Department. Environmental Planning Preliminary Archaeological Review. July 20, 2023.

excavation of the new basement by both an archeologist and Native American monitor. In addition, the mitigation measure outlines procedures if resources of importance are found, beginning with preservation in place, and the preparation of an archeological resources recovery plan and public interpretation plan, if said preservation is not possible. Mitigation Measure M-CR-2 is proven to either avoid or lessen impacts to archeological resources through monitoring, stop work procedures and investigation and interpretation of significant resources.

Mitigation Measure M-CR-2: Archeological Monitoring

Archeological Monitoring Program. The purpose of the archeological monitoring program will be to observe soil disturbing construction activities in order to determine if significant archeological resources are present at the project site and to ensure significant archeological resources are appropriately protected or treated. The project sponsor shall retain the services of an archeological consultant from the rotational Qualified Archeological Consultants List (QACL) maintained by the planning department. After the first project approval action or as directed by the Environmental Review Officer (ERO), the project sponsor shall contact the department archeologist to obtain the names and contact information for the next three archeological consultants on the QACL.

The archeological consultant shall undertake an archeological monitoring program as specified herein. The archeological consultant's work shall be conducted in accordance with this measure at the direction of the Environmental Review Officer (ERO). All plans and reports prepared by the consultant as specified herein shall be submitted first and directly to the ERO for review and comment and shall be considered draft reports subject to revision until final approval by the ERO. In addition, the consultant shall be available to conduct a data recovery program if required pursuant to this measure. Archeological data recovery programs required by this measure could suspend construction of the project for up to a maximum of four weeks. At the direction of the ERO, the suspension of construction can be extended beyond four weeks only if such a suspension is the only feasible means to reduce to a less than significant level potential effects on a significant archeological resource as defined in CEQA Guidelines section 15064.5 (a)(c).

Archeological Monitoring Plan. The archeological monitoring program shall be conducted in accordance with the approved Archeological Monitoring Plan (AMP). The archeological consultant, Native American representatives, and the ERO shall consult on the scope of the AMP, which shall be approved by the ERO prior to any project-related soils disturbing activities commencing. The ERO in consultation with the project archeologist and Native American representatives shall determine what project soils disturbing activities shall be archeologically monitored. The AMP shall be submitted first and directly to the ERO for review and comment and shall be considered a draft subject to revision until final approval by the ERO. The

archeologist shall implement the monitoring as specified in the approved AMP during construction. The archeological and Native American monitors shall be present on the project site according to a schedule agreed upon by the archeological consultant, Native American representative, and the ERO until the ERO has determined that project construction activities could have no effects on significant archeological deposits.

The AMP shall identify the property types of the expected archeological resource(s) that potentially could be adversely affected by the proposed project, lay out what scientific/ historical research questions are applicable to the expected resource, Native American cultural significance of the expected resources, what data classes the resource is expected to possess, and how the expected data classes would address the applicable research questions.

Archeological and Cultural Sensitivity Training. The archeological consultant and local Native American representative shall provide a training to the prime contractor; to any project subcontractor (including demolition, excavation, grading, foundation, pile driving, etc. firms); or utilities firm involved in soils-disturbing activities within the project site. The training shall advise all project contractors to be on the alert for evidence of the presence of the expected archeological resource(s), of how to identify the evidence of the expected resource(s), and of the appropriate protocol in the event of apparent discovery of an archeological resource by the construction crew. The Native American representative at their discretion shall provide a Native American cultural sensitivity training.

Collection During Archeological Monitoring. The monitor is authorized to collect soil samples and artifactual/ecofactual material as warranted for analysis. Ecofacts are biological or geological objects or deposits related to human activity, but not manufactured by humans. Examples of ecofactual materials include animal bones, charcoal, plants, and pollen that can tell us about past diet or environments.

Paleoenvironmental Analysis of Paleosols. When a submerged paleosol is identified during monitoring, irrespective of whether cultural material is present, samples shall be extracted and processed for dating, flotation for paleobotanical analysis, and other applicable special analyses pertinent to identification of possible cultural soils and for environmental reconstruction. The results of analysis of collected samples shall be reported on in results reports.

Discovery Treatment Determination. If an intact archeological deposit is encountered, all soils disturbing activities in the vicinity of the deposit shall cease. The archeological monitor shall be empowered to temporarily redirect demolition/excavation/pile driving/construction crews and heavy equipment until the deposit is evaluated. The archeological consultant shall

immediately notify the ERO of the encountered archeological deposit. The archeological consultant in coordination with the Native American monitor shall, after making a reasonable effort to assess the identity, integrity, and significance of the encountered archeological deposit, present the findings of this assessment to the ERO.

If the ERO in consultation with the archeological consultant and Native American monitor determines that a significant archeological resource or tribal cultural resource is present and that the resource could be adversely affected by the proposed project, the ERO, in consultation with the project sponsor, shall determine whether preservation of the resource in place is feasible. If so, the proposed project shall be re-designed so as to avoid any adverse effect on the significant archeological resource and the archeological consultant shall prepare an archeological resource preservation plan, which shall be implemented by the project sponsor during construction. The consultant shall submit a draft preservation plan to the planning department for review and approval. If preservation in place is not feasible, a data recovery program shall be implemented, unless the ERO determines that the archeological resource is of greater interpretive than research significance and that interpretive use of the resource is feasible.

Consultation with Descendant Communities. On discovery of an archeological site associated with descendant Native Americans, the Overseas Chinese, or other potentially interested descendant group an appropriate representative of the descendant group and the ERO shall be contacted. The representative of the descendant group shall be given the opportunity to monitor archeological field investigations of the site and to offer recommendations to the ERO regarding appropriate archeological treatment of the site, of recovered data from the site, and, if applicable, any interpretative treatment of the associated archeological site. The representative of the descendant group at their request may provide a cultural sensitivity training to soil-disturbing construction contractors. The ERO and project sponsor shall work with the tribal representative or other representatives of descendant communities to identify the scope of work to fulfill the requirements of this mitigation measure, which may include participation in preparation and review of deliverables (e.g., plans, interpretive materials, artwork). Representatives shall be compensated for their work as identified in the agreed upon scope of work. A copy of the Archeological Resources Report (ARR) (described further below) shall be provided to the representative of the descendant group.

Archeological Data Recovery Plan. An archeological data recovery program shall be conducted in accordance with an Archeological Data Recovery Plan (ADRP) if all three of the following apply: (1) a resource has potential to be significant, (2) preservation in place is not feasible, and (3) the ERO determines that an archeological data recovery program is warranted. The

project archeological consultant, local Native American representative, project sponsor, and ERO shall meet and consult on the scope of the ADRP. The archeological consultant in coordination with the Native American representative shall prepare a draft ADRP that shall be submitted to the ERO for review and approval. The ADRP shall identify how the proposed data recovery program will preserve the significant information the archeological resource is expected to contain and will coordinate with Native American representative(s) to ensure that cultural values are addressed. That is, the ADRP will identify what scientific/historical research questions are applicable to the expected resource, what data classes the resource is expected to possess, and how the expected data classes would address the applicable research questions. Data recovery, in general, should be limited to the portions of the historical property that could be adversely affected by the proposed project. Destructive data recovery methods shall not be applied to portions of the archeological resources if nondestructive methods are practical or if the Native American representative does not approve of destructive methods.

The scope of the ADRP shall include the following elements:

- **Field Methods and Procedures.** Descriptions of proposed field strategies, procedures, and operations.

- **Cataloguing and Laboratory Analysis.** Description of selected cataloguing system and artifact analysis procedures.

- **Discard and Deaccession Policy.** Description of and rationale for field and post-field discard and deaccession policies.

- **Security Measures.** Recommended security measures to protect the archeological resource from vandalism, looting, and non-intentionally damaging activities.

- **Final Report.** Description of proposed report format and distribution of results.

- **Curation.** Description of the procedures and recommendations for the curation of any recovered data having potential research value, identification of appropriate curation facilities, and a summary of the accession policies of the curation facilities.

Cultural Resources Public Interpretation Plan. The project archeological consultant shall submit a Cultural Resources Public Interpretation Plan (CRPIP) if a significant archeological resource is discovered during a project. As directed by the ERO, a qualified design professional with demonstrated experience in displaying information and graphics to the public in a visually interesting manner, local artists, or community group may also be required

to assist the project archeological consultant in preparation of the CRPIP. If the resource to be interpreted is a tribal cultural resource, the CRPIP shall be prepared in consultation with and developed with the participation of local Native American tribal representatives. The CRPIP shall describe the interpretive product(s), locations or distribution of interpretive materials or displays, the proposed content and materials, the producers or artists of the displays or installation, and a long-term maintenance program. The CRPIP shall be sent to the ERO for review and approval. The CRPIP shall be implemented prior to occupancy of the project.

Human Remains and Funerary Objects. The treatment of human remains and funerary objects discovered during any soil-disturbing activity shall comply with applicable State and Federal laws. This shall include immediate notification of the Office of the Chief Medical Examiner of the City and County of San Francisco (Medical Examiner). The ERO also shall be notified immediately upon the discovery of human remains. In the event of the Medical Examiner's determination that the human remains are Native American remains, the Medical Examiner shall notify the California State Native American Heritage Commission (NAHC), which will appoint a Most Likely Descendant (MLD). The MLD will complete his or her inspection of the remains and make recommendations or preferences for treatment within 48 hours of being granted access to the site (Public Resources Code section 5097.98(a)).

The landowner may consult with the project archeologist and project sponsor and shall consult with the MLD and ERO on preservation in place or recovery of the remains and any scientific treatment alternatives. The landowner shall then make all reasonable efforts to develop an Agreement with the MLD, as expeditiously as possible, for the treatment and disposition, with appropriate dignity, of human remains and funerary objects (as detailed in CEQA Guidelines section 15064.5(d)). Per Public Resources Code 5097.98 (b)(1), the Agreement shall address and take into consideration, as applicable and to the degree consistent with the wishes of the MLD, the appropriate excavation, removal, recordation, scientific analysis, custodianship prior to reinterment or curation, and final disposition of the human remains and funerary objects. If the MLD agrees to scientific analyses of the remains and/or funerary objects, the archeological consultant shall retain possession of the remains and funerary objects until completion of any such analyses unless otherwise specified in the Agreement, after which the remains and funerary objects shall be reinterred or curated as specified in the Agreement.

Both parties are expected to make a concerted and good faith effort to arrive at an Agreement, consistent with the provisions of Public Resources Code 5097.98. However, if the landowner and the MLD are unable to reach an Agreement, the landowner, ERO, and project sponsor shall ensure that the

remains and/or mortuary materials are stored securely and respectfully until they can be reinterred on the property, with appropriate dignity, in a location not subject to further or future subsurface disturbance, consistent with state law.

Treatment of historic-period human remains and of associated or unassociated funerary objects discovered during any soil-disturbing activity, additionally, shall follow protocols laid out in the project's archeological treatment documents, and in any related agreement established between the Medical Examiner and the ERO. The project archeologist shall retain custody of the remains and associated materials while any scientific study scoped in the treatment document is conducted and the remains shall then be curated or respectfully reinterred by arrangement on a case-by-case basis.

Archeological Resources Report. Whether or not significant archeological resources are encountered, the archeological consultant shall submit a written report of the findings of the monitoring program to the ERO. The archeological consultant shall submit a draft Archeological Resources Report (ARR) to the ERO that evaluates the historical significance of any discovered archeological resource, describes the archeological and historical research methods employed in the archeological testing/monitoring/data recovery program(s) undertaken, and if applicable, discusses curation arrangements. Formal site recordation forms (CA DPR 523 series) shall be attached to the ARR as an appendix.

Once approved by the ERO, copies of the ARR shall be distributed as follows: California Historical Resources Information System, Northwest Information Center (NWIC) shall receive one (1) copy and the ERO shall receive a copy of the transmittal of the approved ARR to the NWIC. The environmental planning division of the planning department shall receive one (1) bound hardcopy of the ARR. Digital files that shall be submitted to the environmental planning division include an unlocked, searchable PDF version of the ARR, GIS shapefiles of the site and feature locations, any formal site recordation forms (CA DPR 523 series), and/or documentation for nomination to the National Register of Historic Places/California Register of Historical Resources. The PDF ARR, GIS files, recordation forms, and/or nomination documentation should be submitted via USB or other stable storage device. If a descendant group was consulted during archeological treatment, a PDF of the ARR shall be provided to the representative of the descendant group.

Curation. Significant archeological collections and paleoenvironmental samples of future research value shall be permanently curated at an established curatorial facility or Native American cultural material shall be returned to local Native American tribal representatives at their discretion.

The facility shall be selected in consultation with the ERO. Upon submittal of the collection for curation the sponsor or archeologist shall provide a copy of the signed curatorial agreement to the ERO.

With implementation of Mitigation Measure M-CR-2, in the event that archeological resources are discovered, preservation in place of the resource or implementation of a data recovery and/or public interpretation plan is required. Therefore, the significant information that the archeological resource(s) provides would either be preserved or documented. With implementation of these measures, the proposed project's impact on prehistoric or historic archeological resources would be less than significant.

Impact CR-3: The proposed project could disturb human remains, including those interred outside of formal cemeteries. ***(Less than Significant with Mitigation)***

Archeological resources may include human burials. Human burials outside of formal cemeteries often occur in prehistoric or historic period archeological contexts. There are no human burials, including those interred outside of formal cemeteries, located in the immediate vicinity of the project site. However, human remains may be present in prehistoric archeological deposits, and also may potentially be found in isolation. In the event that human remains are encountered during construction, any inadvertent damage to human remains would be considered a significant impact. To reduce this impact to a less than significant level, Mitigation Measure M-CR-2 details procedures for the appropriate treatment of human remains if encountered during construction.

Furthermore, the treatment of human remains and of associated or unassociated funerary objects must comply with applicable state laws. This includes immediate notification to the county coroner (San Francisco Office of the Chief Medical Examiner) and, in the event of the coroner's determination that the human remains are Native American, notification of the California Native American Heritage Commission, which shall appoint a most likely descendent.[14] With implementation of Mitigation Measure M-CR-2 and for the above reasons, the proposed project would have a less-than-significant impact related to the potential disturbance of human remains.

Impact C-CR-1: The proposed project, in combination with cumulative projects, may cause a substantial adverse change in the significance of a historical resource. ***(Potentially Significant)***

Potential cumulative impacts to historic architectural resources are evaluated in the draft EIR under Impact C-CR-1 and are not further discussed in this section.

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[14] California Public Resources Code section 5097.98.

Impact C-CR-2: The proposed project, in combination with cumulative projects, would not result in a significant cumulative impact related to archeological resources or human remains. ***(Less than Significant)***

The cumulative context for archeological resources and human remains is generally site specific and limited to the immediate construction area or area immediately adjacent to the construction area. The only cumulative project within the vicinity of the project site is the Marina Improvement and Remediation Project, which is approximately 830 feet from the project site and is unlikely to impact the same known or yet to be identified archeological resources as the construction activities occur within the project sites. As such, the proposed project, in combination with other reasonably foreseeable projects, would not result in a cumulative impact on archeological resources or human remains. No mitigation measures are required.

Topics:	Potentially Significant Impact	Less than Significant with Mitigation Incorporated	Less than Significant Impact	No Impact	Not Applicable
E.5. TRIBAL CULTURAL RESOURCES. Would the project:					
a) Cause a substantial adverse change in the significance of a tribal cultural resource, defined in Public Resources Code section 21074 as either a site, feature, place, or cultural landscape that is geographically defined in terms of the size and scope of the landscape, sacred place, or object with cultural value to a California Native American tribe, and that is:					
i) Listed or eligible for listing in the California Register of Historical Resources, or in a local register of historical resources as defined in Public Resources Code section 5020.1(k), or	☐	☒	☐	☐	☐
ii) A resource determined by the lead agency, in its discretion and supported by substantial evidence, to be significant pursuant to criteria set forth in subdivision (c) of Public Resources Code section 5024.1. In applying the criteria set forth in subdivision (c) of Public Resources Code section 5024.1, the lead agency shall consider the significance of the resource to a California Native American tribe.	☐	☒	☐	☐	☐

Comments received in response to the NOP expressed concerns regarding potential impacts to tribal cultural resources from project construction.

Impact TC-1: The proposed project could cause a substantial adverse change in the significance of a tribal cultural resource that is listed or eligible for listing in the California Register of Historical Resources, or in a local register of historical resources or that is a resource determined by the lead agency, in its discretion and supported by substantial evidence, to be significant. (*Less than Significant with Mitigation*)

CEQA section 21074.2 requires the CEQA lead agency to consider the effects of a project on tribal cultural resources. As defined in section 21074, tribal cultural resources are sites, features, places, cultural landscapes, sacred places, and objects with cultural value to a California Native American tribe that are listed, or determined to be eligible for listing, on the national, state, or local register of historic resources.

Pursuant to CEQA section 21080.3.1(d), on July 20, 2023, the planning department contacted Native American individuals and organizations for the San Francisco area, providing a description of the project and requesting comments on the identification, presence, and significance of tribal cultural resources in the project vicinity. During the comment period, one Native American tribal representative responded to the tribal cultural resources notification requesting the following, as there is a nearby Native American archeological site:

- All crews, individuals and personnel who will be moving any earth be trained in cultural sensitivity.
- A qualified California trained archaeological monitor be present during any earth movement.
- A qualified Native American monitor be present during any earth movement.

The department reached out to the Native American tribal representative to request if they would like to schedule a consultation meeting or had additional concerns or recommendations. No additional consultation was requested and no further concerns or recommendations were received. All of the above requests have been included in Mitigation Measure M-CR-2, Archeological Monitoring in Section E.4, Cultural Resources.

As discussed in Impact CR-2 in Section E.4, Cultural Resources, the project has the potential to adversely affect Native American archeological resources and a known Native American resource is in very close proximity to the project site.

In San Francisco, based on tribal consultation undertaken by the City and County of San Francisco in 2015 and ongoing consultation including the Native American recommendations for the project site, Native American archeological resources are considered to be tribal cultural resources. Impact CR-2 determined that the proposed project's excavation could result in a significant impact to Native American archeological resources should any be encountered. Therefore, the proposed project also has the potential to encounter tribal cultural resources during soil disturbing activities. Any inadvertent damage to tribal cultural resources would be considered a significant impact.

Beyond the identification of Native American archeological resources as tribal cultural resources, Native American tribal consultation undertaken for the Housing Element 2022 Update Environmental Impact Report identified both San Francisco's modern shorelines and the location of historical waterways as potential tribal cultural resources. The project site is not located on the modern San Francisco Bay and ocean shoreline or on the shores of remnant creek channels, lakes, or ponds that are characterized by

above-ground water today. The project site is not located directly adjacent to known historical locations of creek channels, ponds, marshes, and other wetlands. The project area is not in an area that was submerged by water due to natural environmental change between about 8,000 years ago and 170 years ago. Based on this information, the project site does not appear to be a tribal cultural resource per the above criteria.

Nevertheless, as discussed above, the project site is sensitive for Native American archeological resources and is located near known Native American archeological resources, which are considered tribal cultural resources by local Native American representatives due to the cultural value of specific areas of traditional habitation by their ancestors. While proposed project activities may result in a significant impact to tribal cultural resources, the combination of M-CR-2, Archeological Monitoring in Section E.4, Cultural Resources and **Mitigation Measure M-TC-1, Tribal Cultural Resources Program**, below, has been identified to reduce impacts to tribal cultural resources encountered during construction activities to less-than-significant levels.

Mitigation Measure M-TC-1: Tribal Cultural Resources Program

Preservation in Place. In the event of the discovery of a tribal cultural resource, the Environmental Review Officer (ERO), the project sponsor, and the tribal representative shall consult to determine whether preservation in place would be feasible and effective. Coordination shall take place with local Native American representatives, including the Association of Ramaytush Ohlone and other interested Ohlone parties. If it is determined that preservation-in-place of the tribal cultural resource would be both feasible and effective, then the project sponsor in consultation with local Native American representatives and the ERO shall prepare a tribal cultural resource preservation plan (TCRPP). If the tribal cultural resource is an archeological resource of Native American origin, the archeological consultant shall prepare an archeological resource preservation plan (ARPP) in consultation with the local Native American representative, which shall be implemented by the project sponsor during construction. The consultant shall submit a draft ARPP to the planning department for review and approval.

Public Interpretation Land Acknowledgement. The project sponsor shall, in consultation with local Native American representatives, design and install public interpretation at the project site acknowledging that this project is built on traditional Ohlone land. The interpretive program may include a combination of artwork, preferably by local Native American artists, educational panels or other informational displays or interpretative elements. Within a reasonable timeframe, the project sponsor shall prepare an interpretation plan in consultation with affiliated local Native American representatives and the ERO to guide the acknowledgment program. The plan shall identify, as appropriate, the proposed location for the acknowledgement, the proposed content and materials, the producers or artists, and a long-term maintenance program. If Native American cultural resources are found during Project construction, interpretation of these resources may be included in the interpretative program in consultation with

the local Native American representatives and the ERO. The detailed content, media, and other characteristics of such an interpretive program shall be coordinated and approved by the local Native American representatives and the ERO. The final components of the public interpretation program shall be constructed and an agreed upon schedule for their installation and a plan for their maintenance shall be finalized prior to issuance of a Temporary Certificate of Occupancy. Tribal representatives shall be compensated for their work as identified in the agreed upon scope of work. Mitigation Measure M-TC-1 would require preservation in place of the tribal cultural resources if determined effective and feasible and coordination with the affiliated Native American tribal representatives to prepare and implement a public land acknowledgement program regarding tribal cultural resources. Therefore, with implementation of Mitigation Measure M-TC-1, the proposed project's impact on tribal cultural resources would be less than significant.

Impact C-TC-1: The proposed project, in combination with cumulative projects, would not result in a significant cumulative impact on tribal cultural resources. ***(Less than Significant)***

The cumulative context for tribal cultural resources is generally site specific. However, as tribal cultural resources take into consideration the cultural value and significance of a location of past or current activities and life ways, the tribal cultural resources may expand beyond the boundaries of identified physical materials, such as individual archeological site boundaries. However, the only cumulative project within the vicinity of the project site is the Marina Improvement and Remediation Project, which is located approximately 830 feet from the project site. Similar to the discussion above in Impact C-CR-2, in Section E.4, Cultural Resources, impacts of the proposed project would be unlikely to combine with impacts of cumulative development to result in cumulative impacts to tribal cultural resources. Therefore, cumulative impacts to tribal cultural resources would be less than significant.

Topics:	Potentially Significant Impact	Less than Significant with Mitigation Incorporated	Less than Significant Impact	No Impact	Not Applicable
E.6. TRANSPORTATION AND CIRCULATION. Would the project:					
a) Involve construction that would require a substantially extended duration or intensive activity, and the effects would create potentially hazardous conditions for people walking, bicycling, or driving, or public transit operations; or interfere with emergency access or accessibility for people walking or bicycling; or substantially delay public transit?	☐	☐	☒	☐	☐
b) Create potentially hazardous conditions for people walking, bicycling, or driving or public transit operations?	☐	☐	☒	☐	☐
c) Interfere with accessibility of people walking or bicycling to and from the project site, and adjoining areas, or result in inadequate emergency access?	☐	☐	☒	☐	☐
d) Substantially delay public transit?	☐	☐	☒	☐	☐
e) Cause substantial additional vehicle miles traveled or substantially induce additional automobile travel by increasing physical roadway capacity in congested areas (i.e., by adding new mixed-flow travel lanes) or by adding new roadways to the network?	☐	☐	☒	☐	☐
f) Result in a loading deficit, and the secondary effects would create potentially hazardous conditions for people walking, bicycling, or driving; or substantially delay public transit?	☐	☐	☒	☐	☐
g) Result in a substantial vehicular parking deficit, and the secondary effects would create potentially hazardous conditions for people walking, bicycling, or driving; or interfere with accessibility for people walking or bicycling or inadequate access for emergency vehicles; or substantially delay public transit?	☐	☐	☐	☐	☒

This evaluation of potential transportation and circulation impacts was prepared in accordance with the department's San Francisco Transportation Impact Analysis Guidelines for Environmental Review (SF

Guidelines).[15] Additional technical information related to project trip generation, freight loading, and passenger loading is provided in Appendix E of the draft EIR.

As discussed under "Aesthetics and Parking" discussion in Section E.1 above, the project would satisfy the eligibility criteria for a transit-oriented infill project under CEQA section 21099(d)(1), and thus the amount of parking shall not be considered in determining if a project has the potential for environmental effects. The SF Guidelines include a screening criterion for development projects to determine if a proposed project would result in a substantial parking deficit that could result in secondary environmental effects.[16] Development projects located within the department's map-based screening area for the VMT analysis would not create a substantial vehicle parking deficit, and therefore would not result in secondary effects. The map-based screening area refers to those areas of the City where existing VMT per capita is at least 15 percent below the regional average VMT per capita.[17] The project site is located within the map-based screening area and therefore, Topic E.6(g) is not applicable to the proposed project and is not discussed further in this initial study.

San Francisco Administrative Code Chapter 31 directs the planning department to identify environmental effects of a project using as its base the environmental checklist form set forth in Appendix G of the CEQA Guidelines. As it relates to transportation and circulation, Appendix G asks whether the project would:

- Conflict with a program plan, ordinance or policy addressing the circulation system, including transit, roadway, bicycle and pedestrian facilities;
- Conflict or be inconsistent with CEQA Guidelines Section 15064.3, subdivision (b);[18]
- Substantially increase hazards due to a geometric design feature (e.g., sharp curves or dangerous intersections) or incompatible uses; and
- Result in inadequate emergency access.

The planning department uses City-developed significance criteria to facilitate the transportation analysis and address the Appendix G checklist. The planning department separates the significance criteria into construction and operation.

Travel Demand

Localized trip generation of the total proposed project and the net new additions to the project site were calculated using a trip-based analysis and information included in the SF Guidelines developed by the planning department. The methodology for estimating trip generation and travel mode split (walk, drive, transit, etc.) using the SF Guidelines, relies on observational and intercept survey data collected from recently completed projects in San Francisco. The data collected to support updated trip generation rates and mode share were collected in 2016 and 2017, when transportation network companies (TNCs) were

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15 San Francisco Planning Department, Transportation Impact Analysis Guidelines for Environmental Review (February 2019, updated October 2019), https://sfplanning.org/project/transportation-impact-analysis-guidelines-environmental-review-update#impact-analysis-guidelines, accessed on May 7, 2024.

16 San Francisco Planning Department, Transportation Impact Analysis Guidelines, October 2019, Appendix O, Vehicular Parking, p.0-4. Available at https://default.sfplanning.org/publications_reports/TIA_Guidelines.pdf, accessed on May 7, 2024.

17 These areas are mapped in the San Francisco Transportation Information Map available at: https://sfplanninggis.org/TIM/. Accessed May 1, 2024.

18 CEQA Guidelines Section 15064.3, subdivision (B) states that transportation projects that reduce, or have no impact on, vehicle miles traveled should be presumed to cause a less than significant transportation impact.

widely in use, and therefore take into account estimates of the number of for-hire vehicles (taxis/TNCs) from new development.

The proposed project would include expansion and renovation of the existing Heritage on the Marina, a residential care facility. In total, the proposed project would add approximately 58,380 square feet of institutional use and increase the number of residential care suites by 23 from 86 to 109. The project would increase on-site employees by 22, resulting in a total of 75 employees. The total gross square footage of the proposed project would be 141,580. The proposed project would not result in a change in use or substantial increase in the number of residential care suites or employees compared to existing conditions.

Trip generation refers to the number of estimated trips people would take to and from the project site (person trips). These trips are broken down by mode, i.e., the estimated way or method people travel (e.g., walking, bicycling, transit). Auto trips are further broken down into vehicle trips, which account for average vehicle occupancy in the census tract in which the project site is located. The planning department's approach to analyzing the proposed project's trip generation is conservative, i.e., high, as the inputs for analysis were "residential units" and "office" as a proxy for the institutional use of the Heritage on the Marina residential care facility.

With the proposed project, the project site would generate an estimated 1,613 total daily person trips. Of the daily person trips, an estimated 611 person trips would be by auto, 142 person trips by Taxi or TNCs, 302 transit person trips, 360 walk person trips, and 51 bike person trips. Based on the expected mode share and average vehicle occupancy, the proposed project would generate 494 daily vehicle trips and 95 daily Taxi/TNC trips.[19] The p.m. peak hour person trips are summarized in **Table E.6-1, Total Travel Demand Estimate, PM Peak Vehicle Trips with Proposed Project**.

Table E.6-1 Total Travel Demand Estimate, PM Peak Vehicle Trips with Proposed Project

	Person Trips		Vehicle Trips	
Mode	Total	PM peak	Total	PM Peak
Auto	611	54	494	44
TNC/Taxi	142	13	95	8
Transit	302	27	--	--
Private Shuttle	146	13	--	--
Bike	51	5	--	--
Walk	360	329	--	--

[19] Daily person and vehicle trip totals may not add due to rounding; consistent with Planning Department 2019 Transportation Impact Analysis Guidelines.

Table E.6-1 Total Travel Demand Estimate, PM Peak Vehicle Trips with Proposed Project

Mode	Person Trips		Vehicle Trips	
	Total	PM peak	Total	PM Peak
Site Total with Proposed Project	**1613**	**144**	**588**	**52**
Total Net New Trips	**787**	**70**	**302**	**27**

NOTE: Travel Demand inputs: Total proposed project: 99 studio units, 10 one-bedroom units and 71,580 square feet of office (proxy for institutional) at 3400 Laguna Street, Placetype 2. Net new project: 23 studio units and 43,620 square feet of office (proxy for Institutional) at 3400 Laguna Street, Placetype 2.

As shown in Table E.6-1 above, with the proposed project, the project site would generate a total of 144 person trips (inbound and outbound) during the p.m. peak hour, with 70 of those person trips contributed by the proposed project's addition of 23 residential care suites and 43,620 square feet of institutional uses.[20] During the p.m. peak hour, the project site with the proposed project would generate an estimated 52 vehicle trips, with 27 of those trips contributed by the proposed project's additions. The City determined that the increases in the p.m. peak-hour volume of vehicle trips to and from the project site would be low and a transportation impact study would not be required.[21]

The proposed project's freight and commercial loading demand is presented in **Table E.6-2, Freight Loading Demand by Land Use**, Freight Loading Demand by Land Use. The proposed project would generate a loading demand of up to one loading space during the peak hour of freight loading activity.

Table E.6-2 Freight Loading Demand by Land Use

Land Use	Proposed Project Freight Loading Demand (Spaces)	
	Average Hour	Peak Hour
Institutional (Office used as proxy)	0.70	0.87
Residential	0.10	0.12
Rounded Total	**1**	**1**

SOURCES: San Francisco Planning Department, 2019 TIA Guidelines, https://sfplanning.org/project/transportation-impact-analysis-guidelines-environmental-review-update, accessed May 14, 2024.

[20] The proposed project would increase the institutional uses at the site by 58,830 gross square feet, which is inclusive of the 23 net new residential care suites that would be added. To more accurately calculate institutional use trip generation verses resident trip generation, the planning department separated living quarter uses from institutional uses by subtracting the average residential care suite size (70,000 square feet / 109 residential care suites = 642 square feet) times 23 new suites (642 * 23 = 14,766 residential square feet) from 58,830. The result was 43,620 (when rounded to the nearest ten).

[21] San Francisco Planning Department. Transportation Coordination Memo, 3400 Laguna Street, Heritage on the Marina, 2022-009819ENV. June 7, 2024.

The proposed project passenger loading space demand by land use is presented in **Table E.6-3, Passenger Loading Demand by Land Use**. The proposed project would generate a passenger loading demand of one passenger loading space during any given minute of the peak hour throughout the average peak period of loading activity.

Table E.6-3 Passenger Loading Demand by Land Use

	Proposed Project	
	Passenger Loading Demand (Spaces)	
Land Use	Peak Hour	Peak 15-minute
Institutional (Office used as proxy)	0.22	0.45
Residential (Studio units used as proxy)	0.05	0.10
Rounded Total	**1**	**1**

Sources: San Francisco Planning Department, 2019 TIA Guidelines, https://sfplanning.org/project/transportation-impact-analysis-guidelines-environmental-review-update, accessed May 14, 2024.

Comments received in response to the NOP regarding the proposed project's potential impact on the transportation and circulation system included concerns about additional congestion and potential impacts to nearby Muni lines. Additional comments detailed concerns regarding pedestrian safety, and commercial drop off and loading regulations on Bay Street.

Impact TR-1: The proposed project would not involve construction that would require a substantially extended duration or intensive activity that would create potentially hazardous conditions, interfere with emergency access or accessibility, or substantially delay public transit. ***(Less than Significant)***

The proposed project would be subject to the San Francisco Regulations for Working in San Francisco Streets (the blue book).[22] The blue book is prepared and regularly updated by the San Francisco Municipal Transportation Agency, under the authority derived from the San Francisco Transportation Code. It serves as a guide for contractors working in San Francisco streets. The blue book establishes rules and guidance so that construction work can be done safely and with the least possible interference with pedestrian, bicycle, transit, and vehicular traffic.

During the anticipated 29-month construction period, the proposed project would require temporary partial closures of the public right-of-way to allow demolition of existing structures and construction of new structures on Bay and Francisco streets and proposed driveway and streetscape improvements. However, as construction staging would occur on the project site, these closures would be limited in duration and

[22] San Francisco Municipal Transportation Agency (SFMTA), Regulations for Working in San Francisco Streets, Revised February 21, 2023, http://www.sfmta.com/bluebook, accessed May 17, 2024.

coordinated with the San Francisco Municipal Transportation Agency in compliance with blue book regulations.

For sidewalks and bicycle lanes along the closed frontages, signage and protection for people walking and bicycling would be installed, as appropriate. The contractor would be required to maintain adequate bicycle and walking circulation at all times, and any closures would be coordinated with the City in order to minimize the impacts on local traffic. Compliance with blue book regulations would ensure that any potential construction impacts related to road closures would be reduced to less than significant. Therefore, the proposed project would have a less-than-significant transportation-related construction impact, and no mitigation measures are required.

Impact TR-2: The proposed project would not create potentially hazardous conditions for people walking, bicycling, or driving or public transit operations. ***(Less than Significant)***

The proposed project does not include any features that could increase hazardous conditions for people walking, biking, or driving in the project vicinity. The proposed project would not change the adjacent travel lanes or transit operations for transit routes within the vicinity of the project site, or any of the existing bus stops in the area.

The proposed project would add two new bulb-outs per planning code section 138.1, Streetscape and Pedestrian Improvements. The first bulb-out would wrap around the intersection of Laguna and Bay streets and would project 6 feet into the Laguna and Bay streets rights-of-way. The bulb-out would terminate at the existing curb cut on Bay Street. The second bulb-out would wrap around the intersection of Laguna Street and Francisco Street and would project 6 feet into the Laguna and Francisco streets rights-of-way. The added bulb-outs would reduce the length of crosswalks at these intersections, improve visibility, and encourage drivers to slow down, while improving pedestrian and bicycle safety.

A new basement level garage would be constructed beneath the proposed Bay and Francisco buildings and the existing interior courtyard. A new two-directional, 20-foot-wide driveway on Bay Street would provide access to the new basement, east of the existing entrance. One of these two lanes may be partially impinged if a 40-foot truck would be parked in the loading dock, but this would not restrict auto ingress or egress. All vehicles (trucks and autos) would be restricted to right-only turns into and out of the driveway. The new driveway would necessitate the removal of 17 existing off-street surface parking spaces and approximately 15 feet of on-street parking along Bay Street, for a total loss of one on-street parking space on Bay Street. At this location, a 20-foot-long, two-vehicle-wide, off-street covered porte cochère (accessed from the existing curb cut on Bay Street) would provide universal access required by the residential care facility, in compliance with the ADA. The existing driveway on Bay Street, west of the new driveway, would also provide access to five project site surface parking spaces. These modifications would allow passenger pick up and drop off activities to occur on site and provide easier vehicular ingress and egress to and from the site.

The project site has approximately 45 feet of passenger loading (white curb) and 20 feet of accessible parking (blue curb) on the Laguna Street frontage, and 22 feet of loading (white curb) on the Francisco Street frontage. As part of the proposed project, the on-street white curb loading space on Francisco Street would be removed along with the associated approximately 18-foot-wide curb cut. Freight loading access and activity currently occurs via Bay Street in the off-street surface parking lot's loading area. Figures 2-13 and 2-

14 in Chapter 2, Project Description, of the draft EIR, show the existing and proposed freight loading entry and exits. Freight trucks back into the loading parking spot available in the existing parking lot. For delivery trucks to maneuver in and out of the project site's loading areas, Bay Street currently experiences traffic interruptions approximately nine times weekly for food delivery and approximately twice weekly for trash pick-up, each instance for the duration of vehicles backing into the existing loading space. Currently the largest freight vehicles that access the existing loading dock are 26 feet. Under the existing conditions, smaller (up to 30-foot) delivery trucks backing into the parking lot for loading temporarily block the sidewalk via the curb cut as they maneuver back in, but not once parked at the loading dock. If any larger (40-foot) delivery trucks were to access the existing loading dock, those vehicles would block the sidewalk via the curb cut while parked at the loading dock, in addition to while they maneuver back in.

Loading access to the site would be modified such that smaller (up to 30-foot) delivery vehicles would enter the site by approaching eastbound on Bay Street and backing into the service area via the new 20-foot-wide driveway, temporarily blocking the sidewalk (via the curb cut) and driveway as they maneuver back in, but not once parked at the loading dock. Larger (40-foot) delivery trucks would enter the site by approaching westbound on Bay Street and backing directly into the loading dock from the street. Though these trucks would temporarily block the sidewalk via the curb cut as they maneuver back in, they would not block the sidewalk once parked at the loading dock, as it is current practice. All trucks would then depart by making a right turn eastbound onto Bay Street. With the new vehicle entrance on Bay Street, loading truck egress from the project site would occur farther east from the Bay and Laguna streets intersection than under existing conditions, and would thus minimize traffic conflicts and improve safety. The new curb cut for the loading dock would also be used for the proposed basement-level parking garage. Overall, loading activity ingress and egress would be less hazardous than current conditions with the proposed project and delivery vehicles would no longer block the public right-of-way when parked.

The proposed project's features would not create traffic hazards (e.g., sharp curves or dangerous intersections) or increase the number or severity of conflicts between vehicles and the other ways people travel. With the new driveway and loading dock on Bay Street, loading truck egress from the project site would occur farther east from the Bay and Laguna streets intersection than under existing conditions, and would thus minimize traffic conflicts and improve safety. For these reasons, the project would not increase hazardous conditions at the site and so would result in a less-than-significant impact related to potentially hazardous conditions and accessibility. No mitigation measures are required.

Impact TR-3: The proposed project would not interfere with accessibility of people walking or bicycling to and from the project site, and adjoining areas, or result in inadequate emergency access. ***(Less than Significant)***

The proposed project would not result in a substantial increase in vehicle trips to or from the site. The increase in building square footage would correlate to an increase of 302 average daily vehicle trips on the surrounding roadways.[23] As discussed above, project implementation would not alter the established street grid, permanently close any streets or sidewalks, or eliminate or reconfigure any existing bicycle routes. Emergency vehicle access would remain unchanged from existing conditions. Emergency vehicles would

[23] San Francisco Planning Department. Transportation Coordination Memo, 3400 Laguna Street, Heritage on the Marina, 2022-009819ENV. June 7, 2024.

continue to access the project site from Bay Street, with improved ingress and egress with the proposed 20-foot-long porte cochère. Implementation of the proposed project would not preclude or restrict emergency vehicle access to the project site. Thus, this impact would be less than significant, and no mitigation measures would be required.

Impact TR-4: The proposed project would not substantially delay public transit. ***(Less than Significant)***

As previously described, the proposed project would not result in a substantial increase in vehicle trips to or from the site. The 23 new residential care suites and addition of 22 employees to the site would generate an increase of 302 average daily vehicle trips on the surrounding roadways and 27 peak-hour vehicle trips.[24] The planning department has determined that projects with less than 300 vehicle trips during the peak hour would not result in transit delay greater than the threshold of significance of four minutes. Therefore, the proposed project would not generate a substantial number of vehicle trips that could delay public transit, and this impact would be less than significant. No mitigation measures are required.

Impact TR-5: The proposed project would not cause substantial additional vehicle miles traveled or substantially induce additional automobile travel by increasing physical roadway capacity in congested areas or by adding new roadways to the network. ***(Less than Significant)***

The Transportation Impact Analysis Guidelines set forth screening criteria for types of projects that would typically not result in significant vehicle miles traveled impacts. The project site is located within an area where existing vehicle miles traveled per capita is more than 15 percent below the existing regional per capita average. The proposed project meets this locational screening criterion, and therefore would have a less-than-significant impact related to vehicle miles traveled and no mitigation measures are required.[25]

Impact TR-6: The proposed project would not result in a loading deficit. ***(Less than Significant)***

Freight Loading

The proposed project would provide one 45-foot-long off-street freight loading space adjacent to the new two-directional driveway. Additionally, as discussed above under Impact TR-2, an approximately 20-foot-long, double lane, off-street covered porte cochère would be used for smaller freight trucks maneuvering into the off-street loading space, as well as parcel delivery vehicles.

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[24] San Francisco Planning Department. Transportation Coordination Memo, 3400 Laguna Street, Heritage on the Marina, 2022-009819ENV. June 7, 2024.

[25] San Francisco Planning Department, 2022, San Francisco Transportation Information Map. Website: https://sfplanninggis.org/TIM/. Accessed April 12, 2024.

The proposed project would generate an estimated freight loading demand of up to one space during the peak hour of freight loading activity. As such, the proposed supply of off-street freight loading space would meet the expected peak hour demand.

Passenger Loading

The proposed project would provide at least one off-street passenger loading space in the form of an approximately 20-foot-long, double lane, off-street covered porte cochère, which would provide ADA access to the site. Thus, the proposed project's passenger loading supply would meet the demand for one space during the p.m. peak hour (Table E.6-3).

Additionally, Laguna Street adjacent to the project site currently has approximately 45 feet of on-street passenger loading (white curb), which would remain unchanged by the proposed project and can accommodate two standard passenger vehicles.

Therefore, passenger loading associated with the proposed project would not create queues and therefore not impede transit operations or create conflicts people walking or bicycling and project impacts would be less than significant. No mitigation is required.

Impact C-TR-1: The proposed project, in combination with cumulative projects, would not result in a significant cumulative impact on transportation and circulation. ***(Less than Significant)***

Construction

Generally, only projects that are constructed simultaneously and are within the same project block or could affect truck routing could combine to result in cumulative construction impacts. Construction traffic from both the proposed project and the Marina Improvement and Remediation Project would be expected to use Laguna and Bay streets. As discussed under Impact TR-1, the proposed project would be subject to the blue book requirements during construction. The blue book establishes rules and guidance so that work can be done safely and with the least possible interference with people walking and bicycling, transit, and vehicular traffic. The Marina Improvement and Remediation Project would also be subject to the same regulations, which would ensure that even if both projects were under construction at the same time, they would not result in any significant cumulative construction transportation impacts. Therefore, the project and reasonably foreseeable projects would not result in a significant cumulative construction-related transportation impact, and no mitigation measures are required.

Operation

The Marina Improvement and Remediation Project is not expected to generate a substantial amount of new vehicle trips as this project consists of open space and harbor improvements with no residential or commercial component. Loading, accessibility, and emergency access are all localized effects and because the project site is 830 feet from the Marina Improvement Project, it would not combine with the proposed project to result in a significant cumulative impact. Additionally, the proposed project and the Marina Improvement and Remediation Project would not combine to generate new vehicle trips that would significantly delay public transit. The project site meets the VMT screening criteria under 2050 cumulative

conditions according to the San Francisco Transportation Information Map.[26] Therefore, cumulative impacts with respect to VMT, loading, parking, emergency access, and public transit would all be less than significant.

Topics:	Potentially Significant Impact	Less than Significant with Mitigation Incorporated	Less than Significant Impact	No Impact	Not Applicable
E.7. NOISE. Would the project result in:					
a) Generation of a substantial temporary or permanent increase in ambient noise levels in the vicinity of the project in excess of standards established in the local general plan or noise ordinance, or applicable standards of other agencies?	☐	☐	☒	☐	☐
b) Generation of excessive groundborne vibration or groundborne noise levels?	☐	☒	☐	☐	☐
c) For a project located within the vicinity of a private airstrip or an airport land use plan area or, where such a plan has not been adopted, in an area within two miles of a public airport or public use airport, would the project expose people residing or working in the area to excessive noise levels?	☐	☐	☐	☐	☒

The project site is not located within an airport land use plan area or in the vicinity of a private airstrip. Therefore, Topic E.7(c) is not applicable to the proposed project.

Comments received in response to the NOP regarding the proposed project's potential impacts to noise expressed concerns regarding the duration of construction noise if construction activities take longer than described. Additional comments expressed concerns that noise from loading docks on residential streets are likely to impact the neighborhood and that traffic along Bay Street will increase noise in the surrounding neighborhood.

Impact NO-1: **The proposed project would not generate a substantial temporary or permanent increase in ambient noise levels in the vicinity of the proposed project in excess of standards established in the local general plan or noise ordinance, or applicable standards of other agencies. (*Less than Significant*)**

[26] https://sfplanninggis.org/TIM/

The project site is located in a dense residential neighborhood of San Francisco, with associated relatively high ambient noise levels, at or exceeding 70 dBA L_{dn}[27], along the Bay Street frontage and at or exceeding 65 dBA L_{dn} along the Laguna Street and Francisco Street frontages, as shown in Figure 4.5-2 of the San Francisco Housing Element 2022 Update EIR.[28] Ambient noise in San Francisco is largely generated by traffic-related sources. Noise levels between 60 and 70 dBA L_{dn} are considered conditionally acceptable for residential uses, and between 62.5 and 70 dBA L_{dn} for uses including nursing homes, per the Land Use Compatibility Chart for Community Noise in the San Francisco General Plan.[29]

Land uses in the surrounding area that contribute to ambient noise include a mixture of recreation and open space and residential uses. The Moscone Softball fields are located to the west across Laguna Street, and Upper Fort Mason is to the north across Bay Street. However, the primary noise source in the area is from vehicles. Existing noise sensitive receptors surrounding the project site include adjacent single- and multi-family residences to the east on the same block, residences to the south across Francisco Street, and residences to the northwest opposite the intersection of Bay and Laguna streets.

Construction Impacts

Construction noise in the City is regulated by the San Francisco Noise Ordinance (Article 29 of the San Francisco Police Code). The ordinance requires that noise levels from individual pieces of construction equipment, other than impact tools, not exceed 80 dBA at a distance of 100 feet from the source. Impact tools (e.g., jackhammers, hoe rams, impact wrenches) must have manufacturer-recommended and City-approved mufflers for both intake and exhaust. Section 2908 of the noise ordinance prohibits construction work between 8:00 p.m. and 7:00 a.m. if noise would exceed the ambient noise level by 5 dBA at the project property line unless a special permit is authorized by the Director of the Department of Public Works or the Director of Building Inspection. The proposed project would be required to comply with regulations set forth in the noise ordinance. The proposed project would not use pile drivers or conduct construction work at night.

Demolition, excavation, and construction would cause a temporary increase in noise levels in the project vicinity. Construction equipment would generate noise that could be considered an annoyance by occupants of nearby properties and residents at the project site. The construction period would last approximately 29 months. Construction noise levels would fluctuate depending on the construction phase, equipment type and duration of use, distance between noise source and affected receptor, and the presence (or absence) of barriers. Impacts would generally be limited to demolition and the periods during which new foundations and exterior structural and façade elements are constructed. Interior construction noise would be substantially reduced by exterior walls.

There would be times when noise could interfere with indoor activities in nearby residences. The nearest offsite sensitive receptors to the project site are the residential uses immediately adjacent to the east with the closest structures, 1536-1538 Francisco Street and 1435 Bay Street, at a distance of approximately 12 feet from the property line. These uses, as well as project site residents, would experience the greatest increase in temporary and intermittent noise associated with construction activities. The project sponsor

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27 dBA L_{dn} = day-night average noise level over a 24-hour period

28 San Francisco Planning Department. 2022 Housing Element Update Environmental Impact Report, Volume II, page 4.5-12, available at https://citypln-m-extnl.sfgov.org/SharedLinks.aspx?accesskey=223780540c1a9806ebfec96265e2a452b6e655885d5974efccd84a1b400469ac&VaultGUID=A4A7DACD-B0DC-4322-BD29-F6F07103C6E0, accessed July 9, 2024.

29 City of San Francisco. Environmental Protection Element. December 2004. Available at: https://generalplan.sfplanning.org/I6_Environmental_Protection.htm. Accessed June 6, 2024.

indicated that during construction current site occupants would be provided with more frequent private shuttles to outings including picnics, movies, shopping etc. In addition, the project sponsor would partner with local senior day care centers and rent a block of hotel rooms for current occupants to have quiet spaces. The project sponsor would also provide noise cancelling headphones to residents that would rather stay in their suites during these times, to minimize construction noise disruptions to Heritage on the Marina residents.

As discussed in the Noise section of the Housing Element EIR, pg. 4.5-37, in general construction noise impacts are not considered significant for projects that meet the following screening criteria and therefore do not require quantitative analysis of construction noise:

- The project would involve the use of standard construction equipment that would comply with section 2907 of the noise ordinance and would not include the use of impact equipment (e.g., hoe rams or pile drivers) that would affect one or more sensitive receptors for a period of 14 days or more within a 90-day period.
- New construction would have a building height of less than 85 feet.
- Demolition, site preparation, excavation, foundation work, and shoring would occur for less than 12 months.
- Night work would occur for no more than three consecutive nights or up to nine nights within a 90-day period.

As discussed above, the proposed project would be required to comply with the noise ordinance and does not propose the use of impact equipment. The project also does not propose the construction of a building taller than 85 feet. Demolition, site preparation, excavation, foundation, and shoring work would occur for approximately five months, and no nighttime construction is proposed. Thus, the proposed project meets the above screening criteria and therefore quantitative analysis of construction noise impacts is not required. Nevertheless, the following discussion provides quantitative information of the magnitude of noise levels that could occur during the noisiest phase of construction.

The noisiest phases of construction would occur for a duration of approximately five weeks, during demolition of the pavement/site preparation, grading, and foundation work, when equipment would include a loader, a bulldozer, a tractor, and an excavator. Noise levels from demolition, grading, and foundation work using various types of equipment were evaluated in the Housing Element EIR for a range of building types using the planning department's standard methodology established by the Federal Transit Administration (FTA). In accordance with FTA construction noise guidance, the construction noise assessment assumes the simultaneous operation of the two loudest pieces of equipment in the center of the site, relative to receptors at specified distances from the noise source. As shown in Table 4.5-12 of the Housing Element EIR, noise levels during the demolition phase assuming operation of a bulldozer and loader could be as high as 89 dBA L_{eq}[30] at 25 feet and would be reduced to 83 dBA L_{eq} at 50 feet and 77 dBA L_{eq} at 100 feet. Therefore, there would be times when construction noise levels would exceed 10 dBA or greater above the ambient noise level and would be clearly noticeable to receptors. A change in noise levels of 10 dB is perceived by the human ear as a doubling of the sound level. However, the two noisiest pieces of

[30] dBA L_{eq} =average a-weighted decibels

construction equipment required for the demolition phase would not be operating simultaneously for the entire duration of demolition activities.

Overall, of the 29-month construction duration, the demolition, site preparation and grading, and foundation and shoring work would occur for approximately five months. Additionally, construction noise levels would be temporary and would not persist upon completion of construction activities. Furthermore, in accordance with the noise ordinance, noise levels from individual pieces of construction equipment would not exceed 80 dBA at a distance of 100 feet from the source. Therefore, construction noise impacts would be less than significant, and no mitigation is required.

Operational Impacts

The existing use at the project site would not change. In total, the proposed project would add approximately 58,380 square feet of institutional use and increase the number of residential care units by 23 from 86 to 109. The addition of 23 new residential care units and 58,830 square feet of institutional use would generate an increase of 302 average daily vehicle trips on the surrounding roadways.[31] With respect to traffic noise, a 3 dBA increase is barely perceptible to the human ear, while a 5 dBA increase is readily noticeable. An increase of less than 3 dBA from continuous noise sources of similar character is generally not perceptible outside of controlled laboratory conditions; it takes a doubling of traffic volumes to increase noise levels by 3 dBA.[32] Since the average daily traffic on the surrounding roadways are greater than 302 vehicles per day and the project trips would not double the average daily traffic on those road segments, the proposed project's increase in vehicle trips would not result in a perceptible increase in noise. Thus, the proposed project would result in a less than significant traffic noise impact.

The project proposes to remove the existing heating, ventilation, and air conditioning condensers and add a new mechanical system which includes rooftop air-source split system compressors. The system has not been designed, but the compressors can range from 4 to 10 feet in height (depending on the system design). The compressors would be grouped together in screened enclosures, as far away as practical from the roof perimeter along the adjoining streets. The screen enclosure height would match the equipment height. Because the new equipment would be located within a well which contains 10-foot-high walls on all sides and an open-to-sky roof, no noise level increases are expected at surrounding receptors from the proposed new compressors.

Interior space conditioning would rely on a decentralized system of wall mounted, ceiling cassette and ducted air handling units which are not expected to increase noise levels at surrounding receptors. Furthermore, the proposed mechanical systems would be subject to the noise ordinance (article 29 of the police code). Section 2909(b) Commercial and Industrial Property Noise Limits of the police code limits the noise level at commercial and industrial properties to no more than eight dBA above the local ambient at any point outside of the property plane.

The existing emergency backup diesel power generator, located adjacent to the Bay Street frontage, would be replaced by a new Tier 4 emissions emergency backup diesel generator located inside the new Bay Building. All louvers on the exterior of the mechanical rooms would face away from surrounding receptors.

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31 San Francisco Planning Department. Transportation Coordination Memo, 3400 Laguna Street, Heritage on the Marina, 2022-009819ENV. June 7, 2024.

32 California Department of Transportation, *Technical Noise Supplement to the Traffic Noise Analysis Protocol*, pp. 2-44 to 2-45, September 2013. Available: https://dot.ca.gov/-/media/dot-media/programs/environmental-analysis/documents/env/tens-sep2013-a11y.pdf. Accessed May 1, 2024.

Therefore, due to the placement of mechanical equipment, proposed shielding of the condensers, and that the generator would only be used for emergency purposes and occasional maintenance, the replacement generator would not result in a significant increase in ambient noise levels.

Considering the above, and with required compliance with the noise ordinance, operational noise level impacts from the proposed project would be less than significant and no mitigation measures would be required.

Impact NO-2: The proposed project would generate excessive groundborne vibration or groundborne noise levels. ***(Less than Significant with Mitigation)***

The proposed project would include the demolition of the Perry Building Connector and the Health Care Center, construction of two new buildings in the location of the buildings to be demolished, and the construction of an underground parking garage. These construction activities would directly abut both the Julia Morgan Building and Perry Building and would be within approximately five feet of the Caretaker's Cottage. The nearest offsite vibration-sensitive buildings are the existing single and multi-family homes built in the early 1900s adjacent to the east on the project block. The buildings to remain on the project site are approximately 5feet away from where construction activities would occur. **Table E.7-1, Summary of Surrounding Structures**, below presents a summary of the surrounding buildings that would not be demolished with the proposed project, distance from construction activities, vibration-generating equipment that would be used during construction, and the applicable vibration level that, if exceeded, could result in building damage. Vibration impacts to these buildings in the form of building damage could potentially occur during the demolition and excavation phase, which requires the use of a large bulldozer and loaded trucks, and may require an auger drill. All other construction equipment proposed to be used are not the types of construction equipment that generate substantial groundborne vibration.

Table E.7-1 Summary of Surrounding Structures

Building Name/Location	Distance to Vibration Equipment	Vibration Equipment	Building Category per Caltrans	Applicable Building Damage Criteria
Julia Morgan Building	Less than 5 feet	Large Bulldozer, Drill, Loaded Trucks	A	0.25 in/sec PPV
Perry Building	Less than 5 feet	Large Bulldozer or Drill	A	0.25 in/sec PPV
Caretaker's Cottage	5 feet	Large Bulldozer, Drill, Loaded Trucks	A	0.25 in/sec PPV
1536- 1538 Francisco Street	15 feet	Large Bulldozer, Drill, Loaded Trucks	B	0.25 in/sec PPV
1435 Bay Street	25 feet	Large Bulldozer, Drill, Loaded Trucks	B	0.25 in/sec PPV

Construction activities can produce detectable groundborne vibration at nearby buildings, infrastructure, and sensitive receptors. Vibration intensity is expressed as PPV (peak particle velocity), the maximum speed at which the ground moves while it temporarily shakes. Because ground-shaking speeds are very slow, PPV is measured in inches per second (in/sec). Construction equipment vibration levels are calculated using the following equation:

$$PPV\ (distance\ D) = PPV\ (reference\ at\ 25\ feet) \times (25/D)^{1.5}$$

The value of 1.5, which is variable depending on soil types, is based upon competent soils: most sands, sandy clays, silty clays, gravel, silts, weathered rock (can dig with shovel).

The distance variable, D, is measured in feet. The construction vibration damage criterion for this project is 0.25 PPV (in/sec) due to the presence of adjacent historic structures.[33] The potentially affected buildings on site that would not be demolished with the proposed project include: the Julia Morgan Building, the Perry Building, and the Caretaker's Cottage. The potentially affected off site buildings include the 1536-1538 Francisco Building and the 1435 Bay Street Building, which are directly adjacent to the project site.

Table E.7-2, Construction Equipment Vibration Levels at Various Distances, shows the vibration levels for the three pieces of equipment proposed during construction that could generate groundborne vibration: large bulldozer, loaded trucks and an auger drill at distances of 5, 10, 15, and 25 feet based on Housing Element Table 4.5-16, and consistent with the Federal Transit Administration (FTA) Transit Noise and Vibration Impact Assessment Manual.[34]

Table E.7-2 Construction Equipment Vibration Levels at Various Distances

Equipment	Peak Particle Velocity (in/sec)			
	5 Feet	10 Feet	15 Feet	25 Feet
Large Bulldozer	0.995	0.352	0.191	0.089
Auger Drilling	0.995	0.352	0.191	0.089
Loaded Trucks	0.850	0.300	0.164	0.076

Source: U.S. Department of Transportation, Federal Transit Administration, Transit Noise and Vibration Impact Assessment Manual, Report No. 0123, September 2018, https://www.transit.dot.gov/sites/fta.dot.gov/files/docs/research-innovation/118131/transit-noise-and-vibration-impact-assessment-manual-fta-report-no-0123_0.pdf, accessed April 16, 2021.
Notes: Vibration source levels are from Federal Transit Administration, 2018, except where noted.
in/sec = inches per second.

Although a complete list of construction equipment has not yet been confirmed for the project, it is known with certainty that impact pile driving and caisson drilling are not proposed. As shown in Table E.7-2, project construction equipment would generate vibration levels greater than the 0.25 in/sec PPV damage criteria at a distance out to approximately 15 feet from the operation of the project's vibration-causing construction equipment.

[33] California Department of Transportation (Caltrans), 2020. Transportation and Construction Vibration Guidance Manual. April.

[34] Federal Transit Administration (FTA), 2018. Transit Noise and Vibration Impact Assessment Manual. Office of Planning and Environment. Report No. 0123. September.

The nearest off-site uses are residences located a minimum of 12 feet from the property line. The existing project site buildings along the east property line (the Caretaker's Cottage and the Perry Building) would remain in place, therefore none of the equipment identified in Table E.7-2 would operate within 15 feet of the offsite residences and project construction would not have the potential to generate vibration levels that would impact off-site structures.

However, it is likely the building damage criterion of 0.25 in/sec PPV would be exceeded at the existing on-site buildings that would remain under the proposed project. As shown in Table E.7-1, vibration generating equipment could operate within 5 feet of the remaining on-site buildings. As shown in Table E.7-2, at a distance of 5 feet, vibration generating equipment would exceed the building damage criterion of 0.25 in/sec PPV. As such, construction equipment would have the potential to result in a significant impact to on-site buildings. **Mitigation Measure M-NO-1, Protection of Adjacent Buildings/Structures and Vibration Monitoring During Construction** would be required.

Mitigation Measure M-NO-1: **Protection of Adjacent Buildings/Structures and Vibration Monitoring During Construction.** Prior to issuance of a Pre-Construction Environmental Compliance letter, the project sponsor shall submit a project specific Pre-construction Survey and Vibration Management and Monitoring Plan to the ERO or the ERO's designee for approval. The plan shall identify all feasible means to avoid damage to potentially affected buildings on the project site. The potentially affected buildings on site include the Julia Morgan Building, the Perry Building, and the Caretaker's Cottage. The project sponsor shall ensure that the following requirements of the Pre-Construction Survey and Vibration Management and Monitoring Plan are included in contract specifications, as necessary.

Pre-construction Survey. Prior to the start of any ground-disturbing activity, the project sponsor shall engage a consultant to undertake a pre-construction survey of the on-site potentially affected buildings. For the Perry Building, which is not a historic resource, a structural engineer or other professional with similar qualifications shall document and photograph the existing conditions of the building. The project sponsor shall submit the survey to the ERO or the officer's designee for review and approval prior to the start of vibration-generating construction activity.

For the Julia Morgan Building and the Caretaker's Cottage, which are historic, the project sponsor shall engage a qualified historic preservation professional and a structural engineer or other professional with similar qualifications to undertake a pre-construction survey of the historic buildings. The pre-construction survey shall include descriptions and photograph of all identified historic buildings including all façades, roofs, and details of the character-defining features that could be damaged during construction, and shall document existing damage, such as cracks and loose or damaged features. The report shall also include pre-construction drawings that record the pre-construction condition of the buildings and identify cracks and other features to be monitored during construction. The

qualified historic preservation professional shall be the lead author of the pre-construction survey. The pre-construction survey shall be submitted to the ERO for review and approval prior to the start of vibration-generating construction activity.

Vibration Management and Monitoring Plan. The project sponsor shall undertake a monitoring plan to avoid or reduce project-related construction vibration damage to potentially affected buildings and/or structures and to ensure that any such damage is documented and repaired. Prior to issuance of a Pre-Construction Environmental Compliance Letter, the project sponsor shall submit the Plan to the ERO for review and approval. The Vibration Management and Monitoring Plan shall include, at a minimum, the following components, as applicable:

- **Maximum Vibration Level.** Based on the anticipated construction and condition of the affected buildings and/or structures, a qualified acoustical/vibration consultant in coordination with a structural engineer (or professional with similar qualifications) and, in the case of potentially affected historic buildings/structures, a qualified historic preservation professional, shall establish a maximum vibration level that shall not be exceeded at each building/structure, based on existing conditions, character-defining features, soil conditions, and anticipated construction practices (common standards are a peak particle velocity [PPV] of 0.25 inch per second for historic and some old buildings, a PPV of 0.3 inch per second for older residential structures, and a PPV of 0.5 inch per second for new residential structures and modern industrial/commercial buildings).

- **Vibration-generating Equipment.** The plan shall identify all vibration-generating equipment to be used during construction (including, but not limited to: site preparation, clearing, demolition, excavation, shoring, foundation installation, and building construction).

- **Alternative Construction Equipment and Techniques.** The plan shall identify potential alternative equipment and techniques that could be implemented if construction vibration levels are observed in excess of the established standard (e.g., smaller, lighter equipment could be used in some cases).

- **Buffer Distances.** The plan shall identify buffer distances to be maintained based on vibration levels and site constraints between the operation of vibration-generating construction equipment and the potentially affected buildings and/or structures to avoid damage to the extent possible.

- **Vibration Monitoring.** The plan shall identify the method and equipment for vibration monitoring to ensure that construction vibration levels do not exceed the established standards identified in the plan.

    - Should construction vibration levels be observed in excess of the standards established in the plan, the contractor(s) shall halt construction and put alternative construction techniques identified in the plan into practice, to the extent feasible.

    - The qualified historic preservation professional (for effects on historic buildings and/or structures) and/or structural engineer (for effects on historic and non-historic buildings and/or structures) shall inspect each affected building and/or structure in the event the construction activities exceed the vibration levels identified in the plan.

    - The structural engineer and/or historic preservation professional shall submit monthly reports to the ERO during vibration-inducing activity periods that identify and summarize any vibration level exceedances and describe the actions taken to reduce vibration.

    - If vibration has damaged nearby buildings and/or structures that are not historic, the structural engineer shall immediately notify the ERO and prepare a damage report documenting the features of the building and/or structure that has been damaged.

    - If vibration has damaged nearby buildings and/or structures that are historic, the historic preservation consultant shall immediately notify the ERO and prepare a damage report documenting the features of the building and/or structure that has been damaged.

    - Following incorporation of the alternative construction techniques and/or planning department review of the damage report, vibration monitoring shall recommence to ensure that vibration levels at each affected building and/or structure are not exceeded.

- **Periodic Inspections.** The plan shall identify the intervals and parties responsible for periodic inspections. The qualified historic preservation professional (for effects on historic buildings and/or structures) and/or structural engineer (for effects on historic and non-historic buildings and/or structures) shall conduct regular periodic inspections of each affected building and/or structure during vibration-generating construction activity on the project site. The plan will specify how often inspections shall occur.

- **Repair Damage.** The plan shall also identify provisions to be followed should damage to any building and/or structure occur due to construction-related vibration. The building(s) and/or structure(s) shall be remediated to their pre-construction condition at the conclusion of vibration-generating activity on the site. For historic resources, should damage occur to any building and/or structure, the building and/or structure shall be restored to its pre-construction condition in consultation with the qualified historic preservation professional and planning department preservation staff.

Vibration Monitoring Results Report. After construction is complete, the project sponsor shall submit to the ERO a final report from the qualified historic preservation professional (for effects on historic buildings and/or structures) and/or structural engineer (for effects on historic and non-historic buildings and/or structures). The report shall include, at a minimum, collected monitoring records, building and/or structure condition summaries, descriptions of all instances of vibration level exceedance, identification of damage incurred due to vibration, and corrective actions taken to restore damaged buildings and structures. The ERO shall review and approve the Vibration Monitoring Results Report.

Mitigation Measure M-NO-1 would require the project sponsor to conduct a pre-construction assessment of potentially affected buildings and/or structures, establish vibration limits not to be exceeded based on the condition of the building(s) and/or structure(s), monitor vibration levels during construction, and repair any vibration-related damage to the building's/structure's pre-construction condition. Therefore, with implementation of Mitigation Measure M-NO-1, the impact of future development under the proposed action to result in structural damage from construction vibration would be reduced to less than significant.

Impact C-NO-1: The proposed project, in combination with cumulative projects, would not result in a significant cumulative impact on noise or vibration. ***(Less than Significant)***

As analyzed above, the project would not have significant impacts on adjacent noise sensitive uses resulting from construction or operational noise. However, the proposed project would result in vibration levels that could cause damage to the onsite buildings that would remain under the proposed project, resulting in a significant impact.

The nearest cumulative project is the Marina Improvement and Remediation Project located along the north waterfront between Laguna and Baker streets, composed of East Harbor (Gashouse Cove) and West Harbor. That project includes investigation and remediation of sediments in East Harbor impacted by a former gas plant, to be conducted by PG&E under the oversight of State of California environmental regulatory agencies. Due to the distance between the proposed project and the Marina Improvement and Remediation project, approximately 830 feet, in addition to attenuation of noise provided by intervening structures, and because all construction activities are regulated by the noise ordinance, construction noise from the proposed project would not combine with that of the Marina Improvement and Remediation project to result in a significant cumulative construction noise impact. Additionally, because the proposed project

would generate a very small number of vehicle trips, approximately 302 daily vehicle trips, it would not combine with potential vehicle trips generated by the Marina Improvement and Remediation project to result in a significant cumulative traffic noise impact. With respect to stationary noise sources, because the proposed project's stationary noise sources would not generate substantial noise increases and all stationary noise sources are regulated by the noise ordinance, cumulative stationary source noise impacts would also not be significant. Lastly, because vibration impacts generated during construction attenuate rapidly with distance from the vibration source, cumulative construction vibration impacts would be less than significant.

Therefore, the proposed project would not have the potential to combine with nearby projects to result in cumulative noise and vibration impacts and no mitigation measures are required.

Topics:	Potentially Significant Impact	Less than Significant with Mitigation Incorporated	Less than Significant Impact	No Impact	Not Applicable
E.8. AIR QUALITY. Would the project:					
a) Conflict with or obstruct implementation of the applicable air quality plan?	☐	☐	☒	☐	☐
b) Result in a cumulatively considerable net increase of any criteria pollutant for which the project region is non-attainment under an applicable federal, state, or regional ambient air quality standard?	☒	☐	☐	☐	☐
c) Expose sensitive receptors to substantial pollutant concentrations?	☒	☐	☐	☐	☐
d) Result in other emissions (such as those leading to odors) adversely affecting a substantial number of people?	☐	☐	☒	☐	☐

The Bay Area Air Quality Management District (or air district) is the regional agency with jurisdiction over the nine-county San Francisco Bay Area Air Basin (air basin), which includes San Francisco, Alameda, Contra Costa, Marin, San Mateo, Santa Clara, and Napa counties and portions of Sonoma and Solano counties. The air district is responsible for attaining and maintaining air quality in the air basin within federal and state air quality standards, as established by the federal Clean Air Act and the California Clean Air Act, respectively. Specifically, the air district has the responsibility to monitor ambient air pollutant levels throughout the air basin and to develop and implement strategies to attain the applicable federal and state standards. The federal and state Clean Air Acts require plans to be developed for areas that do not meet air quality standards, generally. The most recent air quality plan, the 2017 clean air plan, was adopted by the air district on April 19, 2017. The clean air plan updates the most recent Bay Area ozone plan and the 2010 clean air plan, in accordance with the requirements of the state Clean Air Act, to implement all feasible measures to

reduce ozone; provide a control strategy to reduce ozone, particulate matter, air toxics, and greenhouse gases (GHGs) in a single, integrated plan; and establish emission control measures to be adopted or implemented. The clean air plan contains the following primary goals:

- **Protect Air Quality and Health at the Regional and Local Scale:** Attain all state and national air quality standards, and eliminate disparities among Bay Area communities in cancer health risk from toxic air contaminants (TACs); and
- **Protect the Climate:** Reduce Bay Area GHG emissions to 40 percent below 1990 levels by 2030 and 80 percent below 1990 levels by 2050.

The clean air plan represents the most current applicable air quality plan for the air basin. Consistency with this plan is the basis for determining whether the proposed project would conflict with or obstruct implementation of air quality plans.

Criteria Air Pollutants

In accordance with the state and federal Clean Air Acts, air pollutant standards are identified for the following six criteria air pollutants: ozone, carbon monoxide (CO), particulate matter (PM), nitrogen dioxide (NO_2), sulfur dioxide (SO_2), and lead. These air pollutants are termed criteria air pollutants because they are regulated by developing specific public health- and welfare-based criteria as the basis for setting permissible levels. In general, the air basin experiences low concentrations of most pollutants when compared to federal or state standards. The air basin is designated as either in attainment[35] or unclassified for most criteria pollutants with the exception of ozone, $PM_{2.5}$, and PM_{10}[36], for which these pollutants are designated as non-attainment for either the state or federal standards. By its very nature, regional air pollution is largely a cumulative impact in that no single project is sufficient in size to, by itself, result in non-attainment of air quality standards. Instead, a project's individual emissions contribute to existing cumulative air quality impacts. If a project's contribution to cumulative air quality impacts is considerable, then the project's impact on air quality would be considered significant.[37]

Land use projects typically result in reactive organic gases (ROG) and oxides of nitrogen (NO_X), which are ozone precursors, and particulate matter emissions because of increases in vehicle trips, space heating and natural gas combustion, landscape maintenance, and construction activities. For this reason, the air district has established significance thresholds for non-attainment criteria air pollutants, as shown in **Table E.8-1, Criteria Air Pollutant Significance Thresholds**.

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35 "Attainment" status refers to those regions that are meeting federal and/or state standards for a specified criteria pollutant. "Non-attainment" refers to regions that do not meet federal and/or state standards for a specified criteria pollutant. "Unclassified" refers to regions where there is not enough data to determine the region's attainment status for a specified criteria air pollutant.

36 Airborne particulate matter (PM) is not a single pollutant, but rather is a mixture of many chemical species. It is a complex mixture of solids and aerosols composed of small droplets of liquid, dry solid fragments, and solid cores with liquid coatingsPM_{10} and $PM_{2.5}$ often derive from different emissions sources, and also have different chemical compositions. Emissions from combustion of gasoline, oil, diesel fuel or wood produce much of the $PM_{2.5}$ pollution found in outdoor air, as well as a significant proportion of PM_{10}. PM_{10} also includes dust from construction sites, landfills and agriculture, wildfires and brush/waste burning, industrial sources, wind-blown dust from open lands, pollen and fragments of bacteria.

37 Bay Area Air Quality Management District (air district), *California Environmental Quality Act Thresholds and Guidelines Update,* April 2023. Available at: https://www.baaqmd.gov/plans-and-climate/california-environmental-quality-act-ceqa/updated-ceqa-guidelines. Accessed April12, 2024.

Table E.8-1 Criteria Air Pollutant Significance Thresholds

Pollutant	Construction Thresholds	Operational Thresholds	
	Average Daily Emissions (lbs/day)	Average Daily Emissions (lbs/day)	Maximum Annual Emissions (tons/year)
ROG	54	54	10
NO_X	54	54	10
PM_{10}	82 (exhaust)	82	15
$PM_{2.5}$	54 (exhaust)	54	10
Fugitive Dust	Best Management Practices	Not Applicable	

Source: California Environmental Quality Act Thresholds and Guidelines Update, page 3-4 (Bay Area Air Quality Management District, April 2023).
lbs/day = pounds per day
tons/year = tons per year

The significance thresholds for ROG and NO_X are based on the stationary source limits in air district regulation 2, rule 2, which requires that any new source that emits criteria air pollutants above the ROG and NO_X emissions limit in Table E.8-1 must offset those emissions. The significance thresholds for particulate matter are based on the emissions limit in the federal New Source Review for stationary sources in nonattainment areas. The air district's California Environmental Quality Act Air Quality Guidelines[38] and supporting materials[39] provide additional evidence to support these thresholds. Projects that would result in criteria air pollutant emissions below these significance thresholds would not result in a cumulatively considerable net increase in non-attainment criteria air pollutants within the air basin.[40] Due to the temporary nature of construction activities, only the average daily thresholds are applicable to construction phase emissions.

Fugitive Dust

Additionally, fugitive dust emissions are typically generated during construction phases. Studies have shown that the application of best management practices at construction sites significantly control fugitive dust and individual measures have been shown to reduce fugitive dust by anywhere from 30 to 90 percent.[41] The air district has identified a number of best management practices to control fugitive dust emissions from construction activities.[42] The City's Construction Dust Control Ordinance (Ordinance No. 176-08, effective July 30, 2008) requires a number of measures to control fugitive dust and the best management practices employed in compliance with the City's construction dust control ordinance are an effective strategy for controlling construction-related fugitive dust.

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38 Ibid.

39 Bay Area Air Quality Management District, *Air Quality Guidelines Appendix A: Thresholds of Significance Justification*, April 2023. Available at: https://www.baaqmd.gov/~/media/files/planning-and-research/ceqa/ceqa-guidelines-2022/appendix-a-thresholds-of-significance-justification_final-pdf.pdf?rev=d35960ec035546629124ae2a25fb1df9&sc_lang=en. Accessed April 12, 2024.

40 Bay Area Air Quality Management District, *California Environmental Quality Act Thresholds and Guidelines Update*, April 2023.

41 Western Regional Air Partnership. 2006. WRAP Fugitive Dust Handbook. September 7, 2006. This document is available online at http://www.wrapair.org/forums/dejf/fdh/content/FDHandbook_Rev_06.pdf, accessed April 12, , 2024.

42 Bay Area Air Quality Management District, California Environmental Quality Act Thresholds and Guidelines Update, April 2023.

Local Health Risks and Hazards

In addition to criteria air pollutants, individual projects may emit toxic air contaminants (TACs). TACs collectively refer to a diverse group of air pollutants that can cause chronic (i.e., of long duration) and acute (i.e., severe but short-term) adverse effects to human health, including carcinogenic effects. Human health effects of TACs include birth defects, neurological damage, cancer, and mortality. There are hundreds of different types of TACs with varying degrees of toxicity; at a given level of exposure, one TAC may pose a hazard that is many times greater than another.

Unlike criteria air pollutants, TACs do not have ambient air quality standards but are regulated by the air district using a risk-based approach to determine which sources and pollutants to control as well as the degree of control. A health risk assessment is an analysis in which human health exposure to toxic substances is estimated and considered together with information regarding the toxic potency of the substances, to provide quantitative estimates of health risks.[43] Exposures to fine particulate matter ($PM_{2.5}$) are strongly associated with mortality, respiratory diseases, and decreased lung development in children, and other endpoints such as hospitalization for cardiopulmonary disease.[44] In addition to $PM_{2.5}$, diesel particulate matter (DPM) is also of concern. The California Air Resources Board (California air board) identified diesel particulate matter as a toxic air contaminant in 1998, primarily based on evidence demonstrating cancer effects in humans.[45] The estimated cancer risk from exposure to diesel exhaust is much higher than the risk associated with any other TAC routinely measured in the region.

Air pollution does not affect every individual in the population in the same way, and some groups are more sensitive to adverse health effects than others. Land uses such as residences, schools, children's day care centers, hospitals, and nursing and convalescent homes are considered to be the most sensitive to poor air quality because the population groups associated with these uses have increased susceptibility to respiratory distress or, as in the case of residential receptors, their exposure time is greater than that for other land uses. Therefore, these groups are referred to as sensitive receptors. Exposure assessment guidance typically assumes that residences would be exposed to air pollution 24 hours per day, 7 days a week, for 30 years.[46] Therefore, assessments of air pollutant exposure to residents typically result in the greatest adverse health outcomes of all population groups.

In an effort to identify areas of San Francisco most adversely affected by sources of TACs, San Francisco partnered with the air district to conduct a citywide health risk assessment based on an inventory and assessment of air pollution and exposures from mobile, stationary, and area sources within San Francisco. Areas with poor air quality, termed the air pollutant exposure zone were identified based on health-protective criteria that consider estimated cancer risk, exposures to fine particulate matter, proximity to freeways, and locations with particularly vulnerable populations. The project site is located within the air pollutant exposure zone.

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43 In general, a health risk assessment is required if the air district concludes that projected emissions of a specific air toxic compound from a proposed new or modified source suggest a potential public health risk. The applicant is then subject to a health risk assessment for the source in question. Such an assessment generally evaluates chronic, long-term effects, estimating the increased risk of cancer as a result of exposure to one or more TACs.

44 San Francisco Department of Public Health, *Assessment and Mitigation of Air Pollutant Health Effects from Intra-Urban Roadways: Guidance for Land Use Planning and Environmental Review*, May 2008.

45 California Air Resources Board, Fact Sheet, "The Toxic Air Contaminant Identification Process: Toxic Air Contaminant Emissions from Diesel-fueled Engines," October 1998.

46 California Office of Environmental Health Hazard Assessment, Air Toxics Hot Spot Program Risk Assessment Guidelines, February, 2015. Pg. 4-44, 8-6.

The above citywide health risk modeling is referenced in the Enhanced Ventilation Required for Urban Infill Sensitive Use Developments or Health Code, article 38 (Ordinance No. 224-14, effective December 8, 2014) (article 38). The purpose of article 38 is to protect the public health and welfare by establishing an air pollutant exposure zone and imposing an enhanced ventilation requirement for all urban infill sensitive use development within the zone.

The project site is located within the air pollutant exposure zone; therefore, health code article 38 applies to the proposed project.[47] The project sponsor submitted an application to the public health department on March 14, 2023, in accordance with the health code.[48] In addition, projects within the air pollutant exposure zone require special consideration to determine whether the project's activities would add a substantial amount of emissions to areas already adversely affected by poor air quality.

Comments received in response to the NOP regarding the proposed project's potential air quality impacts expressed concerns regarding construction and excavation exposure to vulnerable populations in nearby open spaces or recreational facilities. Additional comments expressed concerns regarding increased air pollution from generator use and loading docks exhausts as well as ambient air pollution.

Impact AQ-1: The proposed project would not conflict with or obstruct implementation of the applicable air quality plan. ***(Less than Significant)***

The most recently adopted air quality plan for the air basin is the air district's 2017 clean air plan.[49] The clean air plan is a road map that demonstrates how the San Francisco Bay Area will achieve compliance with the state ozone standards and how the region will reduce the transport of ozone and ozone precursors to neighboring air basins. In determining consistency with the clean air plan, this analysis considers whether the project would: (1) support the primary goals of the plan; (2) include applicable control measures from the plan; and (3) avoid disrupting or hindering implementation of control measures identified in the plan.

The primary goals of the clean air plan are to: (1) protect air quality and health at the regional and local scale; (2) eliminate disparities among Bay Area communities in cancer health risk from toxic air contaminants; and (3) protect the climate by reducing greenhouse gas emissions. To meet the primary goals, the plan recommends 85 specific control measures and actions. These control measures are grouped into various categories and include stationary and area source measures, mobile source measures, transportation control measures, land use measures, and energy and climate measures. To the extent that the air district has regulatory authority over an emissions source generated by the project, the control measures may be requirements of the proposed project. Other measures in the plan not within the air district's regulatory authority may be advisory or are otherwise not specifically applicable to land use development projects.

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47 San Francisco Public Health Code, Article 38, https://codelibrary.amlegal.com/codes/san_francisco/latest/sf_health/0-0-0-59248, accessed May 24, 2024. The development of two new residential care facility buildings qualifies as a "sensitive use" under article 38, defined in California Building Code Section 310.3.1 Residential Group R-2.1.

48 San Francisco Department of Public Health, Application for Article 38 Compliance Assessment for 3400 Laguna Street, March 14, 2023.

49 Bay Area Air Quality Management District, *Spare the Air Cool the Climate, Final 2017 Clean Air Plan,* April 2017. Available at: https://www.baaqmd.gov/~/media/files/planning-and-research/plans/2017-clean-air-plan/attachment-a_-proposed-final-cap-vol-1-pdf.pdf?la=en. Accessed April 12, 2024.

The clean air plan recognizes that to a great extent, community design dictates individual travel mode, and that a key long-term control strategy to reduce emissions of criteria pollutants, air toxics, and greenhouse gases from motor vehicles is to channel future Bay Area growth into vibrant urban communities where goods and services are close at hand, and people have a range of viable transportation options.

The clean air plan measures most applicable to the proposed project are transportation, energy and climate control measures. Transportation control measures that are identified in the clean air plan are implemented by the San Francisco General Plan and the planning code, for example, through the City's Transit First Policy, transportation demand management program requirements, and transit impact development fees. Compliance with these requirements would ensure the project includes relevant transportation control measures specified in the clean air plan. The proposed project's impact with respect to GHGs are discussed in Section D.8, Greenhouse Gas Emissions, which demonstrates that the proposed project would comply with the applicable provisions of the City's GHG reduction strategy. Therefore, the proposed project would include applicable control measures identified in the clean air plan to meet the plan's primary goals.

Examples of a project that could cause the disruption or delay of clean air plan control measures are projects that would substantially increase automobile trips, preclude the extension of a transit line or bike path, or projects that propose excessive parking beyond parking requirements. The proposed project would result in the expansion and renovation of an existing residential care facility through the demolition of two existing buildings and construction of two new buildings, as well as renovation of two of the three remaining buildings, resulting in an addition of approximately 58,380 square feet of institutional use and an increase in the number of residential care units by 23 from 86 to 109. With approximately 302 net new daily vehicle trips, the proposed project would not substantially increase vehicle trips or increase VMT. To accommodate the expanded use, the project would add 19 on-site parking spaces, the majority of which would be included in the new basement-level garage. Additionally, the project would remove an additional eight on-street parking spaces for required bulb-outs on the corners of Laguna and Francisco streets and Laguna and Bay streets, as required by planning code section 138.1.The project would remove one on-street 22-foot-long passenger loading space along the project site's Francisco Street frontage and the associated approximately 18-foot-wide curb cut, and add one on-street parking space. The proposed number of parking spaces is not considered excessive, and the project would not preclude the extension of a transit line or bike path.

For the reasons described above, the proposed project would not interfere with or obstruct implementation of the clean air plan; therefore, this impact would be less than significant, and no mitigation would be required.

Impact AQ-2: The proposed project's construction activities may result in a cumulatively considerable net increase in non-attainment criteria air pollutants within the air basin. (*Potentially Significant*)

Project-related air quality impacts fall into two categories: short-term impacts from construction and long-term impacts from project operation. Construction of the proposed project has the potential to result in significant impacts on air quality.[50] Accordingly, this topic is analyzed in the EIR under Impact AQ-2.

[50] San Francisco Planning Department, *Air Quality Screening Form, 3400 Laguna Street, 2022-009819ENV*. July 5, 2023.

Impact AQ-3: The proposed project's operational activities would not result in a cumulatively considerable net increase in non-attainment criteria air pollutants within the air basin. (*Less than Significant*)

Land use projects typically result in emissions of criteria air pollutants primarily from an increase in motor vehicle trips. However, land use projects may also result in criteria air pollutants from the combustion of natural gas, landscape maintenance, use of consumer products, and architectural coating. The following addresses criteria air pollutant impacts resulting from operation of the proposed project.

To assist lead agencies in determining whether short-term construction-related air pollutant emissions require further analysis as to whether the project may exceed the criteria air pollutant significance thresholds shown in Table E.8-1 above, the air district developed screening criteria.[51] If a proposed project meets the screening criteria, then operation of the project would result in less-than-significant criteria air pollutant impacts. A project that exceeds the screening criteria may require a detailed air quality assessment to determine whether criteria air pollutant emissions would exceed significance thresholds. The CEQA Air Quality Guidelines note that the screening levels are generally representative of new development on greenfield[52] sites without any form of mitigation measures taken into consideration. In addition, the screening criteria do not account for project design features, attributes, or local development requirements that could also result in lower emissions.

The proposed project would result in the expansion and renovation of an existing residential care facility through the demolition of two existing buildings and construction of two new buildings, as well as renovation of two of the three remaining buildings, resulting in an addition of 58,380 square feet of institutional use and an increase in the number of residential care suites by 23 from 86 to 109. The proposed project would be below the criteria air pollutant operational screening size of 1,008 dwelling unit of congregate care/retirement community land uses as identified in the air district's CEQA Air Quality Guidelines. Thus, quantification of project-generated operational criteria air pollutant emissions is not required, and the proposed project would not exceed any of the significance thresholds for operational criteria air pollutants and would result in a less-than-significant impact with respect to criteria air pollutants. No mitigation would be required.

Impact AQ-4: The proposed project may expose sensitive receptors to substantial pollutant concentrations. *(Potentially Significant)*

As discussed above, the project site is within an air pollutant exposure zone; therefore, the existing background health risks at the project site and vicinity are substantial. The proposed project would generate a negligible amount of TACs during operation from the approximately 302 new daily vehicle trips and any additional truck trips to the site. The proposed project includes a new Tier 4 backup emergency generator,

[51] Bay Area Air Quality Management District (air district), *California Environmental Quality Act Thresholds and Guidelines Update,* April 2023. Available at: https://www.baaqmd.gov/plans-and-climate/california-environmental-quality-act-ceqa/updated-ceqa-guidelines. Accessed April 12, 2024.

[52] A greenfield site refers to agricultural or forest land or an undeveloped site earmarked for commercial, residential, or industrial projects.

to replace the existing on-site generator which is approximately 25 years old.[53] The new generator would be of approximately the same size and in the same location and within the proposed Bay Street building. Thus, the replacement generator would not increase TACs above existing conditions. However, the proposed project would generate TACs during construction from the use of diesel-powered construction equipment; therefore, the proposed project has the potential to expose sensitive receptors to substantial pollutant concentrations, i.e., health risks.[54] Accordingly, this topic is analyzed further in the EIR under Impact AQ-4.

Impact AQ-5: The proposed project would not result in other emissions (such as those leading to odors) adversely affecting a substantial number of people. ***(Less than Significant)***

Typical odor sources of concern include wastewater treatment plants, sanitary landfills, transfer stations, composting facilities, petroleum refineries, asphalt batch plants, chemical manufacturing facilities, fiberglass manufacturing facilities, auto body shops, rendering plants, and coffee roasting facilities. During construction, diesel exhaust from construction equipment would generate some odors. However, construction-related odors would be temporary and would not persist upon project completion. Additionally, the proposed construction and renovation of the existing residential care facility would not create a significant source of new odors. As such, odor impacts would be less than significant, and no mitigation measures would be required.

Cumulative Impacts

As discussed above, regional air pollution is by its very nature largely a cumulative impact. Emissions from past, present and future projects contribute to the region's adverse air quality on a cumulative basis. No single project by itself would be sufficient in size to result in regional nonattainment of ambient air quality standards. Instead, a project's individual emissions contribute to existing cumulative adverse air quality impacts.[55] The project-level thresholds for criteria air pollutants are based on levels below which new sources are not anticipated to contribute to an air quality violation or result in a considerable net increase in criteria air pollutants. Therefore, construction-period cumulative criteria pollutant emissions are evaluated in the EIR under Impact AQ-2 and operation-period cumulative criteria air pollutant analysis is presented in Impact AQ-3. As such, no separate cumulative criteria air pollutant analysis is required. Operational criteria air pollutant impacts were determined to be less than significant, and no mitigation measures are required.

Impact C-AQ-4: The proposed project, in combination with cumulative projects, may expose sensitive receptors to substantial pollutant concentrations. ***(Potentially Significant)***

As previously discussed, the project site is located in an area that already experiences poor air quality. The proposed project would generate TACs during construction from the use of diesel-powered construction equipment. The proposed project would also generate a negligible amount of TACs during operation from the approximately 34 new daily vehicle trips and any additional truck trips to the site. Cumulative health risk impacts are addressed in the draft EIR under Impact C-AQ-4.

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53 Charles Pankow Builders, LTD, *Generator Description*, October 18, 2023.

54 San Francisco Planning Department, *Air Quality Screening Form, 3400 Laguna Street, 2022-009819ENV.* July 5, 2023.

55 Bay Area Air Quality Management District, *CEQA Air Quality Guidelines,* May 2017, page 2-1.

Impact C-AQ-5: The proposed project, in combination with cumulative projects, would not result in other emissions (such as those leading to odors) adversely affecting a substantial number of people. ***(Less than Significant)***

The proposed project and the Marina Improvement and Remediation Project, approximately 830 feet from the proposed project, would generate some odors during construction, but odors would be temporary. Upon completion of construction activities this project combined with the proposed project would not generate substantial odors. Therefore, cumulative odor impacts would be considered less than significant, and no mitigation measures would be required.

Topics:	Potentially Significant Impact	Less than Significant with Mitigation Incorporated	Less than Significant Impact	No Impact	Not Applicable
E.9. GREENHOUSE GAS EMISSIONS. Would the project:					
a) Generate greenhouse gas emissions, either directly or indirectly, that may have a significant impact on the environment?	☐	☐	☒	☐	☐
b) Conflict with any applicable plan, policy or regulation adopted for the purpose of reducing the emissions of greenhouse gases?	☐	☐	☒	☐	☐

Greenhouse gas (GHG) emissions and global climate change represent cumulative impacts. GHG emissions cumulatively contribute to the significant adverse environmental impacts of global climate change. No single project could generate enough GHG emissions to noticeably change the global average temperature; instead, the combination of GHG emissions from past, present, and future projects have contributed and will continue to contribute to global climate change and its associated environmental impacts. For this reason, the analysis of the proposed project's impact on climate change focuses on the project's contribution to cumulatively significant GHG emissions and this section does not include an individual project-specific impact statement.

On April 20, 2022, the air district adopted updated GHG thresholds.[56] Consistent with CEQA Guidelines sections 15064.4 and 15183.5 which address the analysis and determination of significant impacts from a proposed project's GHG emissions, the updated thresholds for land use projects, such as the proposed project, maintains the air district's previous GHG threshold that allow projects that are consistent with a GHG reduction strategy to conclude that the project's GHG impact is less than significant. San Francisco's

[56] Bay Area Air Quality Management District, CEQA Thresholds and Guidelines Update. Available: https://www.baaqmd.gov/plans-and-climate/california-environmental-quality-act-ceqa/updated-ceqa-guidelines. Accessed: April 12, 2024.

2023 GHG Reduction Strategy Update[57] presents a comprehensive assessment of policies, programs, and ordinances that collectively represent San Francisco's GHG reduction strategy in compliance with the air district's guidelines and CEQA Guidelines. These GHG reduction actions have resulted in a 48 percent reduction in GHG emissions in 2020 compared to 1990 levels,[58] which far exceeds the goal of 2020 GHG emissions equaling those in 1990 set in Executive Order S-3-05[59] and the California Global Warming Solutions Act.[60] The City has also met and exceeded the 2030 target of 40 percent reduction below 1990 levels set in the California Global Warming Solutions Act of 2016[61] and the air district's 2017 Clean Air Plan[62] more than 10 years before the target date.

San Francisco's GHG reduction goals, updated in July 2021 by ordinance 117-02,[63] are consistent with, or more aggressive than, the long-term goals established under executive orders S-3-05,[64] B-30-15,[65] B-55-18,[66] and the California Global Warming Solutions Act of 2016.[67] The updated GHG ordinance demonstrates the City's commitment to continued GHG reductions by establishing targets for 2030, 2040, and 2050 and setting other critical sustainability goals. In particular, the updated ordinance sets a goal to reach net-zero sector-based GHG emissions by 2040 and sequester any residual emissions using nature-based solutions.[68] Thus, the City's GHG reduction goal is consistent with the state's long-term goal of reaching carbon neutrality by 2045. The updated GHG ordinance requires the San Francisco Department of the Environment to prepare and submit to the mayor a climate action plan (CAP) by December 31, 2021. The CAP, which was released on December 8, 2021, and will be updated every five years, carries forward the efforts of the City's previous

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57 San Francisco Planning Department, *2023 Greenhouse Gas Reduction Strategy Update,* Revised October 2023. Available: https://sfplanning.org/project/greenhouse-gas-reduction-strategies#info. Accessed: April 12, 2024,.

58 San Francisco Department of the Environment, *San Francisco's 2019 Carbon Footprint*. Available: https://sfenvironment.org/carbonfootprint. Accessed: April 12, 2024.

59 Office of the Governor, Executive Order S-3-05, June 1, 2005. Available: https://www.library.ca.gov/wp-content/uploads/GovernmentPublications/executive-order-proclamation/5129-5130.pdf. Accessed: April 12, 2024.

60 California Legislative Information, Assembly Bill 32, September 27, 2006. Available: http://www.leginfo.ca.gov/pub/05-06/bill/asm/ab_0001-0050/ab_32_bill_20060927_chaptered.pdf. Accessed: April 12, 2024.

61 California Legislative Information, Senate Bill 32, September 8, 2016. Available: http://www.leginfo.ca.gov/pub/15-16/bill/sen/sb_0001-0050/sb_32_bill_20160908_chaptered.htm. Accessed: April 12, 2024.

62 Bay Area Air Quality Management District. 2017. Clean Air Plan. September 2017. Available: http://www.baaqmd.gov/plans-and-climate/air-quality-plans/current-plans. Accessed: April 12, 2024.

63 San Francisco Board of Supervisors. *Ordinance No. 117-21, File No. 210563*. July 20, 2021. Available: https://sfbos.org/sites/default/files/o0117-21.pdf. Accessed: April 12, 2024. San Francisco's GHG reduction goals are codified in section 902(a) of the Environment Code and include the following goals: (1) by 2030, a reduction in sector-based GHG emissions of at least 61 percent below 1990 levels; (2) by 2030, a reduction in consumption-based GHG emissions equivalent to a 40 percent reduction compared to 1990 levels; (3) by 2040, achievement of net zero sector-based GHG emissions by reducing such emissions by at least 90 percent compared to 1990 levels and sequestering any residual emissions; and (4) by 2050, a reduction in consumption-based GHG emissions equivalent to an 80 percent reduction compared to 1990 levels.

64 Executive Order S-3-05 sets forth a goal of an 80 percent reduction in GHG emissions by 2050. San Francisco's goal of net zero sector-based emissions by 2040 requires a greater reduction of GHG emissions.

65 Office of the Governor, *Executive Order B-30-15*, April 29, 2015. Available: https://www.ca.gov/archive/gov39/2015/04/29/news18938/. Accessed: April 12, 2024. Executive Order B-30-15 sets a state GHG emissions reduction goal of 40 percent below 1990 levels by 2030. San Francisco's 2030 sector based GHG reduction goal of 61 percent below 1990 levels requires a greater reduction of GHG emissions.

66 Office of the Governor, *Executive Order B-55-18*, September 18, 2018. Available: https://www.ca.gov/archive/gov39/wp-content/uploads/2018/09/9.10.18-Executive-Order.pdf. Accessed: April 12, 2024. Executive Order B-55-18 establishes a statewide goal of achieving carbon neutrality as soon as possible, but no later than 2045, and achieving and maintaining net negative emissions thereafter. San Francisco's goal of net zero sector-based emissions by 2040 is a similar goal but requires achievement of the target five years earlier.

67 Senate Bill 32 amends California Health and Safety Code Division 25.5 (also known as the California Global Warming Solutions Act of 2006) by adding Section 38566, which directs that statewide greenhouse gas emissions be reduced by 40 percent below 1990 levels by 2030. San Francisco's 2030 sector-based GHG reduction goal of 61 percent below 1990 levels requires a greater reduction of GHG emissions.

68 Nature-based solutions are those that remove remaining emissions from the atmosphere by storing them in natural systems that support soil fertility or employing other carbon farming practices.

CAPs and charts a path toward meeting the GHG commitments of the Paris Agreement (e.g., limit global warming to 1.5 degrees Celsius) as well as the reduction targets adopted in the GHG ordinance.

In summary, CEQA Guidelines and air district- adopted GHG thresholds allow projects consistent with an adopted GHG reduction strategy to determine a less-than-significant GHG impact. San Francisco has a GHG reduction strategy that is consistent with near- and long-term state and regional GHG reduction goals and is effective because the City has demonstrated its ability to meet state and regional GHG goals in advance of target dates. Therefore, projects that are consistent with San Francisco's GHG reduction strategy would not result in GHG emissions that would have a significant effect on the environment, and would not conflict with state, regional, or local GHG reduction plans and regulations.

Comments received in response to the NOP concerned the proposed project's increased GHG emissions from generator use. Additional comments included concerns about the scale of the increased carbon footprint in exchange for a small number of new residential care suites, as well as a recommendation for the project to achieve a LEED zero certification.

Impact C-GG-1: The proposed project would not generate GHG emissions, either directly or indirectly, that may have a significant impact on the environment. ***(Less than Significant)***

The proposed project would be subject to regulations adopted to reduce GHG emissions as identified in the GHG reduction strategy and demonstrated in the GHG checklist completed for the proposed project.[69] For example, the proposed project would comply with the City's Commuter Benefits Ordinance and bicycle parking requirements and would implement a Transportation Demand Management (TDM) Program, reducing the proposed project's transportation-related emissions. These regulations reduce GHG emissions from single-occupancy vehicles by promoting the use of alternative transportation modes with zero or lower GHG emissions on a per capita basis.

The proposed project would also be required to comply with the energy efficiency requirements of the San Francisco green building code, stormwater management ordinance, water efficient irrigation ordinance, existing commercial buildings energy performance ordinance, and light pollution reduction requirements which would promote energy and water efficiency, thereby reducing the proposed project's energy-related GHG emissions.[70] The project would replace natural gas connections for institutional kitchens and the heating, ventilation and cooling system with electric for both the new buildings and the Julia Morgan and Perry buildings, which would further lower the proposed project's GHG emissions and would be consistent with City regulations that no new natural gas connection be constructed.

The proposed project's waste-related emissions would be reduced through compliance with the City's recycling and composting ordinance and construction and demolition debris recovery ordinance. These regulations reduce the amount of materials sent to a landfill, reducing GHGs emitted by landfill operations.

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[69] San Francisco Planning Department, Greenhouse Gas Analysis: Compliance Checklist for the Heritage on the Marina Project, 3400 Laguna Street, November 27, 2023.

[70] Compliance with water conservation measures reduce the energy (and GHG emissions) required to convey, pump and treat water required for the project.

These regulations also promote reuse of materials, conserving their embodied energy[71] and reducing the energy required to produce new materials.

Compliance with the City's street tree planting requirements would serve to increase carbon sequestration. In the case of the proposed project, there would be six additional street trees added along the project site's Laguna Street frontage, as required per public works code section 806. Additionally, the project would result in a net increase of nine trees on the project site. Other regulations, including those requiring low-emitting finishes would reduce volatile organic compounds.[72] Thus, the proposed project was determined to be consistent with San Francisco's GHG reduction strategy.

As discussed above, these regulations have proved effective as San Francisco has reduced its GHG emissions by 48 percent below 1990 levels, which far exceed statewide and regional 2020 GHG reduction targets. Furthermore, the City's GHG emission reductions in 2020 also met statewide and regional 2030 targets 10 years in advance of the target year. Therefore, because the proposed project would be subject to regulations adopted to reduce GHG emissions, the proposed project would be consistent with San Francisco's GHG reduction strategy and would not generate significant GHG emissions nor conflict with state, regional, and local GHG reduction plans and regulations. As such, the proposed project's GHG emissions impact would be less than significant, and no mitigation would be required.

Topics:	Potentially Significant Impact	Less than Significant with Mitigation Incorporated	Less than Significant Impact	No Impact	Not Applicable
E.10. WIND. Would the project:					
a) Create wind hazards in publicly accessible areas of substantial pedestrian use?	☐	☐	☒	☐	☐

Impact WI-1: The proposed project would not create wind hazards in publicly accessible areas of substantial pedestrian use. ***(Less than Significant)***

To determine whether a project would alter wind in a manner that substantially affects public areas, the planning department applies the wind hazard criterion established in section 148, Reduction of Ground-Level Wind Currents of the San Francisco Planning Code. In accordance with section 148, a project would

[71] Embodied energy is the total energy required for the extraction, processing, manufacture and delivery of building materials to the building site.

[72] While not a GHG, volatile organic compounds are precursor pollutants that form ground level ozone. Increased ground level ozone is an anticipated effect of future global warming that would result in added health effects locally. Reducing volatile organic compound emissions would reduce the anticipated local effects of global warming.

result in hazardous wind conditions if it would cause ground-level wind speeds that exceed 26 mph for one hour or more per year.[73]

In general, new buildings less than approximately 85 feet in height are unlikely to result in substantial adverse effects on ground-level winds. Such winds may exist under existing conditions, but shorter buildings typically do not cause substantial changes in ground-level winds. Therefore, wind studies are not required for buildings under 85 feet in height.

The proposed project would not include new built structures of sufficient height or mass to amplify or redirect winds resulting in wind hazards for pedestrians. The proposed project would result in demolition of two of the five existing buildings on the project site (the Perry Connector and the Health Care Center) and construction of two new buildings (the Bay Building and the Francisco Building) at heights not to exceed 40 feet and in the same locations as the demolished structures. The proposed project would also renovate two of the other three existing buildings on the site, but the renovations do not include an increase in building height. Other new building features or changes to open space, including a basement level garage, would be at or below grade and would not affect local wind patterns. Therefore, the proposed project would have a less-than-significant impact on wind hazards in publicly accessible areas of pedestrian use. No mitigation is required.

Impact C-WI-1: The proposed project, combined with cumulative projects, would not result in significant cumulative impacts related to wind. ***(No impact)***

There are no actively planned projects within the vicinity of the project site that would contribute to cumulative wind impacts and the project itself would not contribute to a wind hazard. The only cumulative project in the vicinity of the project site is the Marina Improvement and Remediation Project, which includes investigation and remediation of sediments in East Harbor. Therefore, the proposed project would have no cumulative impacts on wind, and no mitigation would be required.

Topics:	Potentially Significant Impact	Less than Significant with Mitigation Incorporated	Less than Significant Impact	No Impact	Not Applicable
E.11. SHADOW. Would the project:					
a) Create new shadow that substantially and adversely affects the use and enjoyment of publicly accessible open spaces?	☐	☐	☒	☐	☐

[73] San Francisco Planning Code Section 148. Available at: http://library.amlegal.com/nxt/gateway.dll/California/planning/article12dimensionsareasandopenspaces?f=templates$fn=default.htm$3.0$vid=amlegal:sanfrancisco_ca$anc=JD_138.1.

Comments received in response to the NOP regarding potential impacts from new shadow included concerns over how the new project buildings would shadow Fort Mason, Moscone Field, the Julia Morgan building, and other residences in the neighborhood. Additional comments included a request for a full shadow study to be conducted.

Impact SH-1: The proposed project would not create new shadow that substantially and adversely affects the use and enjoyment of publicly accessible open spaces. ***(Less than Significant)***

Planning code section 295, Height Restrictions on Structures Shadowing Property Under the Jurisdiction of the Recreation and Park Commission, generally prohibits new structures taller than 40 feet that would cast additional shadows on open space that is under the jurisdiction of the San Francisco Recreation and Park Commission between one hour after sunrise and one hour before sunset, at any time of the year, unless that shadow would not result in a significant adverse effect on the use of the open space.

The criterion the City has adopted for determining the significance of shadow impacts under CEQA is whether the proposed project would create new shadow in a manner that substantially and adversely affects outdoor recreation facilities or other public areas, regardless of whether those facilities or areas are protected by planning code section 295 (i.e., under jurisdiction of public entities other than the San Francisco Recreation and Park Commission or privately owned and publicly accessible open space). In addition, as under planning code section 295, the CEQA analysis of shadow impacts takes into account the use of the open space; the time of day and year of project shadow; the physical layout and facilities affected; the intensity, size, shape, and location of the shadow; and the proportion of open space affected.

The proposed project would demolish two of the five existing buildings (the Perry Connector and the Health Care Center) and construct two new buildings (the Bay Building and the Francisco Building) at heights not to exceed 40 feet and in the same locations as the demolished structures. The proposed project would also renovate two of the other three existing buildings on the site, but the renovations do not include an increase in building height. The Moscone Recreation Center is across Laguna Street to the west and Upper Fort Mason is across Bay Street to the north of the project site. The Moscone Recreation Center is under the jurisdiction of the San Francisco Recreation and Park Commission and Upper Fort Mason is operated by the Golden Gate National Parks Conservancy and is part of the federal Golden Gate National Recreation Area.

The planning department acknowledges that shadows may result from buildings 40 feet tall or less; however, such shadows are to be tolerated, as reflected in planning code section 295 and the planning department's standard methodology for CEQA shadow analysis, in which shadow analysis may be required only if the proposed project exceeds 40 feet in height.

The new four-story Francisco Building on the Francisco Street frontage would be located mid-block and set back from the Laguna Street frontage and the existing Julia Morgan Building. Any new shadows cast from the new Francisco Building onto the Moscone Recreation Center property would be limited to the morning hours mostly during the winter months and would only reach the edge of the facility, where there is a walking path that is already shaded by mature vegetation throughout the day. On the Bay Street side, the new Bay Building would not cast new shadows onto this facility because it would be further set back from the Laguna Street frontage and there is an existing large mature tree at the corner of Bay and Laguna streets

that is taller than the proposed building. The Bay Building may cast limited new shadows onto Upper Fort Mason during brief periods throughout the year (i.e., during the late afternoon hours during the winter months), but these new shadows would only reach the edge of the facility where there is open grassland and an existing walking path with ample access to sunlight.

The proposed new buildings would also shade portions of public streets and sidewalks in the project vicinity at various times of the day throughout the year. The shadows on streets and sidewalks would not exceed levels commonly expected in urban areas and would be considered a less-than-significant effect under CEQA. Additionally, these shadows would be transitory in nature, would not substantially affect the use of the sidewalks, and would not increase shadow above levels that are common and generally expected in a developed urban environment.

As discussed above, the proposed project would not create new shadows that substantially affect existing outdoor recreation facilities or other public areas. This impact would be less than significant, and no mitigation measures would be required.

Impact C-SH-1: The proposed project, combined with cumulative projects, would not result in significant cumulative impacts related to shadow. ***(No impact)***

The geographic context for shadow impacts is the area in which the proposed project and cumulative projects, in combination, would shade the same public open spaces. The Marina Remediation Project is located approximately 830 feet from the project site. The Marina Remediation project is primarily an environmental clean-up project for the Marina harbor and contains very few built elements. Of the built elements that are planned, such as the new boat slips, the breakwaters, and park improvements, none are tall enough to cast a shadow that would combine with the shadow cast from the proposed project, Therefore, no cumulative shadow impact would occur, and no mitigation is required.

Topics:	Potentially Significant Impact	Less than Significant with Mitigation Incorporated	Less than Significant Impact	No Impact	Not Applicable
E.12. RECREATION. Would the project:					
a) Increase the use of existing neighborhood and regional parks or other recreational facilities such that substantial physical deterioration of the facilities would occur or be accelerated?	☐	☐	☒	☐	☐
b) Include recreational facilities or require the construction or expansion of recreational facilities that might have an adverse physical effect on the environment?	☐	☐	☐	☒	☐

Comments received in response to the NOP on potential impacts to recreational resources included concerns over reduced street parking for nearby public parks and how the use of recreational facilities will be affected from shadows stemming from the newly constructed buildings. Commenters are referred to the discussion below in addition to the discussion in Section E.12, Shadow and Section E.6, Transportation and Circulation with respect to the proposed project's changes to on-street parking.

Impact RE-1: The proposed project would not increase the use of existing neighborhood and regional parks and other recreational facilities such that substantial physical deterioration of the facilities would occur or be accelerated. ***(Less than Significant)***

The nearest park and recreation facilities to the project site are the Moscone Recreation Center, immediately across Laguna Street to the west; Fort Mason, immediately across Bay Street to the north; and the Marina Green, approximately 0.5 mile to the northwest, as further described below:

- The Moscone Recreation Center is an approximately 12-acre facility that includes a community center and gymnasium, a playground, dog park, picnic area, basketball courts, tennis courts and baseball and softball fields.

- Fort Mason is a 1,200 acre greenbelt on the City's northern waterfront that includes an open meadow, walking paths, and cultural sites associated with the former use as a military installation.

- The Marina Green is an approximately 74-acre open neighborhood field used for youth soccer and other activities.

During the 29-month construction period, it is unlikely that short term construction workers would permanently relocate to the area around the project site from more distant locations and therefore would not contribute to a new population of permanent recreational users. During construction, there may be temporary demand for these recreational resources because workers could use parks and recreational facilities when on break. However, any use by project construction workers would likely be intermittent and minimal.

The proposed project would add 23 residential care units to the project site, increasing the number of on-site residents by 33 (from 86 to 119). The project would also increase the usable open space on the site by 3,870 square feet, to a total of 30,280 square feet, via 3,550 square feet of occupiable space and 940 square feet of green area on the roof of the new Bay Building. It is anticipated that the new residents would visit the aforementioned local parks, but this increase in use would not have a significant effect on existing facilities due to the small number of new residents as well as ample park and recreation opportunities within the immediate vicinity. Additionally, intermittent use of parks throughout the day by future project employees would likely be limited to the lunch hour or other midday breaks, if at all. Therefore, the proposed project would have a less-than-significant impact recreational facilities and resources, and no mitigation measures would be required.

Impact RE-2: The proposed project would not include recreational facilities or require the construction or expansion of recreational facilities that might have an adverse physical effect on the environment. ***(No Impact)***

The proposed project would not include the construction or operation of any recreational facilities and therefore would not have the potential to result in an adverse physical environmental effect from construction or operation of recreational facilities. No mitigation measures would be required.

Impact C-RE-1: The proposed project, combined with cumulative projects, would not result in significant cumulative impacts related to recreation. ***(No impact)***

There are no actively planned projects within the vicinity of the project site that would contribute to cumulative impacts to recreation. The Marina Improvements and Remediation Project would make some open space improvements in the vicinity of the site and would enhance recreational opportunities. Therefore, the proposed project would have no cumulative impacts on recreation, and no mitigation would be required.

Topics:	Potentially Significant Impact	Less than Significant with Mitigation Incorporated	Less than Significant Impact	No Impact	Not Applicable
E.13. UTILITIES AND SERVICE SYSTEMS. Would the project:					
a) Require or result in the relocation or construction of new or expanded, water, wastewater treatment, or storm water drainage, electric power, natural gas, or telecommunications facilities, the construction or relocation of which could cause significant environmental effects?	☐	☐	☒	☐	☐
b) Have sufficient water supplies available to serve the project and reasonably foreseeable future development during normal, dry, and multiple dry years?	☐	☐	☒	☐	☐
c) Result in a determination by the wastewater treatment provider which serves or may serve the project that it has inadequate capacity to serve the project's projected demand in addition to the provider's existing commitments?	☐	☐	☒	☐	☐

Topics:	Potentially Significant Impact	Less than Significant with Mitigation Incorporated	Less than Significant Impact	No Impact	Not Applicable
d) Generate solid waste in excess of state or local standards, or in excess of the capacity of local infrastructure, or otherwise impair the attainment of solid waste reduction goals?	☐	☐	☒	☐	☐
e) Comply with federal, state, and local management and reduction statutes and regulations related to solid waste?	☐	☐	☒	☐	☐

Impact UT-1: **The proposed project would not require or result in the relocation or construction of new or expanded water, wastewater treatment, or stormwater drainage, electric power, natural gas, or telecommunications facilities, nor would it result in a determination by the wastewater treatment provider that it has inadequate capacity to serve the project's projected demand in addition to the provider's existing commitments.** ***(Less than Significant)***

The project site is served by the City's combined sewer system, which collects and treats most of the wastewater and stormwater at one of the three San Francisco Public Utilities Commission (SFPUC) treatment facilities. Wastewater and stormwater generated by the project would be treated at the Southeast Water Pollution Control Plant to standards contained in the City's National Pollutant Discharge Elimination System Permit prior to discharge into the San Francisco Bay. The treatment and discharge standards are set and regulated by the Regional Water Quality Control Board. The Southeast Water Pollution Control Plant has the capacity to treat up to 85.4 million gallons per day (mgd) of dry weather wastewater flows and up to 250 mgd during storm weather. In 2020, the Southeast Water Pollution Control Plant treated an average dry weather flow of 56.2 mgd.

As described in Section E.2, Population and Housing, the proposed project would increase the residential population on the site to 119 residents (33 net new residents) and employment to 75 staff members (22 net new staff members). The proposed project would incorporate water-efficient fixtures, as required by title 24 of the California Code of Regulations and the San Francisco Green Building Ordinance. Compliance with these regulations would reduce wastewater flows and the amount of potable water used for building functions.

The SFPUC's 2020 Urban Water Management Plan (UWMP)[74] and Sewer System Management Plan[75] account for projected population and employment growth. The incorporation of water-efficient fixtures into new development is also accounted for by the SFPUC, because widespread adoption can lead to more efficient use of existing capacity. For these reasons, the population increase associated with the proposed project

[74] San Francisco Public Utilities Commission, *2020 Urban Water Management Plan for the City and County of San Francisco*, June 2021.

[75] San Francisco Public Utilities Commission, *San Francisco Sewer System Management Plan*, September 2021.

would not require the construction of new or expansion of existing wastewater treatment facilities. The project site has been developed since at least 1925 and consists of built and paved surfaces, as well as areas of landscaped open space. The two new buildings to be constructed on the site would be developed in the same locations as the two structures to be demolished and within areas of existing paved surfaces. The project site is developed with existing buildings and paved surfaces occupying 37,066 square feet of impervious surfaces. The proposed project would result in a minor increase of 3,480 square feet of impervious surface for a total of 40,546 square feet of impervious surfaces. Therefore, the proposed project would not significantly increase the amount of stormwater entering the combined sewer system. Furthermore, the proposed project would be required to comply with the City's Stormwater Management Ordinance and the Stormwater Management Requirements and Design Guidelines, which would ensure that the proposed project includes appropriate stormwater management systems that retain runoff on site, promote stormwater reuse, and limit discharges from the site from entering the City's combined stormwater sewer system. As such, the proposed project would not result in a significant increase in the total amount of storm water runoff or an increase in the concentration of pollutants in stormwater runoff that would result in the need for the construction of new or expanded stormwater drainage and treatment facilities. Impacts on stormwater infrastructure would be less than significant, and no mitigation measures would be required.

As discussed in more detail in Impact UT-2, the proposed project would result in an incremental increase in the demand for new water supplies but would not itself result in the need for the construction of new or expanded water treatment facilities or delivery infrastructure.

The proposed project could result in an incremental increase in the demand for electricity and telecommunications, but any increase would not exceed amounts expected and provided for in the project area by utility service providers. The proposed project would be subject to the energy conservation standards included in the San Francisco Green Building Ordinance, which contains energy efficiency and water conservation requirements, such as installing water conserving fixtures to reduce potable water demand. In addition, the proposed project would be required to comply with title 24 of the California Code of Regulations, which regulates energy consumption associated with heating, cooling, and ventilation, and lighting; it is enforced by the building department. Compliance with title 24 and the San Francisco Green Building Ordinance would ensure electricity and telecommunications would be provided to meet the needs of the project.

For these reasons, the utilities demand associated with the proposed project would not exceed the service capacity of the existing providers and would not require the construction of new facilities or expansion of existing facilities. Therefore, this impact would be less than significant, and no mitigation would be required.

Impact UT-2: The proposed project would not significantly increase water demand and would not require expansion or construction of new water supply or treatment facilities. ***(Less than Significant)***

The SFPUC adopted the 2020 Urban Water Management Plan (2020 plan) in June 2021.[76] The 2020 plan estimates that current and projected water supplies will be sufficient to meet future demand for retail

[76] San Francisco Public Utilities Commission, 2020 Urban Water Management Plan for the City and County of San Francisco, adopted June 11, 2021. This document is available at https://sfpuc.org/about-us/policies-plans/urban-water-management-plan.

water[77] customers through 2045 under wet- and normal-year conditions. In dry years, however, the SFPUC would implement water use and supply reductions through its Water Shortage Contingency Plan and a corresponding Retail Water Shortage Allocation Plan.[78]

The 2020 plan relied on the San Francisco Planning Department (planning department) housing projections based on the Housing Element 2022 Update, which was still under development when the 2020 plan was adopted. The City adopted the Housing Element 2022 Update in January 2023 with slightly different housing projections. The next update for the Urban Water Management Plan will be in 2025. Accordingly, the SFPUC prepared the 2023 Interim Water Demand Projections (2023 Interim Projections) to document the SFPUC's projected retail water supplies when compared to projected retail water demands associated with the adopted Housing Element 2022 Update.[79] In normal hydrologic years and single dry year conditions, there would be no retail supply shortfall. This is unchanged from the 2020 plan. In the multiple dry year scenario, the SFPUC would only experience system-wide shortages in retail water supplies of 10 percent during years 4 and 5 of an extended drought at 2045 levels of demand. In a 10% shortage, retail customers would reduce their demands by 5 percent as required by the Water Supply Agreement between SFPUC and its Wholesale Customers. As a result of this demand reduction, there is a projected surplus of 5.3 percent, or 4.1 mgd, which is 0.1 mgd greater than that estimated in the 2020 UWMP. The information below accounts for the 2020 plan and 2023 interim projections.

In December 2018, the State Water Resources Control Board adopted amendments to the Water Quality Control Plan for the San Francisco Bay/Sacramento-San Joaquin Delta Estuary, which establishes water quality objectives for the Bay-Delta watershed, and in particular the Stanislaus, Tuolumne, and Merced tributaries (the Bay-Delta Plan Amendment).[80] The state water board has previously indicated its intent to implement the Bay-Delta Plan Amendment by 2022, assuming all required approvals are obtained by that time. However, at this time, implementation of the Bay-Delta Plan Amendment remains uncertain due to pending legal challenges and outstanding regulatory actions. Implementation of the Bay-Delta Plan Amendment would result in a substantial reduction in the SFPUC's water supplies from the Tuolumne River watershed during dry years, requiring rationing to a greater degree in San Francisco than previously anticipated to address supply shortages.

The SFPUC continues to negotiate with the State and other stakeholders to amend the Bay-Delta Plan Amendment to incorporate a Healthy Rivers and Landscapes agreement as its implementation pathway. To this end, in November 2022, the SFPUC signed a memorandum of understanding with the state and other water users to structure their participation in the Healthy Rivers and Landscapes agreement negotiation process. This framework document is designed to facilitate the parties' development of enforceable agreements with actions and funding to integrate additional water flows with the physical landscape to help improve habitat for native fish in the Sacramento-San Joaquin River Delta watershed, including on the

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77 "Retail" demand represents water the SFPUC provides to individual customers within San Francisco. "Wholesale" demand represents water the SFPUC provides to other water agencies supplying other jurisdictions.

78 San Francisco Public Utilities Commission, 2020 Urban Water Management Plan for the City and County of San Francisco, Appendix K – Water Shortage Contingency Plan, adopted June 11, 2021. This document is available at https://sfpuc.org/about-us/policies-plans/urban-water-management-plan.

79 San Francisco Public Utilities Commission, 2023 Interim Water Demand Projections for the City and County of San Francisco, September 2023. Available at: https://www.sfpuc.gov/sites/default/files/documents/2023_Interim_Water_Demand_Projections_Sep2023_0.pdf, accessed July 26, 2024.

80 State Water Resources Control Board Resolution No. 2018-0059, Adoption of Amendments to the Water Quality Control Plan for the San Francisco Bay/Sacramento-San Joaquin Delta Estuary and Final Substitute Environmental Document, December 12, 2018, available at https://www.waterboards.ca.gov/plans_policies/docs/2018wqcp.pdf.

Tuolumne River. In March 2024, in furtherance of the memorandum of understanding, the SFPUC submitted the key components of its proposed Healthy Rivers and Landscapes agreement to the state water board.

Whether, when, and the form in which the Bay-Delta Plan Amendment will be implemented, and how those amendments will affect the SFPUC's water supply, is currently unknown. As a result, implementation of the Bay-Delta Plan Amendment is uncertain. Due to these uncertainties, the 2020 plan in conjunction with the 2023 interim projections presents future supply scenarios both with and without the Bay-Delta Plan Amendment, as follows:

1. Without implementation of the Bay-Delta Plan Amendment wherein the water supply and demand assumptions contained in Section 8.4 of the 2020 plan and updated in Table 5 of the interim projections would be applicable

2. With implementation of a Healthy Rivers and Landscapes agreement between the SFPUC and the state water board that would include a combination of flow and non-flow measures that are designed to benefit fisheries at a lower water cost, particularly during multiple dry years, than would occur under the Bay-Delta Plan Amendment

3. With implementation of the Bay-Delta Plan Amendment as adopted wherein the water supply and demand assumptions contained in Section 8.3 of the 2020 plan and updated in Table 4 of the interim projections would be applicable

Water supply shortfalls during dry years would be lowest without implementation and highest with implementation of the Bay-Delta Plan Amendment. Shortfalls under the proposed Healthy Rivers and Landscapes agreement would be between those with and without implementation of the Bay-Delta Plan Amendment.[81]

Under these three scenarios, the SFPUC would have adequate water to meet demand in San Francisco through 2045 in wet and normal years.[82] Without implementation of the Bay-Delta Plan Amendment, water supplies would be available to meet demand in all years except for a 4.1 million gallons per day (5.3 percent) shortfall in years four and five of a multiple-year drought based on 2045 demand.

With implementation of the Bay-Delta Plan Amendment, shortfalls would range from 11.8 million gallons per day (16.5 percent) in a single dry year to 19.8 million gallons per day mgd (27.8 percent) in years two through

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81 On March 26, 2019, the SFPUC adopted Resolution No. 19-0057 to support its participation in the Healthy Rivers and Landscapes agreement negotiation process. On March 1, 2019, the SFPUC, in partnership with other key interested parties, submitted a proposed project description that could form the basis for a Healthy Rivers and Landscapes agreement to the state water board. In November 2022, the SFPUC and partner water agencies on the Tuolumne River signed onto a memorandum of understanding between the state and other parties to structure their participation in the Healthy Rivers and Landscapes agreement negotiation process. This framework document is designed to facilitate the parties' development of enforceable agreements and amendments to the Bay-Delta Plan, with actions and funding to integrate additional water flows with the physical landscape to help improve habitat for native fish in the Sacramento-San Joaquin River Delta watershed, including on the Tuolumne River. On March 29, 2024, in furtherance of the memorandum of understanding, the SFPUC submitted the key components of its proposed Health Rivers and Landscapes agreement to the state water board. The SFPUC continues to actively participate in this process. Because the state water board has yet to accept proposed Healthy Rivers and Landscapes agreement, the shortages that would occur with its implementation are not known with certainty. However, if accepted, the Healthy Rivers and Landscapes agreement would result in dry year shortfalls of a lesser magnitude than under the Bay-Delta Plan Amendment.

82 Based on historic records of hydrology and reservoir inflow from 1920 to 2017, current delivery and flow obligations, and fully implemented infrastructure under the 2018 Phased Water System Improvement Program Variant, normal or wet years occurred 85 out of 97 years. This translates into roughly nine normal or wet years out of every 10 years. Conversely, system-wide rationing is required roughly one out of every 10 years. This frequency is expected to increase as climate change intensifies.

five of a multiple-year drought based on 2025 demand levels, and from 21 million gallons per day (25.9 percent) in a single dry year to 29 million gallons per day (35.8 percent) in years four and five of a multiple-year drought based on 2045 demand.

The proposed project does not require a water supply assessment under the California Water Code. Under sections 10910 through 10915 of the California Water Code, urban water suppliers like the SFPUC must prepare water supply assessments for certain large "water demand" projects, as defined in CEQA Guidelines section 15155.[83] The proposed project would result in a 58,380-square-foot expansion of an existing institutional use including an increase in residential care units by 23 from 86 to 109. At project completion, a total of 119 residents would be located on the site with a staff of 75. As such, it does not qualify as a "water-demand" project as defined by CEQA Guidelines section 15155(a)(1), and a water supply assessment is not required and has not been prepared for the project. The following discussion considers the potential water supply impacts for projects such as the proposed project that do not qualify as "water demand" projects.

No single development project alone in San Francisco would require the development of new or expanded water supply facilities or require the SFPUC to take other actions, such as imposing a higher level of rationing across the City in the event of a supply shortage in dry years. Therefore, a separate project-only analysis is not provided for this topic. The following analysis instead considers whether the proposed project, in combination with both existing development and projected growth through 2045, would require new or expanded water supply facilities, the construction or relocation of which could have significant construction impacts on the environment that are likely mitigable. It also considers whether a high level of rationing would be required that could have significant cumulative impacts. It is only under this cumulative context that development in San Francisco could have the potential to require new or expanded water supply facilities or require the SFPUC to take other actions, which in turn could result in significant physical environmental impacts related to water supply. If significant cumulative impacts could result, then the analysis considers whether the project would make a considerable contribution to the cumulative impact.

Based on guidance from the California Department of Water Resources and a citywide demand analysis, the SFPUC has established 50,000 gallons per day as the maximum water demand for projects that do not meet the definitions provided in CEQA Guidelines section 15155(a)(1).[84] The development proposed by the project would represent approximately 4.6 percent of the 500 units of residential use provided in section 15155(1)(A). The proposed project would also incorporate water-efficient fixtures as required by Title 24 of the California Code of Regulations and the City's Green Building Ordinance. In addition, under existing conditions the project site's water demand is below 10,000 gallons per day[85]; the proposed project would add 27 percent more units (an increase of 23 residential care suites from 86 to 109 residential care suites),

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[83] Pursuant to CEQA Guidelines section 15155(1), "a water-demand project" means:
(A) A residential development of more than 500 dwelling units.
(B) A shopping center or business establishment employing more than 1,000 persons or having more than 500,000 square feet of floor space.
(C) A commercial office building employing more than 1,000 persons or having more than 250,000 square feet of floor area.
(D) A hotel or motel, or both, having more than 500 rooms, (e) an industrial, manufacturing, or processing plant, or industrial park planned to house more than 1,000 persons, occupying more than 40 acres of land, or having more than 650,000 square feet of floor area.
(F) A mixed-use project that includes one or more of the projects specified in subdivisions (a)(1)(A), (a)(1)(B), (a)(1)(C), (a)(1)(D), (a)(1)(E), and (a)(1)(G) of this section.
(G) A project that would demand an amount of water equivalent to, or greater than, the amount of water required by a 500 dwelling unit project.

[84] Memorandum, from Steven R. Ritchie, Assistant General Manager, Water Enterprise, San Francisco Public Utilities Commission to Lisa Gibson, Environmental Review Officer, San Francisco Planning Department – Environmental Planning, May 31, 2019.

[85] The water bill provided by the project sponsor shows a 29 day period between 11/22/23 to 12/20/23 in which the average water consumption was approximately 6,,0000 gallons of water per day (144,787 gallons/29 days). F. Rockwood, personal communication, February 28, 2024.

but would also increase water efficiency compared to the project site's existing features. It is therefore reasonable to assume that the proposed project would result in an average daily demand of substantially less than 50,000 gallons per day of water.

Accordingly, the project's water demand would represent a small fraction of the total projected demand. As such, the project's water demand would not require or result in the relocation or construction of new or expanded water facilities, the construction or relocation of which could cause significant environmental effects.

Sufficient water supplies are available to serve the proposed project and reasonably foreseeable future development in normal, dry, and multiple dry years unless the Bay-Delta Plan Amendment is implemented. As indicated above, the proposed project's maximum demand would represent less than 0.06 percent of the total demand in 2045 when the retail supply shortfall projected to occur with implementation of the Bay-Delta Plan Amendment would be up to 35.8 percent in a multiple-year drought. The SFPUC has indicated it is accelerating its efforts to develop additional water supplies and explore other projects that would improve overall water supply resilience through an alternative water supply program. The SFPUC has taken action to fund the study of additional water supply projects, but it has not determined the feasibility of the possible projects and has determined that the identified potential projects would take anywhere from 10 to 30 years or more to implement. The potential impacts that could result from the construction and/or operation of any such water supply facility projects cannot be identified at this time. In any event, under such a worst-case scenario, the demand for the SFPUC to develop new or expanded dry-year water supplies would exist regardless of whether the proposed project is constructed.

Given the long lead times associated with developing additional water supplies, in the event the Bay-Delta Plan Amendment were to take effect sometime after project approval and result in a dry-year shortfall, the expected action of the SFPUC for the next 10 to 30 years (or more) would be limited to requiring increased rationing. As discussed in the SFPUC memorandum, the SFPUC has established a process through its Retail Water Shortage Allocation Plan for actions it would take under circumstances requiring rationing. The level of rationing that would be required of the proposed project is unknown at this time. Both direct and indirect environmental impacts could result from high levels of rationing. However, the small increase in potable water demand attributable to the project compared to citywide demand would not substantially affect the levels of dry-year rationing that would otherwise be required throughout the City. Therefore, the proposed project would not make a considerable contribution to a cumulative environmental impact caused by implementation of the Bay-Delta Plan Amendment. Project impacts related to water supply would be less than significant and no mitigation would be required.

Impact UT-3: The proposed project would not generate solid waste in excess of state or local standards, would not impair the attainment of solid waste reduction goals, and would comply with statutes, regulations, and reduction goals concerning solid waste. ***(Less than Significant)***

In September 2015, the City entered into a landfill disposal agreement with Recology, Inc. for disposal of all solid waste collected in San Francisco, at the Recology Hay Road Landfill in Solano County, through September 2024 or until 3.4 million tons have been disposed of, whichever occurs first. The City would have an option to renew the agreement for a period of six years or until an additional 1.6 million tons have been

disposed of, whichever occurs first.[86] The Recology Hay Road Landfill is permitted to accept up to 2,400 tons per day of solid waste. At that maximum permitted rate, the landfill has the capacity to accommodate solid waste until approximately 2034. Under existing conditions, the landfill receives an average of approximately 1,850 tons per day from all sources, with approximately 1,200 tons per day from San Francisco, which includes residential and commercial waste and demolition and construction debris that cannot be reused or recycled[87] (see discussion below). At the current rate of disposal, the landfill has operating capacity until 2041. The City's contract with the Recology Hay Road Landfill will extend until 2031 or when the City has disposed of 5 million tons of solid waste, whichever occurs first. At that point, the City would either further extend the landfill contract or find and entitle an alternative landfill site.

San Francisco set a goal of 75 percent solid waste diversion by 2010, which it exceeded at 80 percent diversion.[88] The current goal, set in 2018, is to reduce total waste generation by 15 percent and disposal to landfill by 50 percent before 2030.[89] San Francisco Ordinance No. 27-06 requires mixed construction and demolition debris to be transported by a Registered Transporter and taken to a Registered Facility that must recover for reuse or recycling and divert from landfill at least 65 percent of all received construction and demolition debris. San Francisco's Mandatory Recycling and Composting Ordinance No. 100-09 requires all properties and persons in the City to separate their recyclables, compostables, and landfill trash.

The proposed project would incrementally increase total City waste generation; however, the proposed project would be required to comply with San Francisco Ordinance Nos. 27-06 and 100-09. Due to the existing and anticipated increase of solid waste recycling in the City and the agreement with Recology for disposal of solid waste at the Hay Road Landfill, any increase in solid waste resulting from the proposed project would be accommodated by the existing landfill. Thus, the proposed project would have less-than-significant impacts related to solid waste, and no mitigation would be required.

Impact C-UT-1: The proposed project, in combination with cumulative projects, would not result in significant cumulative impacts on utilities and service systems. ***(Less than Significant)***

As described above, existing service management plans for water, wastewater, and solid waste disposal account for anticipated citywide growth. Furthermore, all projects in San Francisco would be required to comply with the same regulations described above that reduce stormwater, potable water, and waste generation. Therefore, the proposed project, in combination with other cumulative development projects, would not result in a significant cumulative utilities and service systems impact, and no mitigation would be required.

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[86] San Francisco Planning Department, Agreement for Disposal of San Francisco Municipal Solid Waste at Recology Hay Road Landfill in Solano County, Final Negative Declaration, Planning Department Case No. 2014.0653, May 21, 2015, http://sfmea.sfplanning.org/2014.0653E_Revised_FND.pdf, Accessed: April 12, 2024.

[87] CalRecycle, 2010, Jurisdiction diversion/disposal rate detail. http://www.calrecycle.ca.gov/LGCentral/reports/diversionprogram/JurisdictionDiversionDetail.aspx?JurisdictionID=438&Year=2010, Accessed: April 12, 2024.

[88] San Francisco Department of the Environment, San Francisco Ordinance No. 27-06, July 1, 2006, https://sfenvironment.org/sites/default/files/fliers/files/cd_ordinance.pdf, Accessed: April 12, 2024.

[89] San Francisco Department of the Environment, Zero Waste – Frequently Asked Questions, https://sfenvironment.org/zero-waste-faqs, Accessed: April 12, 2024.

Topics:	Potentially Significant Impact	Less than Significant with Mitigation Incorporated	Less than Significant Impact	No Impact	Not Applicable
E.14. PUBLIC SERVICES. Would the project:					
a) Result in substantial adverse physical impacts associated with the provision of new or physically altered governmental facilities, need for new or physically altered governmental facilities, the construction of which could cause significant environmental impacts, in order to maintain acceptable service ratios, response times, or other performance objectives for any of the public services such as fire protection, police protection, schools, parks, or other public facilities?	☐	☐	☒	☐	☐

The project's impacts to parks are discussed in Section E.12, Recreation. The proposed project is an expansion of an existing residential care facility and new residents would not generate new students; therefore, impacts to school services are not applicable and this topic is not further discussed. Impacts to other public services are discussed below. As discussed in Section E.3, Population and Housing, the proposed project would add a total of up to 33 residents compared to existing conditions. At project completion, a total of 75 staff members are expected to be employed at the site compared to 53 staff members under existing conditions. These increases would incrementally increase the demand for public services, as further discussed below.

Impact PS-1: **The proposed project would increase the demand for public services but not to such an extent that construction of new or physically altered facilities would be required.** ***(Less than Significant)***

Fire Protection

The San Francisco Fire Department (fire department) provides fire protection and emergency medical services in San Francisco, including the project site. The fire department consists of 45 active fire stations within San Francisco's 49 square miles. The fire department provides fire suppression and unified emergency medical services, including basic life support and advanced life support services. The closest fire station is Station 16 at 2251 Greenwich Street, approximately 0.6 mile southwest of the project site.

Construction activities would occur over 29 months. Construction staffing levels would vary throughout the construction duration in accordance with seasons and on-site construction activities. Construction activities have the potential to result in accidental on-site fires from such sources as mechanical equipment and the use of flammable construction materials. However, the proposed project would comply with Occupational Safety and Health Administration and fire and building code requirements; and construction managers and

personnel would be trained in emergency response and fire safety operations, which include the monitoring and management of life safety systems and facilities. Additionally, fire suppression equipment (e.g., fire extinguishers) would be maintained on site throughout the construction duration. Furthermore, construction would comply with all applicable federal, state, and local requirements concerning the handling, disposal, use, storage, and management of hazardous waste (refer to Section E.18, Hazards and Hazardous Materials). Therefore, the likelihood of accidents involving construction personnel and equipment and the need for fire department aid would be reduced and would not increase the demand for fire suppression or emergency response during the temporary construction period; new or altered fire stations would not be necessary to maintain response times.

The proposed project would incrementally increase the demand for fire protection and emergency medical services, due to the increase in the number of residents living on the project site. There would be a net increase of approximately 33 residents and 22 staff members within the existing residential care facility; however, the increase in demand would not be substantial given the overall demand for such services on a citywide basis. Moreover, fire protection and emergency medical resources are regularly redeployed based on need in order to maintain acceptable service ratios. For these reasons, implementation of the proposed project would not require the construction of new or alteration of existing fire facilities. Furthermore, the proposed project would be required to comply with applicable building and fire code requirements, including the California Fire Code, which establishes requirements for fire protection systems, such as providing state-mandated fire alarms, fire extinguishers, appropriate building access and egress, and emergency response notification systems. The project sponsor would also comply with the requirements pertaining to the water volume and pressure needed for fire suppression on site. Compliance with all applicable building and fire codes would further reduce the demand for fire department service and oversight.

For these reasons, the impact of the proposed project on fire protection services that could result in physical environmental impacts would be less than significant, and no mitigation measures would be required.

Police Protection

The San Francisco Police Department (police department) provides police protection services to the project site. There are 10 district stations; the project site is in the Northern Station jurisdiction located at 1125 Fillmore Street.

The proposed project could result in an incremental increase in demand for police protection services. Construction sites can attract theft and vandalism if not properly secured. Security measures such as security fencing, lighting, and locked entry could be used to prevent theft and vandalism. Although the proposed project could increase the number of calls received from the area, the increase in responsibilities would not be substantial in light of the existing demand for police protection services. Construction of the proposed project would be temporary, for a 29-month construction period, and would not require new or physically altered police facilities that could cause significant environmental impacts. Hence, the proposed project would have a less-than-significant impact related to the provision of police services, and no mitigation measures would be required.

Project operation would result in an incremental increase in police services due to an increase of residents living on the project site. The project site would be occupied by an additional 33 residents and 22 staff members compared to existing conditions. Typical police protection services such as responses to reported

crimes, traffic enforcement, and trespassing/vandalism prevention would be required. Although the site would be used more intensively, which typically is associated with a greater number of calls for service, the increase in residents is minimal, security is provided on site for residential care facility residents, and the Northern District would be able to provide the necessary police services and crime prevention in the area. Operation of the proposed project would not require the construction of new or physically altered police facilities that could result in a physical environmental impact in order to maintain acceptable service ratios, response times, or other performance objectives for police services. Therefore, the proposed project would have a less-than-significant impact related to the provision of police services, and no mitigation measures would be required.

Other Government Services

The proposed project would result in the net addition of 23 residential care suites on the project site and therefore is not expected to result in a significant change in demand for government services, including libraries, post offices, and other public facilities. Residents living on the project site would likely patronize the two branches of the San Francisco Public Library within proximity to the project site. The Golden Gate Valley Branch (located at 1801 Green Street) lies 0.5 mile to the south of the project site and the Marina Branch (located at 1890 Chestnut Street) lies 0.3 mile to the southwest of the project site. While the project would increase the population on the project site, the number of library branches in such a close proximity would ensure that effects on these facilities would be minimal and would not require new or altered facilities, the construction of which would result in physical environmental impacts. Therefore, the proposed project would have a less-than-significant impact on other government services, and no mitigation measures would be required.

Impact C-PS-1: The proposed project, combined with cumulative projects, would not result in significant cumulative impacts on police, fire, and school district services such that new or physically altered facilities, the construction of which could cause significant environmental impacts, would be required in order to maintain acceptable levels of service. ***(Less than Significant)***

The geographic context for cumulative fire, police, and library impacts are the police, fire, and library service areas. The Marina Harbor and Remediation project may increase the use of the Marina Green and Triangle Park through improvements to recreational infrastructure elements like new picnic areas, shoreline trails, and volleyball courts. In addition, essential City service providers continually assess demand, based on anticipated growth and service needs. By analyzing the applicable metrics, these agencies and services can adjust staffing, capacity, response times, and other measures of performance. As a result, there would not be any service gap in fire, police, library, or other governmental services associated with the proposed project and cumulative development. Therefore, the proposed project, in combination with cumulative projects, would have less-than-significant cumulative public services impacts, and no mitigation measures are required.

Topics:	Potentially Significant Impact	Less than Significant with Mitigation Incorporated	Less than Significant Impact	No Impact	Not Applicable
E.15. BIOLOGICAL RESOURCES. Would the project:					
a) Have a substantial adverse effect, either directly or through habitat modifications, on any species identified as a candidate, sensitive, or special-status species in local or regional plans, policies, or regulations, or by the California Department of Fish and Wildlife or U.S. Fish and Wildlife Service?	☐		☒	☐	☐	☐
b) Have a substantial adverse effect on any riparian habitat or other sensitive natural community identified in local or regional plans, policies, regulations or by the California Department of Fish and Wildlife or U.S. Fish and Wildlife Service?	☐		☐	☐	☐	☒
c) Have a substantial adverse effect on federally protected wetlands (including, but not limited to, marsh, vernal pool, coastal, etc.) through direct removal, filling, hydrological interruption, or other means?	☐		☐	☐	☐	☒
d) Interfere substantially with the movement of any native resident or migratory fish or wildlife species or with established native resident or migratory wildlife corridors, or impede the use of native wildlife nursery sites?	☐		☐	☒	☐	☐
e) Conflict with any local policies or ordinances protecting biological resources, such as a tree preservation policy or ordinance?	☐		☐	☒	☐	☐
f) Conflict with the provisions of an adopted habitat conservation plan, natural community conservation plan, or other approved local, regional, or state habitat conservation plan?	☐		☐	☐	☐	☒

The project site is currently developed with the approximately 83,300-square-foot Heritage on the Marina residential care facility and is primarily covered by impervious surfaces. The project site does not contain

federally protected wetlands as defined by section 404 of the Clean Water Act, riparian habitat, or other sensitive natural communities. In addition, the project site is not located within an adopted habitat conservation plan, a natural community conservation plan, or other approved local, regional, or state habitat conservation plan areas. Therefore, Topics E.15(b), E.15(c), and E.15(f) are not applicable to the proposed project and are not further discussed in this section.

Comments received in response to the NOP included concerns over the removal of mature trees that act as a habitat for natural communities. Additional comments expressed by the California Department of Fish and Wildlife (CDFW) expressed concerns related to the potential impact of the project on candidate or special status species like peregrine falcons, monarch butterflies, and bumble bees.

In order to assess the potential for special status species to occur on the project site, the CDFW California Natural Diversity Database (CNDDB)[90] was queried for occurrences of special-status species within a 5-mile radius around the project site. The results are provided in **Table E.15.1, Special-Status Species Evaluated for the Project** and discussed further below.

Table E.15-1 Special-Status Species Evaluated for the Project

Species	Status[1] (F/S/CDFW)	General Habitat Discussion	Potential to Occur Within the Project Site
Amphibian			
California giant salamander ***Dicamptodon ensatus***	(--/--/SSC)	Inhabit wet coastal forests near streams and seeps from Mendocino County south to Monterey County and east to Napa County.	**None.** There are no wet coastal forests on or near the site. The closest CNDDB occurrence (#79) is 4.26 miles away from the project site, southwest of the City of Sausalito. Multiple adults were caught in 1944-1945 in mammal traps.
California red-legged frog ***Rana draytonii***	(Threatened/--/SSC)	Occurs in a variety of ponds, sloughs, low-gradient streams, and low-salinity lagoons. Adults may forage in, and migrate through, terrestrial grasslands, riparian woodlands, and forests, but require weedy, slow moving or standing water that persist through most of the dry season for successful reproduction.	**None.** There is no suitable breeding or upland habitat present in or near the site. The closest CNDDB occurrence (#2) is 2.34 miles away from the project site at Mountain Lake in the Presidio of San Francisco. No exact date was given for this occurrence, but it is estimated to be around 1966.

[90] California Department of Fish and Wildlife. 2024 California Natural Diversity Database, commercial version dated June 2024, Biogeographic Data Branch, Sacramento.

Table E.15-1 Special-Status Species Evaluated for the Project

Species	Status[1] (F/S/CDFW)	General Habitat Discussion	Potential to Occur Within the Project Site
Birds			
American peregrine falcon ***Falco peregrinus anatum***	(Delisted/delisted/--)	Nesting sites are typically on ledges of large cliff faces. Many pairs are nesting on City buildings and bridges or in tree cavities of tall trees like coastal redwoods.	**None.** This species nests on taller structures than those on the project site, such as radio towers and buildings in the Financial District. The closest CNDDB occurrence (#51) was a sighting that overlapped with the project site. The occurrence was documented in 2014 within an 80-meter diameter around an urban structure that the falcon was nesting in.
Saltmarsh common yellowthroat ***Geothlypis trichas sinuosa***	(--/--/SSC)	Inhabits fresh and salt water marshes of the San Francisco By Region. Requires thick, continuous cover down to water surface for foraging; tall grasses, tule patches, and willows for nesting.	**None.** No marshes are present on the site. The closest CNDDB occurrence (#53) is 4.78 miles away in the Rodeo Lagoon of Fort Barry Military Reservation. Five breeding pairs were observed in 1985 in the willows along the creek.
California black rail ***Laterallus jamaicensis coturniculus***	(--/Threatened/FP)	Inhabits freshwater marshes, wet meadows and shallow margins of saltwater marshes border larger bays. Needs water depths of about 1 inch that do not fluctuate during the year and dense vegetation for nesting habitats.	**None.** No marshes are present within the site. The closest CNDDB occurrence (#274) is 0.51 mile away from the site in the vicinity of Crissy Field Marsh, though since this occurrence is from 1887, the species may have been extirpated. The second closest CNDDB occurrence (#320) is 2.07 miles away from the project site along Highway 1 in the Presidio where one female was collected in 1942.
San Pablo song sparrow ***Melospiza melodia samuelis***	(--/--/SSC)	Residents of salt marshes along the north side of San Francisco and San Pablo bays. Inhabits tidal sloughs	**None.** No marshes are present on the site. The closest CNDDB occurrence (#41) is 4.48 miles away from

Table E.15-1 Special-Status Species Evaluated for the Project

Species	Status[1] (F/S/CDFW)	General Habitat Discussion	Potential to Occur Within the Project Site
		in the Salicornia marshes; nests in Grindelia bordering slough channels.	the project site at Belvedere where one was collected in 1923.
Double-crested cormorant ***Nannopterum auritum***	(--/--/WL)	Nests in undisturbed sites beside water, on islands or the mainland. Uses wide rock ledges on cliffs, rugged slopes, and tall trees.	**None.** The site is in a disturbed urban area unsuitable for nesting. The closest CNDDB occurrence (#26) is 2.61 miles away from the site on the old Bay Bridge where there was a large nesting colony documented in 1988.
Bank swallow ***Riparia riparia***	(--/Threatened/--)	Colonial nester; nests primarily in riparian and other lowland habitats west of the desert. Requires vertical banks/cliffs with fine-textured/sandy soils near streams, rivers, lakes, and oceans to dig nesting holes.	**None.** No vertical banks are present within or in the vicinity of the site. The closest CNDDB occurrence (#115) is 4.7 miles west of the site on Ocean Beach where a colony of 100 pairs was first reported in 1927 and again in 1960.
		Insects	
Obscure bumble bee ***Bombus caliginosus***	(--/--/--) IUCN_VU	Open grassy coastal prairies and Coast Range meadows. Nesting occurs underground and sometimes above ground in abandon bird nests. Underground nest sites include abandoned rodent nests, in tufts of grass, rock piles, or cavities in dead trees. Food plants include *Ceanothus, Cirsium, Clarkia, Keckiella, Lathyrus, Lotus, Lupinus, Rhododendron, Rubus, Trifolium,* and *Vaccinium*.	**None.** As a generalist forager, this species potentially occurs wherever flowering plants bloom within its range, however, compacted soils are not suitable for nesting. This species has been noted to not do well in urban habitats and is often out competed by the yellow-faced bumblebee (*Bombus vosnesenskii)*. The closest CNDDB occurrence (#178) is 1.2 miles away from the site in Thompson Reach, a habitat restoration area within the Presidio. This occurrence was mapped by CNDDB according to a Presidio Trust map that

Table E.15-1 Special-Status Species Evaluated for the Project

Species	Status[1] (F/S/CDFW)	General Habitat Discussion	Potential to Occur Within the Project Site
			accompanied 3 bees that were collected in 2008 or 2009. Due to the lack of pristine habitat near the project site, it is unlikely to occur.
Western bumble bee ***Bombus occidentalis***	(--/Candidate Endangered/--)	Meadows and grasslands with abundant floral resources. Nests are primarily in underground cavities such as squirrel burrows, located on open west-southwest slopes bordered by trees. Food plant genera include but are not limited to *Cirsium, Eriogonum, Solidago, Aster, Ceanothus, Centaurea,* and *Penstemon*.	**None.** As a generalist forager, this species potentially occurs wherever flowering plants bloom within its range, however, the project site lacks its preferred foraging and nesting habitats. The closest CNDDB occurrence (#241) is 0.93 mile from the site, mapped in the general vicinity of the Presidio. The exact location is unknown as the collections occurred between 1916 and 1954. The most recent CNDDB occurrence (#240) of the Western bumble bee within 5 miles of the site was in 1998, which was mapped by CNDDB non-specifically across the San Francisco Botanical Garden in Golden Gate Park, where there are many plants that bumble bees could use for foraging.
Monarch butterfly – California overwintering population ***Danaus plexippus plexippus* pop. 1**	(Candidate/--/--)	Winter roost sites extend along the coast from northern Mendocino to Baja California, Mexico. Roosts located in wind-protected tree groves (eucalyptus, Monterey pine, cypress), with nectar and water sources nearby.	**None.** While individual monarchs may fly near or over the site during migration, there are no suitable tree groves for overwintering in the site. The closest CNDDB occurrence (#239) is 0.19 mile away from the site in Fort Mason (Xerces Site #3039). The roost trees were located behind the Fort Mason headquarters building

Table E.15-1 Special-Status Species Evaluated for the Project

Species	Status[1] (F/S/CDFW)	General Habitat Discussion	Potential to Occur Within the Project Site
			and they were last observed there in 2014, but have been documented in the area on and off since 1990.
Mission blue butterfly ***Icaricia icarioides missionensis***	(Endangered/--/--)	Bay Area grasslands with lupine host plants including silver lupine (*Lupinus albifrons*) and summer lupine (*Lupinus formosus*). Specifically found in San Bruno Mountains, Skyline Ridges, Twin Peaks, and Marin Headlands.	**None.** The site is not within this species' known range. The closest CNDDB occurrence (#8) is 2.69 miles from the project site at Fort Baker, just north of the Golden Gate Bridge. The butterfly was recorded in 1981 at its northern limit of distribution, but was not found when checked again in 1984 and 1985.
	Mammals		
Townsend's big-eared bat ***Corynorhinus townsendii***	(--/--/SSC)	Roosts in man-made structures such as caves, mines, tunnels, old buildings and bridge crevices. Typically found in quiet, undisturbed places.	**None.** The urban area that the site is located in is not suitable for this species. The closest CNDDB occurrence (#310) is 2.57 miles away from the project site at Twin Peaks in San Francisco where one female was collected in 2005.
Western red bat ***Lasiurus frantzii***	(--/--/SSC)	Roosts almost exclusively in trees near forests and riparian habitat. Roost in sycamore, cottonwood, ash, elder, and mulberry trees.	**None.** There are no forests and riparian habitats in the vicinity of the site. The closest CNDDB occurrence (#90) is 3.01 miles away in Golden Gate Park where one bat was observed in 2000 on a cultivated African hemp (*Sparrmannia africana*).
American badger ***Taxidea taxus***	(--/--/SSC)	Most abundant in drier open stages of most shrub, forest, and herbaceous habitats, with friable soils.	**None.** No suitable habitat present on the site. The closest CNDDB occurrence (#124) is 2.05 miles away in Golden Gate Park where one male was collected in 1936.

Table E.15-1 Special-Status Species Evaluated for the Project

Species	Status[1] (F/S/CDFW)	General Habitat Discussion	Potential to Occur Within the Project Site
Reptiles			
Western pond turtle ***Emys marmorata***	(Proposed Threatened/--/SSC)	Ponds, marshes, rivers, streams, and irrigation ditches that have emergent or riparian vegetation and sunny basking sites. Upland nesting habitat consists of friable soil exposed to full sun.	**None.** No bodies of water on the site or in the surrounding area. The closest CNDDB occurrence (#1262) is 2.22 miles away at Mountain Lake in the Presidio where individuals were translocated to the lake in 2015. Hatchlings and adults were found in the most recent surveys in 2021.
San Francisco garter snake ***Thamnophis sirtalis tetrataenia***	(Endangered/ Endangered/FP)	Found in small reedy marsh-edges and ponds. Moves into uplands in the late summer, spends winter in small mammal burrows.	**None.** No marsh edges or ponds in or near the site. The closest CNDDB occurrence (#9) is 3.62 miles away, though it is an occurrence covering a large, nonspecific area that stretches from southern San Francisco to past Montara Mountain. The occurrence appears to have been first observed in 1987 and was last updated in 2014.

Source: Compiled by LSA (2024).

[1] F = Federal; S = State; CDFW = California Department of Fish and Wildlife

Status Key:

Federal Status: FT = Federally listed as threatened; FE = Federally listed as endangered; FC = Federal Candidate Species

State Status: CE = California State listed as endangered; CT = California State listed as threatened; SSC = California species of special concern; FP = California Fully Protected

CDFW Status: FP = Fully Protected; SSC= Species of Special Concern; WL=Watch List

IUCN (International Union for Conservation of Nature) Status: CR=Critical; EN=Endangered; VU=Vulnerable

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Impact BI-1: The proposed project could interfere substantially with the movement of native resident or migratory fish or wildlife species or with established native resident or migratory wildlife corridors, or impede the use of native wildlife nursery sites. ***(Less than Significant with Mitigation)***

The project site is located within the Pacific Flyway, a north/south-oriented path stretching from Alaska to Patagonia, along which many species of birds migrate as they travel between breeding and overwintering locations. Additionally, the project site is located within 300 feet of an urban bird refuge and as such is

subject to Section 139, Standards for Bird Safe Buildings, of the planning code, which establishes building design standards to reduce avian mortality rates associated with bird strikes.[91, 92]

Structures in an urban setting may present risks for birds as they traverse their migratory paths due to building locations and/or features. The City has adopted guidelines to address this issue and provided regulations for bird-safe design within the City.[93] The regulations establish bird-safe standards for new building construction, additions to existing buildings, and replacement facades to reduce bird mortality from circumstances known to pose a high risk to birds and are considered to be "bird hazards." The two circumstances regulated are: (1) location-related hazards where the siting of a structure inside or within 300 feet of an urban bird refuge (open spaces that are 2 acres and larger and dominated by vegetation or open water) creates an increased risk to birds, and (2) feature-related hazards, which may increase risks to birds regardless of where the structure is located. The standards for location-related hazards would apply and project features would use bird friendly glass to minimize bird strikes.

The proposed project is governed by location-related hazards (as defined in Section 139) due to its adjacency to the open spaces areas of Fort Mason to the north (Bay Street façade) and Moscone Recreation Center on the west (Laguna Street façade). The existing Julia Morgan Building façades facing Bay and Laguna streets are compliant due to existing window dimensions and historic building provisions in planning code section 139. New construction along Bay Street would comply with bird safe requirements either by conforming window glass sizes to section 139 allowances or utilization of bird-friendly glazing (with either etched or infrared markings). The all-glass "hyphen" connector between the Julia Morgan building and the proposed Bay Street building meets the definition of a feature-related hazard and, therefore, would be required to use bird-friendly glass. With these provisions the project would comply, as necessary, with the building feature-related hazard standards of planning code section 139.[94]

As stated previously, a list of special status terrestrial wildlife species with CNDDB occurrences within 5 miles of the project site was compiled (Table E.15.1). However, each of these species was determined to be absent from the project site because it lacks suitable habitat and/or is outside the known range of the species. Based on comments from CDFW received in response to the NOP that expressed concerns over the potential impacts of the project to American peregrine falcons, Monarch butterflies, and bumble bees, these species are analyzed in further detail below.

American Peregrine Falcons

The American peregrine falcon (*Falco peregrinus anatum*) has a range that includes most of California during migrations and in winter. They occupy a wide range of habitats and nest in locations with tall cliffs, buildings, bridges, and sometimes trees. They lay eggs in a "scrape" or shallow indentations high up but will occasionally use old nests of other birds. Typically, their breeding season starts around February or March and extends until May or June. There are two CNDDB occurrences within 5 miles of the project site, one that overlaps with the project site (Occurrence 51) and another that is 3.62 miles away (Occurrence 55). Both occurrences have few ecological descriptors and no location details, each of which are polygons that extend for 8 miles on each side. While these occurrences are vague and difficult to draw conclusions from, it is

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91 An urban bird refuge is defined by San Francisco Planning Code Section 139(c)(1) as an open spaces two acres and larger dominated by vegetation, including vegetated landscaping, forest, meadows, grassland, or wetlands, or open water.

92 San Francisco Planning Department, Urban Bird Refuge Map, https://sfplanning.org/resource/urban-bird-refuge, accessed May 8, 2024.

93 San Francisco Planning Department, Standards for Bird Safe Buildings, 2011, https://sfplanning.org/standards-bird-safe-buildings, accessed December 21, 2021.

94 Feature-related hazards are defined as the uninterrupted glazed segments of a building that measure 24 square feet or larger.

known that American peregrine falcons nest in tall, urban structures like radio towers, hangers, and buildings in San Francisco's Financial District. The buildings on the project site are not sufficiently tall to be used as nesting habitat by peregrine falcons, and therefore, there is no potential for this species to nest on the project site.

Monarch Butterflies

Monarch butterfly (*Danaus plexippus plexippus*) overwinter along the coast from northern Mendocino to Baja California, Mexico. Overwintering sites require specific microclimate characteristics that protect them from the elements and freezing temperatures. In California, they are often found roosting in wind-protected tree groves of eucalyptus, Monterey pines, and Monterey cypress trees that are near nectar and water sources. There are 10 presumed extant CNDDB occurrences of Monarch roosting sites within 5 miles of the project site, though most of them are more than 3 miles away. The closest CNDDB occurrence (Occurrence number 239) is 0.19 mile away at Fort Mason where they were found roosting in trees located behind the headquarter buildings where there is a substantial eucalyptus grove. While there are planted Monterey pine trees on the project site, there are not enough to be considered a potential roosting site because they do not provide habitat that is protected from the elements. Therefore, there is no potential for Monarch butterflies to overwinter on the project site.

Bumble Bees

There are two bumble bee species, Western bumble bee (*Bombus occidentalis*) and obscure bumble bee (*Bombus caliginosus*), that are considered for the project area. The Western bumble bee is a generalist forager that occurs along the Pacific coast and western interior of North America. They depend on habitat with rich floral resources for nectar and suitable nesting sites. Habitat types include mixed woodlands, croplands, montane meadows, edges of grasslands, and urban areas. Western bumble bees typically nest in underground cavities like abandoned rodent burrows and in west-southwest slopes bordered by trees. Their colony's life cycle is annual, ranging from early February to late November, and rely on nectar resources that are available throughout this period. Nectar resource plants include *Ceanothus, Centaurea, Chrysothamnus, Cirsium, Geranium, Grindellia, Lupinus, Melilotus, Monardella, Rubus, Solidago,* and *Trifolium.*[95] Western bumble bee has 7 CNDDB occurrences within 5 miles of the project site, though all but one occurrence are from over 50 years ago. As a generalist forager, this species potentially occurs where flowering plants bloom within its range, however, the project site lacks preferred foraging and nesting habitat.

The obscure bumble bee also occurs along the Pacific Coast, though it is currently mostly limited to the fog belt where it inhabits open coastal prairies and meadows. Like the Western bumble bee, the obscure bumble bee nests mostly underground or in abandoned bird nests. Their nectar resources are diverse and can include *Ceanothus, Cirsium, Clarkia, Keckiella, Lathyrus, Lotus, Lupinus, Rhododendron, Rubus, Trifolium,* and *Vaccinium.* There are 3 CNDDB occurrences within 5 miles of the project site, all of which were last updated in 2009 from a map provided by the Presidio Trust. The closest occurrence (Occurrence number 178) is 1.19 miles away from the project site, mapped in Thompson Reach within the Presidio. Thompson Reach is a habitat restoration site planted with native species to promote a higher diversity of pollinators. Similar to Western bumble bees, this species could potentially occur wherever flowering plants bloom within its range, however, there is no suitable nesting habitat due to the compacted soils on site.

[95] Williams, P.H., et al. 2014. *The Bumble bees of North America: An Identification Guide*. Princeton University Press. Princeton.

Both the Western bumble bee and the obscure bumble bee have historically been found in San Francisco but have significantly declined and shown little recovery in the urban landscape. McFrederick and LeBuhn (2006) sampled bumble bees in 18 urban parks in San Francisco and 2 nearby wild parks to understand whether urban parks can act as refuges for native bumble bee species[96]. Both Western bumble bees and obscure bumble bees were not detected in any of the urban parks before, during, and after the sampling periods by those sampling in plots and outside of plots, as well as by volunteer observers within the City. McFrederick and LeBuhn compared their collections with previous records from San Francisco and determined, with confidence, that if these species were present, they would have been detected. Based on these findings, it is unlikely that the project site and the urban parks directly adjacent to it provide suitable habitat for Western bumble bees and obscure bumble bees, which rely on higher floral resource diversity and connectivity to other habitats.

No special-status species are known or expected to occur on or in the vicinity of the site due to its urbanized condition and lack of suitable habitat. As such, implementation of the proposed project would not have a substantial adverse effect, either directly or through habitat modification, on any species identified as candidate, sensitive, or special status species.

Existing street trees could support native nesting birds that are protected under the California Fish and Game Code or the Migratory Bird Treaty Act (MBTA), which protect special-status bird species. The proposed project would remove one street tree along the Bay Street frontage that would be replaced within close proximity to its original location, in addition to planting six new street trees along the project site frontage on Laguna Street. The proposed project would also remove 25 trees on the project site and would plant 34 new trees. Tree removal during the bird breeding season could impact nesting birds, resulting in a significant impact. However, compliance with the requirements of the Fish and Game Code and the migratory bird act would ensure that there would be no loss of active nests or bird mortality. To ensure the protection of nesting birds, **Mitigation Measure M-BI-1: Nesting Bird Protection** has been identified and agreed to by the project sponsor. Mitigation Measure M-BI-1 would require that tree removal and construction activities take place outside the nesting season to the extent possible. If trees are to be removed during the nesting season, this mitigation measure requires a pre-construction survey for nesting birds and establishes a “no construction” buffer around active nests until the young have fledged. With implementation of Mitigation Measure M-BI-1: Nesting Bird Protection, impacts to native or migratory nesting birds would be reduced to less than significant.

Mitigation Measure M-BI-1: **Nesting Bird Protection.** Nesting birds and their nests shall be protected during construction by implementation of the following:

a. To the extent feasible, the project sponsor shall conduct initial activities including, but not limited to, vegetation removal, tree trimming or removal, ground disturbance, building demolition, site grading, and other construction activities that may compromise breeding birds or the success of their nests outside of the nesting season (January 15 through August 15).

[96] McFrederick, Q.S. and LeBuhn, G. 2006. Are urban parks refuges for bumble bees *Bombus* spp. (Hymenoptera: Apidae)? *Biological Conservation* 129(3): 372-382.

b. If vegetation removal and other construction activities during the bird nesting season cannot be fully avoided, a qualified wildlife biologist shall conduct pre-construction nesting surveys within 72 hours prior to the start of vegetation removal, construction or demolition at areas that have not been previously disturbed by project activities or after any construction breaks of 72 hours or more. Typical experience requirements for a "qualified biologist" include a minimum of four years of academic training and professional experience in biological sciences and related resource management activities and a minimum of two years of experience in biological monitoring or surveying for nesting birds. Surveys of suitable habitat shall be performed in publicly accessible areas within 100 feet of the project site in order to locate any active nests of common bird species and within 250 feet of the project site to locate any active raptor (birds of prey) nests.

c. If active nests are located during the pre-construction nesting bird surveys a qualified biologist shall evaluate if the schedule of construction activities could affect the active nests; if so, the following measures shall apply, as determined by the biologist:

    i) If construction is not likely to affect the active nest, construction may proceed without restriction; however, a qualified biologist shall regularly monitor the nest at a frequency determined appropriate for the surrounding construction activity to confirm there is no adverse effect. Spot-check monitoring frequency would be determined on a nest-by-nest basis considering the particular construction activity, duration, proximity to the nest, and physical barriers that may screen activity from the nest. The qualified biologist may revise their determination at any time during the nesting season in coordination with the planning department.
    ii) If it is determined that construction may affect the active nest, the qualified biologist shall establish a no-disturbance buffer around the nest(s) and all project work shall halt within the buffer until a qualified biologist determines the nest is no longer in use. These buffer distances shall be equivalent to the survey distances (100 feet for passerines and 250 feet for raptors); however, the buffers may be adjusted if an obstruction, such as a building, is within line of sight between the nest and construction.
    iii) Modifying nest buffer distances, allowing certain construction activities within the buffer, and/or modifying construction methods in proximity to active nests shall be done at the discretion of the qualified biologist and in coordination with the planning department and CDFW, if necessary. Necessary actions to remove or relocate an active nest(s) shall be coordinated with the planning department and approved by CDFW, if necessary.

iv) Any work that must occur within established no-disturbance buffers around active nests shall be monitored by a qualified biologist. If adverse effects in response to project work within the buffer are observed and could compromise the nest, work within the no disturbance buffer(s) shall halt until the nest occupants have fledged.

v) Any birds that begin nesting within the project area and survey buffers amid construction activities are assumed to be habituated to construction-related or similar noise and disturbance levels, so no-disturbance buffer zones around nests may be reduced or eliminated in these cases as determined by the qualified biologist in coordination with the planning department and CDFW, if necessary. Work may proceed around these active nests as long as the nests and their occupants are not directly affected.

vi) In the event inactive nests are observed within or adjacent to the project site at any time throughout the year, any removal or relocation of the inactive nests shall be at the discretion of the qualified biologist in coordination with the planning department and CDFW, as appropriate. Work may proceed around these inactive nests.

Impact BI-2: The proposed project would not conflict with any local policies or ordinances protecting biological resources, such as a tree preservation policy or ordinance. ***(Less than Significant)***

The City's Urban Forestry Ordinances (Public Works Code section 801 et seq) requires a permit from the San Francisco Public Works to remove any protected trees. Protected trees include landmark trees[97], significant trees[98], or street trees on public or private property anywhere within the City limits. The proposed project would include the removal of one street tree on Bay Street that would be replaced in close proximity to its original location per public works code section 806; additionally, six new street trees would be planted along the Laguna Street frontage. The proposed project would remove 25 trees on the project site and plant 34 new trees for a net increase of nine trees on the project site. However, none of these trees proposed for removal are protected under the Urban Forestry Ordinance. There is one significant tree at the northwest corner of the project site that will not be removed or disturbed. Therefore, the proposed project would not conflict with the City's local tree ordinance, and the impact would be less than significant. No mitigation measures are required.

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[97] Landmark trees are designated by the San Francisco Board of Supervisors. Landmark trees are protected from physical damage and removal, There are currently 23 designated landmark trees in San Francisco.

[98] Significant trees are trees on private property within 10 feet of the public right of way and must meet one of the following three characteristics: 20 feet or greater in height, 15 feet or greater canopy width, or 12 inches or greater diameter or trunk measure at 4.5 feet above grade.

Impact C-BI-1: The proposed project, in combination with cumulative projects, would not result in significant cumulative impacts on biological resources. ***(Less than Significant)***

The project would not result in any cumulative impacts to the movement of native migratory wildlife as it would not result in any net decrease to street trees or on-site trees that that would be used for bird nesting and would comply with the with the California Fish and Game Code and the Migratory Bird Treaty Act (MBTA). Cumulative projects would be required to comply with the above cited regulations, and therefore would avoid significant cumulative impacts to biological resources.

All projects within San Francisco are required to comply with the Urban Forestry Ordinance, which would ensure that any cumulative impact resulting from conflicts with the City ordinance protecting trees would be less than significant. No mitigation measures are required.

Topics:	Potentially Significant Impact	Less than Significant with Mitigation Incorporated	Less than Significant Impact	No Impact	Not Applicable
E.16. GEOLOGY AND SOILS. Would the project:					
a) Directly or indirectly cause potential substantial adverse effects, including the risk of loss, injury, or death involving:					
i) Rupture of a known earthquake fault, as delineated on the most recent Alquist-Priolo Earthquake Fault Zoning Map issued by the State Geologist for the area or based on other substantial evidence of a known fault? Refer to Division of Mines and Geology Special Publication 42.	☐	☐	☒	☐	☐
ii) Strong seismic ground shaking?	☐	☐	☒	☐	☐
iii) Seismic-related ground failure, including liquefaction?	☐	☐	☒	☐	☐
iv) Landslides?	☐	☐	☒	☐	☐
b) Result in substantial soil erosion or the loss of topsoil?	☐	☐	☒	☐	☐
c) Be located on geologic unit or soil that is unstable, or that would become unstable as a result of the project, and potentially result in on- or off-site landslide, lateral spreading, subsidence, liquefaction, or collapse?	☐	☐	☒	☐	☐

Topics:	Potentially Significant Impact	Less than Significant with Mitigation Incorporated	Less than Significant Impact	No Impact	Not Applicable
d) Be located on expansive soil, as defined in Table 18-1-B of the Uniform Building Code (1994), creating substantial direct or indirect risks to life or property?	☐	☐	☒	☐	☐
e) Have soils incapable of adequately supporting the use of septic tanks or alternative wastewater disposal systems where sewers are not available for the disposal of waste water?	☐	☐	☐	☒	☐
f) Directly or indirectly destroy a unique paleontological resource or site or unique geologic feature?	☐	☐	☒	☐	☐

Comments received in response to the NOP included concerns regarding the potential for excavation activities to undermine the structural integrity of the Julia Morgan building and other surrounding properties. Additional comments expressed concerns that the proposed project is built on soils that are prone to subsidence and liquefaction.

Impact GE-1: The proposed project would not directly or indirectly cause potential substantial adverse effects, including the risk of loss, injury, or death involving fault rupture, strong seismic ground shaking, seismically induced ground failure, Including liquefaction, or landslides. ***(Less than Significant)***

Fault Rupture

There are no known active faults intersecting the project site and the site is not located within a State of California Earthquake Fault Zone as defined by the Alquist Priolo Earthquake Fault Zoning Act. The closest active fault is the San Andreas fault, which is located approximately 13 miles west of the project site. Therefore, the potential of surface rupture occurring from active faulting at the site is low. As such, the proposed project would not exacerbate the potential for surface rupture and therefore would have no impact on fault ruptures and no mitigation would be required.

Liquefaction and Lateral Spreading

Liquefaction and lateral spreading of soils can occur when ground shaking causes saturated soils to lose strength due to an increase in pore pressure. The geotechnical investigation[99] indicates that the project is not within an area that has been mapped as a designated seismic hazard zone for liquefaction. Additionally, there was no reported ground failures at the project site during the 1906 San Francisco Earthquake or the 1989 Loma Prieta Earthquake. The geotechnical investigation conducted on site found that there are deep, thin zones of potentially liquefiable soil in the northern portion of the site and thicker zones of potentially

[99] Rockridge Geotechnical, Geotechnical Investigation, Proposed New Buildings, Heritage on the Marina, January 9, 2024.

liquefiable soil in the central and southern portions of the site. The thickest layers were encountered between depths of 32 and 42 feet. However, the investigation concludes that the non-liquefiable soil overlying the potentially liquefiable soil layers are sufficiently thick and the potentially liquefiable layers are sufficiently thin such that the potential for surface manifestation from liquefaction, such as sand boils and loss of bearing capacity for shallow foundations, are low.

Lateral spreading is a phenomenon in which surficial soil displaces along a shear zone that has formed within an underlying liquefied layer. The geotechnical investigation uses a variety of empirical measures to assess the potential for lateral spreading to occur at the project site. The results of the analysis indicate the that the liquefiable soil layers on the project site have sufficiently high relative density and are discontinuous such that potential for lateral spreading to occur at the site is low. Therefore, impacts would be less than significant, and no mitigation would be required.

Strong Seismic Ground Shaking

The San Francisco Bay Area is an active seismic region. Earthquakes in the region result from strain energy constantly accumulating because of the northwestward movement of the Pacific Plate relative to the North American Plate. Historically, the Bay Area has experienced large, destructive earthquakes in 1838, 1868, 1906, and 1989. According to the geotechnical investigation,[100] the seismicity of the project site is governed by the activity from the San Andreas fault, approximately 13 miles to the west of the project site, although ground shaking from future earthquakes on other faults, including the Hayward, Calaveras, and San Gregorio faults will also be felt on the project site.

In the future, the project site will undoubtedly experience severe ground shaking during moderate and large magnitude earthquakes produced along the San Andreas fault or other active Bay Area fault zones. Using information from recent earthquakes, improved mapping of active faults, ground motion prediction modeling, and a new model for estimating earthquake probabilities, a panel of experts convened by the United States Geological Survey (USGS) have concluded there is a 72 percent chance for at least one earthquake of Magnitude 6.7 or larger in the San Francisco Bay Area before 2044. The Hayward fault, which has the highest likelihood of an earthquake greater than or equal to magnitude 6.7 in the Bay Area is estimated at 25 percent, while the likelihood on the Calaveras and San Andreas faults is estimated at approximately 21 and 17 percent, respectively.[101]

The geotechnical investigation concludes that the project site will experience strong to very strong ground shaking should an earthquake occur at one of the nearby faults. Overall, the geotechnical investigation concludes the site would be suitable for the proposed expansion provided the recommendations presented in the report are followed during design and construction. Additionally, the proposed project would be required to comply with the California Building Code (state building code, California Code of Regulations, Title 24) and the San Francisco Building Code, described in more detail below, which ensures the safety of all new construction in the state and City, respectively. Therefore, the proposed project would not have the potential to exacerbate seismic-related ground shaking, and as a result, would have a less-than-significant impact on strong seismic ground shaking. No mitigation would be required.

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100 Rockridge Geotechnical, Geotechnical Investigation, Proposed New Buildings, Heritage on the Marina, January 9, 2024.

101 Ibid.

Landslides

As indicated in the geotechnical investigation, the project is not located within an Earthquake Induced Landslide Zone per the California Geological Survey. Additionally, the project site is mostly flat land with little potential for landslides as a result of sloped land failure. There would be no impacts related to the potential for landslides to occur at the project site and this impact would be less than significant. No mitigation is required.

Impact GE-2: The proposed project would not result in substantial erosion or loss of topsoil. ***(Less than Significant)***

The project site is fully developed and entirely occupied by the Heritage on the Marina residential care facility. The proposed project would require the excavation of approximately 9,060 cubic yards of soil to a depth of approximately 15 feet. As a result, the site could be affected by windborne and waterborne erosion during construction activities. The project sponsor and its contractor would be required to comply with section 146, Construction Site Runoff Control, of the public works code which requires all construction sites to implement best management practices to minimize surface runoff erosion and sedimentation.[102] Pursuant to section 146.7, if construction activities disturb 5,000 square feet or more of ground surface, the project sponsor must develop an erosion and sediment control plan. The erosion and sediment control plan must be submitted to public utilities commission staff for review and approval prior to commencing construction-related activities. The erosion and sediment control plan would identify best management practices to control discharge of sediment and other pollutants from entering the City's combined sewer system during construction. The project would be subject to these requirements.

San Francisco Building Code section 1805 (Dampproofing and Waterproofing) requires the geotechnical report to identify the location of the existing groundwater table in relation to the lowest floor level, and cites conditions when a subsoil drainage system must be designed to ensure that water flows into an approved drainage system. In addition, as discussed in Impact UT-1, the City's stormwater management ordinance includes requirements that would reduce stormwater runoff discharged from the project site.

Compliance with section 146 of the public works code, sections 1804 and 105 of the building code, and the stormwater management ordinance would ensure that the proposed project would not result in substantial loss of topsoil or soil erosion. Therefore, impacts related to loss of topsoil or substantial soil erosion during construction would be less than significant and no mitigation would be required.

Impact GE-3: The proposed project would not result in on- or offsite landslide, lateral spreading, subsidence, liquefaction, or collapse by being located on a geologic unit or soil that is unstable, or that could become unstable. ***(Less than Significant)***

As described in the geotechnical investigation, and in the discussion of Impact GE-1, the project would have little potential to result in lateral spreading, liquefaction, and landslides. In addition, the proposed project would be required to comply with state and local building codes. Adherence to these requirements would

[102] SFPUC. 2018. San Francisco Construction Site Runoff Control Program. Available online at https://sfpuc.org/programs/pretreatment-program/construction-site-runoff. Accessed April 12, 2024.

further ensure that the project sponsor adequately addresses any potential impacts related to unstable soils as part of the design-level geotechnical investigation that would be prepared for the proposed project. Therefore, any potential impacts related to unstable soils would be less than significant, and no mitigation measures would be required.

Impact GE-4: The proposed project would not create substantial risks to life or property by being located on expansive soils. ***(Less than Significant)***

Expansive soils expand and contract in response to changes in soil moisture, most notably when nearby surface soils change from saturated to a low-moisture content condition and back again. The expansion potential of the project site soil is considered to be low due to the presence of low-plasticity silt and some low-plasticity clay deposits. Applicable state and local building codes require a confirmation of the presence of expansive soils at the project site and, if applicable, implementation of measures to address this issue as part of the design-level geotechnical investigation prepared for the proposed project. Therefore, potential impacts related to expansive soils would be less than significant, and no mitigation measures would be required.

Impact GE-5: The proposed project would not have soils incapable of adequately supporting the use of septic tanks or alternative wastewater disposal systems where sewers are not available for the disposal of wastewater. ***(No Impact)***

The proposed project would connect to San Francisco's sewer and stormwater collection and treatment system. It would not use a septic water disposal system. As such, the proposed project would not have no impact on the use of septic tanks or alternative wastewater disposal systems and no mitigation would be required.

Impact GE-6: The proposed project would not directly or indirectly destroy a unique paleontological resource or site or unique geologic feature. ***(Less than Significant)***

Geologic Features

The project site is currently developed with the existing buildings associated with the operation of the Heritage on the Marina residential care facility that covers the entirety of the site. There are no unique geologic features at the project site. Therefore, the proposed project would have no impact on any unique geological features of the site and no mitigation would be required.

Paleontological Features

Paleontological resources include fossilized remains or traces of mammals, plants, and invertebrates, as well as their imprints. Such fossil remains, as well as the geological formations that contain them, are also considered a paleontological resource. Together, they represent a limited, non-renewable scientific and educational resource. To identify impacts on paleontological resources, the paleontological sensitivity of geologic units present within the project site were identified. Paleontological sensitivity is an indicator of the

likelihood of a geologic unit to yield fossils.[103] The fossil-yielding potential of geologic units in a particular area depends on the geologic age and origin of the units, as well as on the processes they have undergone, both geologic and anthropogenic.[104] The potential to affect fossils varies with the depth and type of disturbance, geologic units on the project site, construction activities, and previous disturbance.

The project site is underlain by Quaternary-age beach and Dune sand with approximately 1.5 to 18 feet of fill underlying native Dune sand. The fill thickness is generally less than 7 feet on the northern and central portions of the site and between approximately 8 and 18 feet on the southern portion of the site. The geologic unit underlying the fill has a low potential to yield significant fossils. Therefore, the project would result in a less-than-significant impact on paleontological resources. No mitigation is required.

Impact C-GE-1: The proposed project, in combination with cumulative projects, would not result in significant cumulative impacts on geology, soils, or paleontological resources. ***(Less than Significant)***

Geology and soils impacts are generally site-specific and localized. Cumulative development projects could require various levels of excavation or cut-and-fill, which could affect local geologic conditions, similar to the proposed project. As noted above, the San Francisco Building Code regulates construction in the City and County of San Francisco, and all development projects would be required to comply with its requirements to ensure maximum feasible seismic safety and minimize geologic impacts. Site-specific measures would also be implemented, as site conditions warrant, to reduce any potential impacts from unstable soils, ground shaking, liquefaction, or lateral spreading.

There are no actively planned projects within the vicinity of the project site that would contribute to cumulative impacts to geology, soils, or paleontological resources. Therefore, no significant cumulative geology and soils impact would occur, and no mitigation would be required.

Topics:	Potentially Significant Impact	Less than Significant with Mitigation Incorporated	Less than Significant Impact	No Impact	Not Applicable
E.17. HYDROLOGY AND WATER QUALITY. Would the project:					
a) Violate any water quality standards or waste discharge requirements or otherwise substantially degrade surface or groundwater quality?	☐	☐	☒	☐	☐

[103] Society of Vertebrate Paleontology. 2010. Standard Procedures for the Assessment and Mitigation of Adverse Impacts to Paleontological Resources. Available: http://vertpaleo.org/Membership/Member-Ethics/SVP _Impact_Mitigation_ Guidelines.aspx. Accessed April 12, 2024.

[104] Anthropogenic means caused by human activity.

Topics:	Potentially Significant Impact	Less than Significant with Mitigation Incorporated	Less than Significant Impact	No Impact	Not Applicable
b) Substantially decrease groundwater supplies or interfere substantially with groundwater recharge such that the project may impede sustainable groundwater management of the basin?	☐	☐	☒	☐	☐
c) Substantially alter the existing drainage pattern of the site or area, including through the alteration of the course of a stream or river or through the addition of impervious surfaces, in a manner that would:					
i) Result in substantial erosion or siltation on- or offsite;	☐	☐	☒	☐	☐
ii) Substantially increase the rate or amount of surface runoff in a manner which would result in flooding on or offsite;	☐	☐	☒	☐	☐
iii) Create or contribute runoff water which would exceed the capacity of existing or planned stormwater drainage systems or provide substantial additional sources of polluted runoff; or	☐	☐	☒	☐	☐
iv) Impede or redirect flood flows?	☐	☐	☒	☐	☐
d) In flood hazard, tsunami, or seiche zones, risk release of pollutants due to project inundation?	☐	☐	☐	☐	☒
e) Conflict with or obstruct implementation of a water quality control plan or sustainable groundwater management plan?	☐	☐	☒	☐	☐

According to SFPUC 100-Year Storm Flood Risk Map, the project site is not located within a 100-year flood hazard area,[105] or an area identified as being subject to potential inundation in the event of a tsunami along the San Francisco coast or a dam or levee failure.[106] Therefore, the proposed project would not create a risk related to a release of pollutants due to inundation in a flood hazard, tsunami, or seiche zone and Topic E.17(d) is not applicable to the proposed project and is not discussed below.

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105 San Francisco Public Utilities Commission, 100-Year Storm Flood Risk Map, 2019. Available online at: https://sfplanninggis.org/floodmap/. Accessed April 12, 2024

106 City and County of San Francisco, Community Safety Element of the San Francisco General Plan, 2012, Map 5 (Tsunami Hazard Zones San Francisco) and Map 6 (Potential Inundation Areas Due to Reservoir Failure), https://generalplan.sfplanning.org/Community_Safety_Element_2012.pdf. Accessed April 12, 2024.

Impact HY-1: The proposed project would not violate any water quality standards or waste discharge requirements or otherwise substantially degrade surface or groundwater quality. *(Less than Significant)*

Construction activities such as excavation would expose soil and could result in erosion and excess sediment being carried in stormwater runoff to the combined stormwater/sewer system. In addition, stormwater runoff from temporary on-site use and storage of vehicles, fuels, waste, and other hazardous materials could carry pollutants to the combined stormwater/sewer system if proper handling methods are not employed. Project-related wastewater and stormwater would flow to the City's combined stormwater/sewer system and would be treated to standards contained in the City's National Pollutant Discharge Elimination System (NPDES) Permit for the Southeast Water Pollution Control Plant prior to discharge into San Francisco Bay. The NPDES standards are set and regulated by the regional board. Therefore, because the proposed project's wastewater and stormwater would be treated at the Southeast Water Pollution Control Plant to state standards, the proposed project would not conflict with regional board requirements. The proposed project would also be required to comply with sections 146 and 147 of the public works code, which include requirements for the discharge of sediment and other pollutants from construction sites and to reduce the volumes of stormwater entering the combined stormwater/sewer system. Finally, in the event that construction dewatering is needed, the proposed project would be required to obtain a Batch Wastewater Discharge Permit (BWDP) from the SFPUC prior to any dewatering activities. The BWDP permit would contain appropriate discharge standards and may also require the installation of meters to measure the volume of discharge. These measures would ensure protection of water quality during construction of the proposed project. The proposed project would not violate any water quality standards or waste discharge requirements or otherwise substantially degrade water quality. This impact would be less than significant, and no mitigation measures are necessary.

Impact HY-2: The proposed project would not substantially decrease groundwater supplies or interfere substantially with groundwater recharge such that the proposed project may impede sustainable groundwater management of the basin. *(Less than Significant)*

The project site is in the Marina San Francisco groundwater basin.[107] This basin is not used as a potable water source and there are no plans for development of this basin for groundwater production. The Marina basin is not included in the SFPUC groundwater management program at this time. The proposed project would continue to be connected to the existing SFPUC potable water infrastructure and would not rely on wells for its water supply. Furthermore, the existing site is covered mostly in impervious surfaces, so that infiltration of rainwater into the groundwater basin and groundwater recharge at the project site is currently minimal. This condition would continue under the proposed project because after construction the site would consist of impervious surfaces, except for the addition of street trees and limited landscaping features. Therefore, operation of the proposed project would not deplete groundwater supplies in the project area or conflict with a sustainable groundwater management plan.

[107] State of California Department of Water Resources, DWR Mapping Tool, https://sgma.water.ca.gov/webgis/index.jsp?appid=gasmaster&rz=true, Accessed April 12, 2024.

As discussed in Section E.16, Geology and Soils, while groundwater was not encountered during field investigation borings, groundwater depths are estimated to be at a high of 15 feet below ground surface across the project site. As described in the draft EIR Chapter 2, Project Description, the proposed project would require excavation to depths of a maximum of 15 feet and therefore groundwater could be encountered during construction or excavation and dewatering could be required. Dewatering during construction would be temporary and limited to the construction period, and therefore would not substantially deplete groundwater supplies or interfere with groundwater recharge. Project operation would not extract groundwater. Therefore, groundwater resources would not be substantially depleted, and the proposed project would not otherwise substantially interfere with groundwater recharge or impede sustainable groundwater management. The proposed project would have a less-than-significant impact on groundwater supplies or management, and no mitigation measures are necessary.

Impact HY-3: **The proposed project would not substantially alter the existing drainage pattern of the site or area, including through the alteration of the course of a stream or river or through the addition of impervious surfaces, in a manner that would result in substantial erosion, siltation, or flooding on or off site; that would create or contribute runoff water which would exceed the capacity of existing or planned stormwater drainage systems or provide substantial additional sources of polluted runoff; or that would impede or redirect flood flows.** ***(Less than Significant)***

No streams or rivers exist at the project site. Therefore, the proposed project would have no impact related to alteration of drainage patterns by altering the course of a stream in a manner that would cause erosion, flooding, or siltation on site or off site. The project site is developed with existing buildings and paved surfaces occupying 37,066 square feet of impervious surfaces. The proposed project would result in a minor increase of 3,480 square feet of impervious surface for a total of 40,546 square feet of impervious surfaces. The proposed project would require the excavation of approximately 9,060 cubic yards of soil to depths of approximately 15 feet in one portion of the site. The proposed project would be required to comply with the City's Stormwater Management Ordinance and therefore would not substantially increase the rate or amount of surface runoff such that substantial flooding, erosion, or siltation would occur on or off site. Therefore, the proposed project would not result in the contribution of runoff water that would cause substantial erosion or flooding or exceed the capacity of the City's combined stormwater/sewer system. This impact would be less than significant, and no mitigation measures are required.

Impact HY-4: **The proposed project would not conflict with or obstruct implementation of a water quality control plan or sustainable groundwater management plan.** ***(Less than Significant)***

As previously discussed, the proposed project's wastewater and stormwater would be treated at the Southeast Water Pollution Control Plant to state standards prior to discharge into the bay, and therefore would not conflict with or obstruct implementation of the San Francisco Bay Water Quality Control Plan. The proposed project would not significantly decrease groundwater supplies or substantially interfere with groundwater recharge, nor would it substantially alter the drainage pattern of the site or area.

For these reasons, the project would have a less-than-significant impact related to conflicting or obstructing implementation of a water quality control plan or sustainable groundwater plan. No mitigation measures are required.

Impact C-HY-1: The proposed project, in combination with cumulative projects, would not result in a significant cumulative impact on hydrology and water quality. ***(Less than Significant)***

The proposed project and all reasonably foreseeable projects within San Francisco would be required to comply with the City's stormwater management ordinance and guidelines and dewatering and drainage control requirements, and all stormwater and wastewater would be treated to the standards in the City's NPDES permit. These requirements would ensure that both runoff water quality and runoff volumes are managed in a way that does not adversely affect water quality, create flooding, or exceed infrastructure capacity, both on an individual basis and cumulatively since these regulations inherently consider cumulative effects. Because other cumulative development would be required to comply with drainage, dewatering, and water quality regulations, similar to the proposed project, peak stormwater runoff rates and volumes for the design storm would gradually decrease over time with new development, thus no significant cumulative effects would occur. Therefore, cumulative impacts related to increased run-off and water quality would be less than significant.

With regards to groundwater, the Marina Groundwater Basin is not a potable water source. Further, upon completion of construction activities, the project would have no impact on groundwater levels. For these reasons, the project would not combine with cumulative development projects to result in cumulative groundwater impacts.

Overall, the proposed project would not combine with cumulative development to result in cumulative impacts to hydrology and water quality. No mitigation would be required.

Topics:	Potentially Significant Impact	Less than Significant with Mitigation Incorporated	Less than Significant Impact	No Impact	Not Applicable
E.18. HAZARDS AND HAZARDOUS MATERIALS. Would the project:					
a) Create a significant hazard to the public or the environment through the routine transport, use, or disposal of hazardous materials?	☐	☐	☒	☐	☐
b) Create a significant hazard to the public or the environment through reasonably foreseeable upset and accident conditions involving the release of hazardous materials into the environment?	☐	☐	☒	☐	☐

Topics:	Potentially Significant Impact	Less than Significant with Mitigation Incorporated	Less than Significant Impact	No Impact	Not Applicable
c) Emit hazardous emissions or handle hazardous or acutely hazardous materials, substances, or waste within one-quarter mile of an existing or proposed school?	☐	☐	☒	☐	☐
d) Be located on a site which is included on a list of hazardous materials sites compiled pursuant to Government Code section 65962.5 and, as a result, would it create a significant hazard to the public or the environment?	☐	☐	☐	☐	☒
e) For a project located within an airport land use plan or, where such a plan has not been adopted, within two miles of a public airport or public use airport, would the project result in a safety hazard or excessive noise for people residing or working in the project area?	☐	☐	☐	☐	☒
f) Impair implementation of or physically interfere with an adopted emergency response plan or emergency evacuation plan?	☐	☐	☒	☐	☐
g) Expose people or structures, either directly or indirectly, to a significant risk of loss, injury, or death involving wildland fires?	☐	☐	☐	☐	☒

The project site is not included on the list of hazardous materials sites compiled by the California Department of Toxic Substance Control pursuant to Government Code section 65962.5; is not located within an airport land use plan area or within an airport land use plan, or within two miles of a public airport or public use airport which would result in a safety hazard or excessive noise for people residing or working in the area; and is not located within or adjacent to a wildland area. Therefore Topics E.18(d), E.18(e), and E.18(g) are not applicable to the proposed project.

Comments received in response to the NOP related to hazards and hazardous materials included concerns that project construction will result in the disturbance of VOCs, asbestos, and lead based paints that will become airborne and harm nearby sensitive receptors. Additional comments included concerns about the project compliance with the Maher ordinance due to the project's proximity to former PG&E North Beach Manufactured Gas Plants.

Impact HZ-1: The proposed project would not create a significant hazard through the routine transport, use, or disposal of hazardous materials. ***(Less than Significant)***

Hazardous materials may be stored on site during construction of the proposed project. These hazardous materials include fuel for construction equipment, paints, solvents, and other types of construction materials that may contain hazardous ingredients. Transportation of hazardous materials to and from the project site would occur on designated hazardous materials routes, by licensed hazardous materials handlers, as required, and would be subject to regulation by the California Highway Patrol and the California Department of Transportation. Compliance with these regulations would reduce any risk from the routine transport, use, or disposal of hazardous materials to a less-than-significant level and no mitigation would be required.

Similar to existing conditions on the project site, the proposed project would likely result in the use of common types of hazardous materials, such as cleaning products and disinfectants. These products are labeled to inform users of their potential risks and to instruct them in appropriate handling procedures. In addition, the proposed project likely would result in the routine generation and disposal of medical waste, similar to existing conditions. The project would be subject to San Francisco Department of Public Health permitting requirements for generating and storing medical waste pursuant to article 25 of the public health code. The Heritage on the Marina currently contracts with a vendor to handle disposal of medical waste off the project site and would continue to be subject to regulation by the California Department of Toxic Substances Control.[108] Compliance with these regulations would reduce any risk from the routine transport, storage, or disposal of medical waste to a less-than-significant level, and no mitigation would be required.

Impact HZ-2: The proposed project would not create a significant hazard to the public or the environment through reasonably foreseeable upset and accident conditions involving the release of hazardous materials into the environment. ***(Less than Significant)***

A portion of the project site is located in an area of San Francisco governed by article 22A of the health code, also known as the known as the Maher Ordinance, meaning that it is known or suspected to contain contaminated soil and/or groundwater.[109] The overarching goal of the Maher Ordinance is to protect public health and safety by requiring appropriate handling, treatment, disposal and when necessary, remediation of contaminated soils that are encountered in the building construction process. Projects that disturb 50 cubic yards or more of soil that are located on sites with potentially hazardous soil or groundwater are subject to this ordinance. The proposed project would require excavation of approximately 9,060 cubic yards of soil to a maximum depth of 15 feet. The total area of soil disturbance would be 29,750 square feet. Therefore, the proposed project is subject to the Maher Ordinance, which is administered and overseen by the San Francisco Department of Public Health (health department). The project sponsor submitted an application to the Maher Program and retained the services of a qualified professional to prepare a phase I environmental site assessment (site assessment) that meets the requirements of article 22A. The findings of the site assessment are discussed below.[110]

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[108] California Department of Toxic Substances Control, Hazardous Waste Transporter Registration Certificate for Medical Environmental Technologies, LLC, October 2023. The Heritage on the Marina contracts with Medical Environmental Technologies, LLC (MET), a medical waste disposal company, to handle the disposal of medical waste in compliance with the California Department of Toxic Substances Control.

[109] San Francisco Planning Department, San Francisco Property Information Map – Map Viewer, 2019 Available online at: https://sfplanninggis.org/pim/. Accessed December 2023.

[110] Cornerstone Earth Group, Phase I Environmental Site Assessment, 3400 Laguna Street, San Francisco, California, February 16, 2023.

To identify the site's potential inclusion on environmental databases and evaluate offsite environmental concerns, Cornerstone Earth Group reviewed a site-specific radius report provided by Environmental Data Resources, Inc. which searched regulatory agency lists and databases for recorded sites within the industry standard search radii. According to the site assessment the project site has been developed since 1925. The project site is listed on the HAZNET, HWTS, RCRA NonGen/NLR databases. Waste disposed between 1990 and 2017 were categorized on the HAZNET and HWTS databases as asbestos containing waste. The RCRA NonGen/NLR database listing indicates that the site is no longer an active hazardous waste generator.

The site is surrounded by the former Fort Mason on the north, which is identified as a Formerly Used Defense Site (FUDS) and as a closed case on a database of military underground storage tank (UST) sites; the 1435 Bay Street building on the east, which was identified as a closed case on the leaking underground storage tank (LUST) database; and the former PG&E North Beach Manufactured Gas Plant to the northwest, which is identified as an open case on the EnviroStor database, among others. Based on database review, reported releases at the adjoining properties do not appear likely to have impacted soil, soil vapor, or groundwater at the site. However, several volatile organic compounds (VOCs) have been reported in groundwater from a monitoring well located adjacent to the west of the site within the Laguna Street right-of-way. This well is periodically sampled as part of the on-going groundwater monitoring activities associated with the former PG&E North Beach Manufactured Gas Plant property located to the northwest of the site. During sampling between 2016 and 2018, VOCs including tetrachloroethene (PCE) and trichloroethene (TCE) were reported in groundwater from the well at concentrations that were above the Water Board's environmental screening levels (ESLs) for residential properties, resulting in potential vapor intrusion concerns. The source of these VOCs is unknown but these chemicals are most commonly associated with dry-cleaning solvent.

The project sponsor submitted a Maher Application and the Phase I environmental site assessment to the San Francisco Department of Health in accordance with article 22A.[111] The proposed project would be required to remediate any potential soil or groundwater contamination described above that is on the project site in accordance with article 22A of the health code. The health department would oversee this process, and various regulations would apply to any disturbance of contaminants in soil or groundwater that would be encountered during construction to assure that no unacceptable exposures to the public would occur. Thus, the proposed project would not result in a significant hazard to the public or environment from the disturbance or release of contaminated soil and groundwater and the proposed project would result in a less than significant impact. No mitigation is required.

Asbestos-Containing Materials

The project site is occupied by a building that was originally constructed in 1925 with later additions built in 1957 and 1963. These later additions (the Perry Connecter and Health Care Center) would be demolished. Due to the age of the on-site structures, asbestos-containing materials may still be present in building materials that could become airborne as a result of demolition or renovation disturbance.

The California Department of Toxic Substance Control considers asbestos hazardous, and removal of asbestos-containing materials is required prior to demolition or construction activities that could result in disturbance of these materials. Asbestos-containing materials must be removed in accordance with local and state regulations, the Bay Area Air Quality Management District (air district), the California Occupational

[111] San Francisco Department of Public Health. Maher Zone Application for 3400 Laguna Street. January 5, 2024.

Safety and Health Administration (occupational safety and health administration), and California Department of Health Services requirements.

Specifically, section 19827.5 of the California Health and Safety Code requires that local agencies not issue demolition or alteration permits until an applicant has demonstrated compliance with notification requirements under applicable federal regulations regarding hazardous air pollutants, including asbestos. The California legislature vests the air district with the authority to regulate airborne pollutants, including asbestos, through both inspection and law enforcement, and the air district is to be notified 10 days in advance of any proposed demolition or abatement work. Any asbestos-containing material disturbance at the project site would be subject to the requirements of air district Regulation 11, Rule 2: Hazardous Materials—Asbestos Demolition, Renovation, and Manufacturing. The local office of the occupational safety and health administration must also be notified of asbestos abatement to be carried out. Asbestos abatement contractors must follow state regulations contained in Title 8 of California Code of Regulations section 1529 and sections 341.6 through 341.14, where there is asbestos related work involving 100 gross square feet or more of asbestos-containing material. The owner of the property where abatement is to occur must have a Hazardous Waste Generator Number assigned by and registered with the Office of the California Department of Health Services. The contractor and hauler of the material are required to file a Hazardous Waste Manifest that details the hauling of the material from the site and the disposal of it. Pursuant to California law, the building department would not issue the required permit until the applicant has complied with the requirements described above.

These regulations and procedures already established as part of the building permit review process would ensure that any potential impacts due to asbestos-containing materials would be less than significant and no mitigation would be required.

Lead-Based Paint

Similar to asbestos-containing materials, lead-based paint could be present at the site, based on the age of the buildings. Work that could result in disturbance of lead paint must comply with section 3426 of the San Francisco Building Code, Work Practices for Lead-Based Paint on Pre-1979 Buildings and Steel Structures. Where there is any work that may disturb or remove lead paint on the exterior of any building built prior to 1979, section 3426 requires specific notification and work standards, and identifies prohibited work methods and penalties. (The reader may be familiar with notices commonly placed on residential and other buildings in San Francisco that are undergoing re-painting. These notices are generally affixed to a drape that covers all or portions of a building and are a required part of the section 3426 notification procedure.)

Section 3426 applies to the exterior of all buildings or steel structures on which original construction was completed prior to 1979 (which are assumed to have lead-based paint on their surfaces, unless demonstrated otherwise through laboratory analysis), and to the interior of residential buildings, hotels, and child care centers. The ordinance contains performance standards, including establishment of containment barriers, at least as effective at protecting human health and the environment as those in the U.S. Department of Housing and Urban Development Guidelines (the most recent Guidelines for Evaluation and Control of Lead-Based Paint Hazards) and identifies prohibited practices that may not be used in disturbances or removal of lead-based paint. Any person performing work subject to the ordinance shall, to the maximum extent possible, protect the ground from contamination during exterior work; protect floors and other horizontal surfaces from work debris during interior work; and make all reasonable efforts to prevent migration of lead paint contaminants beyond containment barriers during the course of the work.

Clean-up standards require the removal of visible work debris, including the use of a High Efficiency Particulate Air Filter (HEPA) vacuum following interior work.

The ordinance also includes notification requirements and requirements for signs. Prior to the commencement of work, the responsible party must provide written notice to the director of the building department, of the address and location of the project; the scope of work, including specific location within the site; methods and tools to be used; the approximate age of the structure; anticipated job start and completion dates for the work; whether the building is residential or nonresidential, owner-occupied or rental property; the dates by which the responsible party has fulfilled or will fulfill any tenant or adjacent property notification requirements; and the name, address, telephone number, and pager number of the party who will perform the work. Further notice requirements include a Posted Sign notifying the public of restricted access to the work area, a Notice to Residential Occupants, Availability of Pamphlet related to protection from lead in the home, and Notice of Early Commencement of Work (by Owner, Requested by Tenant), and Notice of Lead Contaminated Dust or Soil, if applicable. Section 3426 contains provisions regarding inspection and sampling for compliance by the San Francisco Department of Building Inspection, as well as enforcement, and describes penalties for non-compliance with the requirements of the ordinance.

The proposed demolition would also be subject to the occupational safety and health administration's Lead in Construction Standard (8 CCR section 1532.1). This standard requires development and implementation of a lead compliance plan when materials containing lead would be disturbed during construction. The plan must describe activities that could emit lead, methods that will be used to comply with the standard, safe work practices, and a plan to protect workers from exposure to lead during construction activities. The occupational safety and health administration would require 24-hour notification if more than 100 square feet of materials containing lead would be disturbed.

These regulations and procedures discussed above would ensure that any potential impacts due to lead-based paint would be less than significant and no mitigation would be required.

Impact HZ-3: The proposed project would not emit hazardous emissions or handle hazardous or acutely hazardous materials, substances, or waste within one-quarter mile of an existing or proposed school. ***(Less than Significant)***

The closest schools to the project site are Marina Middle School, located at 3500 Fillmore Street which is approximately 0.4 mile west of the project site and Guidepost Montessori located at 3741 Buchannan Street which is approximately 0.2 mile northwest of the project site. However, as described in Impact HZ-1, hazardous materials used during project operation would not pose any substantial public health or safety hazards through their routine transport, use, or disposal. As noted in Impact HZ-2, the project sponsor is required to comply with health code article 22A, which would ensure the project would not result in a significant hazard to the public or environment due to the release of hazardous soil and groundwater. Similarly, hazardous building materials, such as asbestos and lead, would be remediated in accordance with regulatory requirements. These regulations, discussed in Impact HZ-2, would ensure that the proposed project would not emit hazardous emissions, and would not handle hazardous or acutely hazardous materials, substances, or waste. Therefore, this impact would be less than significant, and no mitigation is required.

Impact HZ-4: The proposed project would not impair implementation of or physically interfere with an adopted emergency response plan or emergency evacuation plan. ***(Less than Significant)***

San Francisco ensures fire safety primarily through provisions of the building and fire codes. Final building plans are reviewed by the San Francisco Fire Department (as well as the building department), to ensure conformance with these provisions. In this way, potential fire hazards, including those associated with hydrant water pressures and emergency access, would be addressed during the permit review process. Compliance with fire safety regulations would ensure that the proposed project would not impair implementation of or physically interfere with an adopted emergency response plan or emergency evacuation plan or expose people or structures to a significant risk of loss, injury, or death involving fires.

The proposed project, located within a city block, would not impair implementation of an emergency response or evacuation plan adopted by the City as project construction and operation is not anticipated to close roadways or impede access to emergency vehicles or emergency evacuation routes. Any potential roadway closures related to construction, if needed, would comply with the San Francisco Regulations for Working in San Francisco Streets requirements, and require coordination with the SFMTA. Implementation of the proposed project would not result in a substantial amount of new vehicle trips and therefore would not add to congested traffic conditions in the immediate area in the event of an emergency evacuation. Therefore, the proposed project would not impair implementation of, or physically interfere with, an adopted emergency response plan or emergency evacuation plan and this impact would be less than significant, and no mitigation is required.

Impact C-HZ-1: The proposed project, in combination with cumulative projects, would not result in a significant cumulative impact related to hazards and hazardous materials. ***(Less than Significant)***

The geographic context for an analysis of cumulative impacts related to handling of hazardous materials is generally confined to the project site and the nearby surrounding area. The Marina Improvement and Remediation Project, located approximately 830 feet from the project site, includes investigation and remediation of sediments in East Harbor and under the oversight of State regulatory agencies. This cumulative project, including remediation activities, would be conducted under agency oversight and would be required to implement protection measures to ensure that no significant impacts occur to human health or the environment, similar to the proposed project. For these reasons, the proposed project would not combine with cumulative development in the project vicinity to create a significant cumulative impact related to hazards and hazardous materials. Cumulative hazardous materials impacts would be less than significant, and no mitigation would be required.

Topics:	Potentially Significant Impact	Less than Significant with Mitigation Incorporated	Less than Significant Impact	No Impact	Not Applicable
E.19. ENERGY. Would the project:					
a) Result in potentially significant environmental impact due to wasteful, inefficient, or unnecessary consumption of energy resources, during project construction or operation?	☐	☐	☒	☐	☐
b) Conflict with or obstruct a state or local plan for renewable energy or energy efficiency?	☐	☐	☒	☐	☐

Impact EN-1: The proposed project would not result in wasteful, inefficient, or unnecessary consumption of energy resources during construction or operation. ***(Less than Significant)***

In California, energy consumption in buildings is regulated by Title 24 of the California Code of Regulations. Title 24 includes standards that regulate energy consumption for the heating, cooling, ventilation, and lighting of residential and non-residential buildings. In San Francisco, documentation demonstrating compliance with Title 24 standards is required to be submitted with a building permit application. Compliance with Title 24 standards is enforced by the building department. The proposed project, which would be located on a developed site, would include the expansion and renovation of the existing residential care facility. The proposed project would be required to comply with the standards of Title 24 and the requirements of the San Francisco Green Building Code.

Non-renewable energy consumption would occur during the proposed project construction and operational phases. Construction energy consumption would be primarily in the form of fuel used by construction equipment. Construction-related energy consumption is roughly proportional to the size of the new buildings proposed.

Operational-related energy consumption would include electricity used by residents and staff as well as fuel to go to and from the project expressed through vehicle miles traveled (VMT). Electricity would continue to be used for lighting, equipment, domestic hot water and building space conditioning.

Energy conservation design features that meet state and local goals for energy efficiency and renewable energy have been incorporated into the project design to reduce wasteful, inefficient, and unnecessary consumption of energy during project construction and operation, as demonstrated in the GHG checklist completed for the proposed project.[112] Specifically, to meet CALGreen[113] requirements, the project would use

[112] San Francisco Planning Department, Greenhouse Gas Analysis: Compliance Checklist for the Heritage on the Marina Project, 3400 Laguna Street, November 27, 2023.

[113] CALGreen is the California Green Buildings Standards Code, Part 11, Title 24, California Code of Regulations.

a mechanical system which requires use of rooftop compressors. In addition, new buildings would meet Title 24 requirements for photovoltaic solar panels on building flat roof areas.

As identified above, the residential care facility already exists, and the proposed project would result in a minor expansion of residential care suites on site from 86 to 109. Additionally, the proposed project would generate a small number of new vehicle trips. As an infill project in a low-VMT area, the proposed project inherently would not result in a wasteful or inefficient use of energy resources. In addition, compliance with the City's Commuter Benefits Ordinance, TDM requirements, and bicycle parking requirements would minimize the amount of transportation fuel consumed. Given the project's features and location, it would not result in wasteful use of fuel from vehicle trips. For these reasons, the proposed project would not use energy resources in a wasteful, inefficient, or unnecessary manner, nor would the proposed project conflict with or obstruct implementation of a state or local plan for renewable energy or energy efficiency. This impact would be less than significant, and no mitigation would be required.

Impact EN-2: The proposed project would not conflict with or obstruct a state or local plan for renewable energy or energy efficiency. ***(Less than Significant)***

As discussed in Impact EN-1 above, the proposed project would not use energy resources in a wasteful, inefficient, or unnecessary manner, nor would the proposed project conflict with or obstruct implementation of a state or local plan for renewable energy or energy efficiency. This impact would be less than significant, and no mitigation would be required.

Impact C-EN-1: The proposed project, in combination with cumulative projects, would not result in significant cumulative impacts related to the wasteful, inefficient, or unnecessary consumption of energy resources or conflict with or obstruct a state or local plan for renewable energy or energy efficiency. ***(Less than Significant)***

The geographic context for the analysis of cumulative impacts associated with energy is the service territory of the energy utility that serves the project site, PG&E, while the geographic context for the analysis of cumulative impacts associated with fuel use is the City. The proposed project would result in a total expansion of approximately 58,380 square feet of building space and the addition of 23 residential care suites. Like the proposed project, all new development in the City would be required to comply with the standards of Title 24 and the San Francisco Green Building Code, thereby minimizing the amount of fuel, water, and energy used. Per capita VMT in the City is relatively low compared with the regional average; therefore, cumulative development, including the project, would not result in wasteful use of fuel from transportation. As such, the proposed project, in combination with cumulative development, would have less-than-significant cumulative energy impacts and no mitigation would be required.

Topics:	Potentially Significant Impact	Less than Significant with Mitigation Incorporated	Less than Significant Impact	No Impact	Not Applicable
E.20. MANDATORY FINDINGS OF SIGNIFICANCE. Does the project:					
a) Have the potential to substantially degrade the quality of the environment, substantially reduce the habitat of a fish or wildlife species, cause a fish or wildlife population to drop below self-sustaining levels, threaten to eliminate a plant or animal community, substantially reduce the number or restrict the range of a rare or endangered plant or animal, or eliminate important examples of the major periods of California history or prehistory?	☒	☐	☐	☐	☐
b) Have impacts that are individually limited, but cumulatively considerable? ("Cumulatively considerable" means that the incremental effects of a project are considerable when viewed in connection with the effects of past projects, the effects of other current projects, and the effects of probable future projects.)	☒	☐	☐	☐	☐
c) Have environmental effects which will cause substantial adverse effects on human beings, either directly or indirectly?	☒	☐	☐	☐	☐

NOTE: Authority cited: Public Resources Code sections 21083 and 21083.05, 21083.09. Reference: Section 65088.4, Gov. Code; Public Resources Code sections 21073, 21074, 21080(c), 21080.1, 21080.3, 21083, 21083.05, 21083.3, 21080.3.1, 21080.3.2,21082.3, 21084.2, 21084.3, 21093, 21094, 21095, and 21151; *Sundstrom v. County of Mendocino* (1988) 202 Cal.App.3d 296; *Leonoff v. Monterey Board of Supervisors* (1990) 222 Cal.App.3d 1337; *Eureka Citizens for Responsible Govt. v. City of Eureka* (2007) 147 Cal.App.4th 357; *Protect the Historic Amador Waterways v. Amador Water Agency* (2004) 116 Cal.App.4th at 1109; *San Franciscans Upholding the Downtown Plan v. City and County of San Francisco* (2002) 102 Cal.App.4th 656.

As discussed in Section E.15, Biological Resources, with implementation of Mitigation Measure M-BI-1, the proposed project would not substantially reduce the habitat of a fish or wildlife species, cause a fish or wildlife population to drop below self-sustaining levels, threaten to eliminate a plant or animal community, or reduce the number or restrict the range of a rare or endangered plant or animal. As discussed in Section E.4, Cultural Resources, implementation of the proposed project would not result in a substantial adverse change in the significance of an archeological resource, or a tribal cultural resource and would not disturb human remains, with implementation of Mitigation Measures M-CR-2 and M-TC-1. Potential impacts to historic architectural resources are potentially significant and evaluated in the EIR. With the exception of this potential impact, the proposed project (with implementation of mitigation measures identified in this initial study) would not result in the elimination of important examples of major periods of California history or prehistory.

As discussed in Section D.8, Air Quality, impacts related to construction-period air pollutant emissions and potential adverse health effects to people living in the area are potentially significant and evaluated in the EIR.

With the exception of the topics of cultural (historic) resources and construction-period air quality, as discussed in Section E, Evaluation of Environmental Effects, the proposed project would not make a considerable contribution to any other cumulative environmental impacts. The EIR addresses these respective impacts in Sections 3.B Historic Resources and 3.C Air Quality in the EIR.

F. DETERMINATION

On the basis of this initial study:

☐ I find that the proposed project COULD NOT have a significant effect on the environment, and a NEGATIVE DECLARATION will be prepared.

☐ I find that although the proposed project could have a significant effect on the environment, there will not be a significant effect in this case because revisions in the project have been made by or agreed to by the project proponent. A MITIGATED NEGATIVE DECLARATION will be prepared.

☒ I find that the proposed project MAY have a significant effect on the environment, and an ENVIRONMENTAL IMPACT REPORT is required.

☐ I find that the proposed project MAY have a "potentially significant impact" or "potentially significant unless mitigated" impact on the environment, but at least one effect (1) has been adequately analyzed in an earlier document pursuant to applicable legal standards, and (2) has been addressed by mitigation measures based on the earlier analysis as described on attached sheets. An ENVIRONMENTAL IMPACT REPORT is required, but it must analyze only the effects that remain to be addressed.

☐ I find that although the proposed project could have a significant effect on the environment, because all potentially significant effects (a) have been analyzed adequately in an earlier EIR or NEGATIVE DECLARATION pursuant to applicable standards, and (b) have been avoided or mitigated pursuant to that earlier EIR or NEGATIVE DECLARATION, including revisions or mitigation measures that are imposed upon the proposed project, no further environmental documentation is required.

Lisa Gibson

Lisa Gibson
Environmental Review Officer
for
Rich Hillis
Director of Planning

DATE August 28, 2024

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